



V I C T O R I A P O L I C E

VP508A

INFRINGEMENT NOTICE CODES AND
PENALTIES GUIDE
(Including Ready Reckoner)

Issue 3
11th October 2024

INTRODUCTION – PART 1

IN ACCORDANCE WITH VICTORIA POLICE POLICY, DO NOT ISSUE:

- Where the offence arises from a fatal collision.
- To any person under 14 years of age.
- More than 3 notices to an offender on any one occasion or arising from the same set of circumstances.
- For drink driving infringements unless under 0.150, and either a first offence, or no previous drink or drug driving convictions or findings of guilt in the last 10 years.
- For drug driving offences (exceed PCD) unless for a first offence, or no previous drink or drug driving convictions or findings of guilt in the last 10 years.
- For drug impaired driving offences.
- For 'supervising driver offence' alcohol / drug driving 'in charge' of a vehicle offences.
- To an unlicensed driver for a loss (suspension or cancellation) of licence infringement.
- To a learner driver under the age of 18 years for a loss of licence infringement.
- Where a brief is to be submitted for offences arising from the same set of circumstances.
- Where a vehicle is impounded for a relevant offence. Refer to VPM Road Policing – enforcement.

NOTE: DO NOT ISSUE AN INFRINGEMENT NOTICE FOR P1 LICENCE PEER PASSENGER OFFENCES WHERE THERE IS AN EXPERIENCED DRIVER SEATED BESIDE THE DRIVER - EVEN IF THAT EXPERIENCED DRIVER IS LESS THAN 22 YEARS OF AGE.

Refer to Victoria Police Manual – **VPM Infringement notices and official warnings** for further information relating to the use of Infringement Notices and Official Warning Notices

Drink driving infringement notices: section 89C(1) of the Road Safety Act 1986, cancels a Victorian licence or permit and imposes the appropriate disqualification period as specified in Schedule 1 of the Act. Section 89C (3A) imposes a disqualification in accordance with the same Schedule on interstate and overseas drivers who are permitted to drive in Victoria on their interstate or overseas licence.

Excessive speed infringement notices: section 89D (1) of the Road Safety Act 1986, suspends a Victorian licence or permit for the period specified in Schedule 5 of the Act. Section 89D (1A) imposes a disqualification in accordance with the same Schedule on interstate and overseas drivers who are permitted to drive in Victoria on their interstate or overseas licence.

There is no provision for an unlicensed driver to be dealt with under either of these sections. Therefore, licence loss infringement notices are not to be issued to drivers who do not hold either a current Victorian, interstate or overseas licence or permit (unlicensed drivers).

Comments regarding this guide are welcome via email to

"VP-FORMS-UNIT-OIC"

SIGNIFICANT CHANGES

1 July 2024 - All Infringement Penalty Unit amounts updated in accordance with annual CPI increase.

1 penalty unit = \$ 197.59

1 July 2024 - All Heavy Vehicle National Law (HVNL) Penalty Unit amounts updated in accordance with the National Law annual CPI Increase. Infringement amounts are 10% of court imposed penalties. Further information on HVNL Schedule of Infringement Penalties and Demerit Points for the 2024/25 FY can be found at

<https://www.nhvr.gov.au/law-policies/penalties-and-infringements>

01 July 2024

Part 2 Traffic - Drink and Drug Driving Licence Cancellation & Disqualification. Amended Code 1992 offence description to correct error from "(a) blood alcohol level of 0.05 or more but less than 0.0 g/100ml;" to "(a) blood alcohol level of 0.05 or more but less than 0.07g/100ml;"

Part 4 Traffic - Electric Scooter. Inserted new Code 4484 for the specific offence of "Rider of an electric scooter failing to wear securely fitted and approved bicycle helmet" under Road Safety Road Rules 2017 section 256(1). From 01/07/2024 Code 4484 must be used for the rider of an electric scooter failing to wear a securely fitted and approved bicycle helmet rather than the previously shared Code 2233 which applied to both the rider of a bicycle and / or the rider of an electric scooter.) Part 4 Traffic - Bicycles & Electric Scooters. Amended Code 2233 offence wording to "256(1) – rider of bicycle failing to wear securely fitted approved bicycle helmet [use for bicycle rider ONLY. For E-Scooter rider use Code 4484]".

Part 5 Traffic - Heavy Vehicle National Law. Amended Code 4694 to remove incorrect 'Reference' to HVNL 529(B) and replaced with correct reference HVNL 529(a). Inserted new codes: Code 4479 - Fail to produce document etc., Code 4481 - Failure by driver to keep a copy of PBS vehicle approval while driving and Code 4482 - Failure by relevant party to ensure driver keeps a copy of PBS vehicle approval while driving, without reasonable excuse.

Part 15 Liquor Control Reform Act - Licensee / Permittee Offences. Added Code 6190 Failure of licensee to keep at the licensed premises RSA certificates demonstrating requirements under sections 26B, 108AA, 108AB, and 108AC have been satisfied. Infringement offence came into effect on 30/06/1998.

Administrative Amendment:- Part 21 Crime - Crime Offences & Sex Work Offences. Amended wording in line with VPM Infringement notices and official warnings from:- "DO NOT issue an Infringement Notice - Crime or Official Warning Notice - Crime if the offender has previously received one Infringement Notice - Crime and one Official Warning Notice - Crime (or caution). Any subsequent offending must be dealt with by way of charge" to ". LIMITATION ON ISSUING an Infringement Notice - Crime or Official Warning Notice - Crime - the person has received no more than one Infringement Notice - Crime and one Official Warning Notice - Crime. Any subsequent offending must be dealt with by way of charge.

Administrative Amendment:- Part 21 Crime - Weapons. Inserted wording to include a reminder that if an Infringement Notice or Official Warning Notice is issued to a child (16 to 18 years) you must firstly consider if there is a more appropriate course of action with consideration to circumstances and prior history, and where an infringement notice is issued, a parent or guardian must be notified in writing (VP Form 508H).

11th October 2024

Part 2 Traffic - Overtaking. Amended Code 8395 offence description to differentiate between failing to pass a bicycle at a sufficient distance and failing to pass an electric scooter at a sufficient distance.

Part 4 Traffic - Electric Scooter Codes 1882,1883,1885,1887,1888,4484 all have increased penalties.

Part 4 Traffic - New Electric Scooter Code 7383 - A penalty amount of \$642 is applicable to passengers on a scooter not wearing an approved helmet and \$247 for passengers wearing an approved helmet.

Part 5 Traffic - Parking. Amended Code 0706 error from *0706 to +0706 to correct symbol from an asterisk to a + symbol as PSO's can also issue an infringement notice for this offence.

Part 8 Transport Infringement Notices - General. Amended Code 3123+ offence description to differentiate between stating a false name and stating an incorrect address (Adult).

Part 8 Transport Infringement Notices - General. Amended Code 3282+ offence description to differentiate between stating a false name and stating an incorrect address (Child). Amended incorrect section references from T(CM)A 218(4)(b) to T(CM)A 218B(4)(b) and T(CM)A 218(4)(c) to T(CM)A 218B(4)(c).

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TRAFFIC – PART 2

Table of Abbreviations

RSA – Road Safety Act 1986
RR – Road Safety Road Rules 2017
RS(D)R – Road Safety (Drivers) Regulations 2019
RS(V)R – Road Safety (Vehicles) Regulations 2021

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Traffic – Speeding - Heavy Vehicles

NOTE: A "Heavy vehicle" is defined in the Road Safety Act and means a motor vehicle or trailer that has a GVM greater than 4.5 tonnes, and includes—

(a) any other vehicle that is physically connected to the heavy vehicle (even if that other vehicle is not a heavy vehicle); and

(b) a bus that is used, or that is intended to be used, to carry passengers for reward or in the course of a business.

In addition to this definition and for the purpose of Road Rule 20 a "heavy vehicle" also includes a motor vehicle (other than a bus) that is being used in combination with one or more trailers and has a GCM greater than 14.5 tonnes.

Code	Offence	Reference	Penalty	Suspension	Demerit Pts
1935	Exceed speed limit in a heavy vehicle by less than 10 km/h.	RR 20	346		1 (one)
1936	Exceed speed limit in a heavy vehicle by 10 km/h or more but less than 15 km/h.	RR 20	543		3 (three)
1937	Exceed speed limit in a heavy vehicle by 15 km/h or more but less than 25 km/h.	RR 20	790		3 (three)
1938	Exceed speed limit in a heavy vehicle by 25 km/h or more but less than 30 km/h.	RR 20	1087	3 months	
1939	Exceed speed limit in a heavy vehicle by 30 km/h or more but less than 35 km/h.	RR 20	1383	3 months	
1940	Exceed speed limit in a heavy vehicle by 35 km/h or more but less than 40 km/h.	RSA 65B	1680	6 months	
1941	Exceed speed limit in a heavy vehicle by 40 km/h or more but less than 45 km/h.	RSA 65B	1976	6 months	
1942	Exceed speed limit in a heavy vehicle by 45 km/h or more.	RSA 65B	2272	12 months	
1966	Exceed speed limit in a heavy vehicle by 20 km/h or more but less than 25km/h (110km/h limit).	RR 20	790	3 months	

Traffic – Speeding

Code	Offence	Reference	Penalty	Suspension	Demerit Pts
1926	Exceed speed limit in a vehicle other than a heavy vehicle by less than 10 km/h.	RR 20	247		1 (one)
1927	Exceed speed limit in a vehicle other than a heavy vehicle by 10 km/h or more but less than 15 km/h.	RR 20	395		3 (three)
1928	Exceed speed limit in a vehicle other than a heavy vehicle by 15 km/h or more but less than 25 km/h.	RR 20	395		3 (three)
1929	Exceed speed limit in a vehicle other than a heavy vehicle by 25 km/h or more but less than 30 km/h.	RR 20	543	3 months	
1930	Exceed speed limit in a vehicle other than a heavy vehicle by 30 km/h or more but less than 35 km/h.	RR 20	642	3 months	
1931	Exceed speed limit in a vehicle other than a heavy vehicle by 35 km/h or more but less than 40 km/h.	RR 20	741	6 months	
1932	Exceed speed limit in a vehicle other than a heavy vehicle by 40 km/h or more but less than 45 km/h.	RR 20	840	6 months	
1933	Exceed speed limit in a vehicle other than a heavy vehicle by 45 km/h or more.	RR 20	988	12 months	
1934	Exceed speed limit in a vehicle other than a heavy vehicle in a 110 km/h zone by 20 km/h or more but less than 25 km/h.	RR 20	395	3 months	
8375	Permit learner driver to drive at excessive speed. (NOTE: Only Supervising licenced drivers commit this offence. "excessive speed" with regard to this offence means: 130 km/h or more or 25 km/h or more in excess of that permitted).	RR 406(2)	247		

Traffic – Fail to Give Way or Stop

Code	Offence	Reference	Penalty	Demerit Pts
2011	Fail to give way to a pedestrian.		346	3 (three)
	• 38 – while making a U-turn.	RR 38		
	• 75(1)(a) – on the road when entering a road-related area or adjacent land from a road (uncontrolled).	RR 75(1)(a)		
	• 75(1)(b) – on any road-related area the driver crosses or enters to enter a road-related area or adjacent land from a road.	RR 75(1)(b)		
	• 81(2) – on a pedestrian crossing.	RR 81(2)		
	• 83 – in a shared zone.	RR 83		
	• 72(1) – on the road being entered when turning left or right at an intersection (uncontrolled), or any pedestrian on a slip lane when turning left using the slip lane.	RR 72(1)		
	• 73(1) – on the road being entered when turning at a T-intersection from a terminating road, or any pedestrian on a slip lane when turning left using the slip lane.	RR 73(1)		
	• 74(1)(b) – on a road when the driver enters a road from a road-related area or adjacent land (uncontrolled).	RR 74(1)(b)		
	• 74(1)(c) – on any road-related area that the driver crosses to enter the road (uncontrolled).	RR 74(1)(c)		
2012	Fail to give way at intersection.		346	3 (three)
	• 38 – to vehicle or pedestrian while making a U-turn.	RR 38		
	• 62(1) – when turning right at traffic lights to oncoming vehicle going straight ahead or turning left (except a vehicle turning left using a slip lane).	RR 62(1)		
	• 63(2) – (when traffic lights not operating or showing a flashing yellow light and a 'traffic light stop sign' is erected at the intersection) to any vehicle entering or approaching the intersection.	RR 63(2)		
	• 63(3) – (when traffic lights not operating or are showing a yellow flashing light) - to any oncoming vehicle when turning right / to any vehicle approaching from the right when turning left / to any vehicle on the right when going straight through, turning left (including turning left using a slip lane) or turning right, or if turning right to any oncoming vehicle.	RR 63(3)		
	• 72(1) – (uncontrolled) to any vehicle on the right, whether or not proceeding straight through, turning left (including turning left using a slip lane) or turning right, or if turning right to any oncoming vehicle.	RR 72(1)		
	• 73(1) – (uncontrolled T-intersection) when turning left or right from the terminating road to any vehicle on the continuing road (whether or not using a slip lane) or if turning from the continuing road into the terminating road any vehicle on the right or if turning right from the continuing road into the terminating road any oncoming vehicle.	RR 73(1)		
2013	Fail to give way not at intersection.		346	3 (three)
	• 38 – while making a U-turn.	RR 38		
	• 74(1)(a) – when entering a road from a road-related area or adjacent land (uncontrolled) to any vehicle on the road or turning into the road (except a vehicle turning from another road-related area or adjacent land).	RR 74(1)(a)		
	• 74(1)(c) – to any vehicle on any road-related area that the driver crosses to enter the road (uncontrolled).	RR 74(1)(c)		
	• 75(1)(b) – to any vehicle on any road-related area the driver crosses or enters to enter a road-related area or adjacent land from a road.	RR 75(1)(b)		
	• 75(1)(c) – to any oncoming vehicle when turning right to enter a road-related area or adjacent land from a road (uncontrolled).	RR 75(1)(c)		
	• 77(1) – to a bus displaying a 'give way to buses sign' which is about to enter the left lane or line of traffic.	RR 77(1)		
	• 84(1) – (uncontrolled) when moving through a break in a dividing strip to a tram or a bus using tram tracks on the dividing strip or another vehicle on the part of the road being entered.	RR 84(1)		
2014	• 87(1) – when entering a marked lane or line of traffic from the left side of the road.	RR 87(1)	346	3 (three)
	Fail to keep clear or give way to police, emergency, enforcement or escort vehicles.			
	• 78(1) – by moving into the path of an approaching police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm.	RR 78(1)		
	• 78(2) – by failing to move out of the path of a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm.	RR 78(2)		
	• 79(1) – by failing to give way to a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm.	RR 79(1)		

For offences against Traffic Signs see Part 4

Traffic – Fail to Give Way or Stop (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2015	Fail to give way at roundabout.		346	3 (three)
	• 114(1) – when entering a roundabout to any vehicle in the roundabout and any tram or bus using the tram tracks, entering or approaching the roundabout.	RR 114(1)		
	• 114(2) – when in a roundabout to any tram in, entering or approaching the roundabout.	RR 114(2)		
2021	Fail to stop and remain stationary at children's crossing.		494	3 (three)
	• 80(2) – fail to stop at the stop line when a hand held stop sign is displayed or a pedestrian is entering or on the crossing.	RR 80(2)		
	• 80(3) – proceed after stopping when the hand held stop sign is still displayed.	RR 80(3)		
	• 80(4) – proceed after stopping while a pedestrian is on or entering the crossing.	RR 80(4)		
2022	Pass stopped vehicle at children's crossing or pedestrian crossing.	RR 82	494	3 (three)
2023	Pass stopped tram.		494	3 (three)
	• 163(1) – fail to stop before passing the rear of a tram when the driver is driving behind the rear of a tram travelling in the same direction as the driver and the tram stops at a tram stop (except at the far left side of the road) and there is no safety zone, dividing strip or traffic island between the tram and the part of the road where the driver is driving, or proceed after stopping:	RR 163(1)		
	• whilst tram doors are open.			
	• or the road is not clear of pedestrians.			
	• or in excess of 10kph.			
	• 164(1) – fail to stop when the driver is driving alongside, or overtaking a tram travelling in the same direction as the driver and the tram stops at a tram stop and there is no safety zone, dividing strip or traffic island between the tram and the part of the road where the driver is driving, or proceed after stopping:	RR 164(1)		
2024	• whilst tram doors are open.		988	4 (four)
	• or the road is not clear of pedestrians.			
	• or in excess of 10kph.			
	• 164A(1) – fail to stop or remain stopped at a tram stop if a tram drives alongside, or passes, a driver travelling in the same direction as the tram and the tram stops at a tram stop and there is no safety zone, dividing strip or traffic island between the tram and the part of the road where the driver is driving, or proceed after stopping:	RR 164A(1)		
	• whilst tram doors are open.			
	• or the road is not clear of pedestrians.			
3129	Unlawfully approach, pass or overtake a stationary or slow-moving police, emergency, enforcement or escort vehicle or workers on foot.		346	
	• 79A(1) – when approaching, failing to drive at a speed which allows the driver to stop if necessary before passing a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm.	RR 79A(1)		
	• 79A(2) – when approaching, failing to give way to any police officer, emergency, enforcement vehicle or escort vehicle worker on foot in the immediate vicinity of a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm.	RR 79A(2)		
	• 79A(3) – by driving past or overtaking a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm at a speed greater than 40 km/h.	RR 79A(3)		
	• 79A(4) – by increasing speed at a distance not sufficient from a police, emergency, enforcement or escort vehicle that is displaying a flashing blue, red or magenta light or is sounding an alarm, so as not to cause a danger to any police officer, emergency, enforcement vehicle or escort vehicle worker in the immediate vicinity of the vehicle.	RR 79A(4)		

Traffic – Fail to Give Way or Stop (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
8333	Fail to give way to a pedestrian / rider of a bicycle.		346	3 (three)
	• 62(1) – on a road being entered, when turning at an intersection with traffic or bicycle crossing lights or when turning left at a 'left turn on red after stopping' sign at the intersection.	RR 62(1)		
	• 63(2) – at an intersection with traffic lights not operating or showing a flashing yellow light and there is a traffic light-stop sign when turning left or right and the pedestrian is at or near the intersection and is crossing the road or part of the road the driver is entering.	RR 63(2)		
	• 63(3) – at an intersection with traffic lights not operating or only partly operating (turning left, right or on slip lane).	RR 63(3)		
8334	Fail to give way not at an intersection.		346	
	• 85 – when entering a turning lane from a painted island to any vehicle in the turning lane / if turning lane and painted island are nearest to the far left side of road to any vehicle entering the turning lane from the marked lane or line of traffic immediately to the right of the turning lane / if turning and painted island are nearest to the dividing line or median strip on the road or the far right side of the road to any vehicle entering the turning lane from the marked lane or line of traffic immediately to the left of the turning lane.	RR 85		
	• 86(1) – to an oncoming vehicle in a median turning bay when entering the turning bay.	RR 86(1)		
	• 87(3) – when turning from a median strip parking area into a marked lane or line of traffic, to vehicles in the lane or line of traffic.	RR 87(3)		
8359	Fail to give way to pedestrian or animal when legally driving on a path, nature strip.		296	
	• 288(4) – on a path (except a bicycle or driver entering or leaving a road).	RR 288(4)		
	• 289(2) – on a nature strip (except the rider of an animal or a driver leaving or entering a road).	RR 289(2)		
8361	Fail to give way to a vehicle when legally driving on a path or nature strip.		346	
	• 288(4) – to other road users on a path when driving on the path.	RR 288(4)		
	• 289(2) – to other road users and animals on a nature strip when driving on the nature strip.	RR 289(2)		

Traffic – Keeping Left and Diverging

Code	Offence	Reference	Penalty	Demerit Pts
2031	Fail to keep left of oncoming vehicle.	RR 131(1)	346	2 (two)
2032	Drive on wrong side of divided road.	RR 135(1)	395	3 (three)
2033	Drive on or over or to the right of dividing lines.		395	3 (three)
	• 132(2) – overtaking another vehicle over 2 parallel continuous dividing lines / enter or leave a road by crossing over 2 parallel continuous dividing lines / travel to the right of 2 parallel continuous dividing lines.	RR 132(2)		
	• 132(2A) – performing a U turn across 2 parallel continuous dividing lines.	RR 132(2A)		
2034	Fail to keep left of safety zone.	RR 162(1)	494	3 (three)
2035	Fail to keep left of centre of road.	RR 132(1)	247	2 (two)
2037	Fail to keep as far left as practicable.		198	2 (two)
	• 129(1) – on a road other than on a multi-lane road or a road with two or more lines of traffic.	RR 129(1)		
	• 130(2) – drive in right lane of a multi-lane road where the speed limit is over 80 kph or there is a keep left unless overtaking sign.	RR 130(2)		
2038	Fail to stay within marked lane or line of traffic.		198	
	• 146(1) – on a multi-lane road.	RR 146(1)		
	• 146(2) – in two or more lines of traffic.	RR 146(2)		
	• 147 – lanes separated by a continuous line.	RR 147		
2039	Change lanes or line of traffic without giving way.		296	2 (two)
	• 148(1) – from one marked lane to another marked lane.	RR 148(1)		
	• 148(2) – on a road with two or more lines of traffic, from one line of traffic to another.	RR 148(2)		
	• 148A – within marked lane to any vehicle in the lane.	RR 148A		
2040	Fail to give way when merging.	RR 149	296	
2045	Drive in wrong direction on a one-way service road.	RR 136	346	3 (three)
2046	Drive on or over painted island with double lines.	RR 138(1)	395	3 (three)
8381	Drive on or over painted island other than double lines (single continuous line).	RR 138(1)	395	
8380	Fail to keep left other than double lines.		395	2 (two)
	• 132(2) – overtake another vehicle over single continuous dividing line or single continuous dividing line to the left of broken dividing line / travel to right of single continuous dividing line or single continuous dividing line to the left of broken dividing line (excluding when entering or leaving the road or entering part of the road from another part for example to or from a service road or emergency stopping lane).	RR 132(2)		
	• 132(2A) – performing a U turn across a single continuous dividing line or a single continuous dividing line to the left of a broken dividing line.	RR 132(2A)		

Traffic – Overtaking

Code	Offence	Reference	Penalty	Demerit Pts
2041	Pass to right or left of tram.		395	2 (two)
	• 160(2) – drive past or overtake a tram to the right.	RR 160(2)		
	• 160(3) – drive past or overtake a left turning tram or a tram signalling an intention to turn left.	RR 160(3)		
2042	Pass to right of right turning vehicle or a vehicle making a U-turn from the centre of the road.		395	2 (two)
	• 142(1) – overtake to the right of a right turning vehicle or a vehicle making a U-turn from the centre of the road and is giving a right change of direction signal.	RR 142(1)		
	• 143(2) – drive past or overtake to the right of vehicle turning right or making U-turn and displaying a do not overtake turning vehicle sign and giving a right change of direction signal.	RR 143(2)		
2043	Overtake vehicle on left.		296	2 (two)
	• 141(1) – overtake vehicle on the left (unless multi lane road or vehicle being overtaken turning right or making U turn and giving right change of direction signal or stationary and safe to overtake the vehicle).	RR 141(1)		
2044	Increase speed when being overtaken.	RR 145	395	2 (two)
8347	Overtake vehicle with DO NOT OVERTAKE TURNING VEHICLE sign on left.		395	2 (two)
	• 143(1) – pass to the left of a left turning vehicle displaying a do not overtake turning vehicle sign and is giving a left change of direction signal.	RR 143(1)		
	• 143(1A) – drive past or overtake to the left of a vehicle displaying a do not overtake turning vehicle sign on other than a multi lane road (unless the vehicle being passed or overtaken is turning right or making a U turn or is stationary).	RR 143(1A)		
8349	Fail to leave enough room when overtaking or cut in too soon.		395	2 (two)
	• 144 – fail to pass another vehicle at a safe distance and not diverge in front of the vehicle for a sufficient distance to avoid a collision.	RR 144		
8354	Drive past or overtake tram turning right or giving right change of direction signal.		395	
	• 161(3) – drive past, or overtake, a tram that is turning right or is giving a right change of direction signal (where the tram tracks are at or near the far left side of the road).	RR 161(3)		
8393	Lane filtering on motorcycle over 30 km/h.	RR 151A	198	
8395	Fail to pass a bicycle or an electric scooter at a sufficient distance.		395	2 (two)
	• 144A(1) – Fail to pass a bicycle at a sufficient distance.	RR 144A(1)		
	• 144A(1A) – Fail to pass an electric scooter at a sufficient distance.	RR 144A(1A)		

Traffic – Signalling

Code	Offence	Reference	Penalty	Demerit Pts
2051	Fail to give signal.		198	2 (two)
	• 46(1) – before changing direction to the left.	RR 46(1)		
	• 48(1) – before changing direction to the right.	RR 48(1)		
	• 53(1) – before stopping or suddenly slowing down.	RR 53(1)		
	• 53(2) – stop signal for sufficient time.	RR 53(2)		
2052	Fail to cancel/incorrectly operate signal.		198	
	• 46(4) – fail to cancel left change of direction signal.	RR 46(4)		
	• 48(4) – fail to cancel right change of direction signal.	RR 48(4)		
	• 51 – operate change of direction signal otherwise than to give the required signal or to use as a hazard warning light.	RR 51		
	• 118(2) – fail to cancel left change of direction signal when leaving a roundabout.	RR 118(2)		
8376	Fail to give signal.		198	
	• 112(2) – left change of direction signal when entering a roundabout if leaving the roundabout at the first exit less than half way around.	RR 112(2)		
	• 112(3) – fail to continue to give signal until the driver has left the roundabout.	RR 112(3)		
	• 113(2) – right change of direction signal when entering a roundabout if the roundabout is to be left more than halfway around.	RR 113(2)		
	• 113(3) – fail to continue to give signal while driver is driving in roundabout.	RR 113 (3)		
	• 117(1) – left signal before changing lanes or a line of traffic to the left within a roundabout.	RR 117(1)		

Traffic – Turning

Code	Offence	Reference	Penalty		Demerit Pts
2061	Perform unsafe U-turn.	RR 37	395		2 (two)
2062	Make incorrect left, right or U-turn or turn improperly.		198		2 (two)
	• 27(1) – fail to make left turn from as near as practicable to the left side of the road.	RR 27(1)			
	• 28(1) – fail to make a left turn from a multi-laned road from the left lane.	RR 28(1)			
	• 28(1A) – where there is a slip lane fail to turn left from within the slip lane.	RR 28(1A)			
	• 29(1) – fail to turn in accordance with turn line when turning left.	RR 29(1)			
	• 31(1) – when turning right fail to keep as near as practicable to the left of a dividing line or median strip.	RR 31(1)			
	• 31(1) – fail to keep as near as practicable to the left of centre if no dividing line or median strip (not a one-way road).				
	• 31(1) – fail to be as near as practicable to the right side of the road on a one-way road.				
	• 32(1) – when turning right from a multi-lane road fail to make the turn from the right lane.	RR 32(1)			
	• 33(1) – fail to turn in accordance with turn line when turning right.	RR 33(1)			
	• 33(1) – if no turn line fail to pass to the right of the centre of the intersection.				
2063	Enter roundabout from wrong marked lane or line of traffic or disobey traffic lane arrows when in roundabout.		198		
	• 111(1) – if leaving the roundabout less than half way around fail to enter the roundabout from the left lane; or	RR 111(1)			
	• 111(1) – if leaving the roundabout more than half way around it fail to enter the roundabout from the right lane.				
	• 116 – fail to drive in direction of traffic lane arrows when in or leaving a roundabout.	RR 116			
8330	Make incorrect U-turn at an intersection. • 42 – fail to make a U-turn at an intersection from the left of any median strip or dividing line or if no median strip or dividing line from the left of the centre of the road.	RR 42	198		

Traffic – Lighting

Code	Offence	Reference	Penalty	Demerit Pts
2071	Fail to have headlights, tail lights and number plate lights on at night or in hazardous weather conditions.		296	1 (one)
	• 215(1)(a) – drive at night or in hazardous weather conditions with reduced visibility without headlights, tail lights and number plates lights operating or clearly visible.	RR 215(1)(a)		
	• 216(1) – tow a vehicle at night or in hazardous weather conditions with reduced visibility without the towed vehicle having tail lights or portable rear lights operating or clearly visible.	RR 216(1)		
2072	Fail to have clearance lights or side marker lights on at night or in hazardous weather conditions.	RR 215(1)(b)	198	1 (one)
2073	Fail to dip headlights.	RR 218(1)	296	1 (one)
2074	Operate any front or rear fog light other than as permitted.		198	
	• 217(1) – a driver must not operate any front or rear fog light fitted to the vehicle unless the driver is driving in fog or other hazardous weather conditions causing reduced visibility.	RR 217(1)		
2075	Use hazard warning lights other than as permitted.	RR 221	198	
2076	Animal drawn vehicle – Fail to have lights and reflectors displayed at night or in hazardous weather conditions.	RR 223	198	

Traffic – Safety Procedures

Code	Offence	Reference	Penalty	Demerit Pts
2085	Ride motor bike without helmet or with passenger without helmet.	RR 270(1)	395	3 (three)
2088	Fail to have full control, uninterrupted view, at least one hand on handlebars (motorbikes only) or both feet on footrests while motorbike moving.		296	
	• 271(1) – ride a motor bike while not seated astride it and facing forward, without one hand on the handle bars or without both feet on the footrests.	RR 271(1)		
	• 297(1) – fail to have proper control of the vehicle.	RR 297(1)		
	• 297(2) – fail to have a clear view of the road and traffic, ahead, behind and to each side of the driver.	RR 297(2)		
	• 297(1A) – drive a vehicle when a person or an animal is in the drivers lap.	RR 297(1A)		
	• 297(3) – ride a motor bike with an animal on the motor bike between the rider and the handlebars, or in another position that interferes with the rider's ability to control the motor bike or to have a clear view of the road.	RR 297(3)		
2089	Cause hazard to person or vehicle by opening door or alighting from vehicle.	RR 269(3)	494	
2090	Drive or travel with any part of body protruding.		198	
	• 268(3) – person travelling with part of the person's body outside a window or door.	RR 268(3)		
	• 268(4) – drive with part of passenger's body outside a window or door.	RR 268(4)		
2490	Driver failing to occupy the driver's seating position with an approved seatbelt or failing to wear the approved seatbelt or both.	RR 264(1)	395	3 (three)
2492	Driver failing to ensure passenger is occupying a seating position with an approved seatbelt or wearing the approved seatbelt or both.	RR 264A(1)	395	3 (three)
2591	Driver occupying same seating position as a passenger.	RR 263B(1)	395	3 (three)
2592	Driver failing to ensure passenger is not occupying the same seating position as another passenger or the driver.	RR 263B(2)	395	3 (three)
2593	Passenger 16 years or older occupying same seating position as another passenger or the driver.	RR 263B	395	
2092	Passenger 16 years or older failing to occupy a seating position with an approved seatbelt or failing to wear the approved seatbelt or both.	RR 265(1)	395	
2541	Travel in or on part of motor vehicle not designed for carriage of passengers or goods.	RR 268(1)	395	
2542	Travel improperly seated or unrestrained in or on part of motor vehicle designed for carriage of goods.	RR 268(2)	395	
2544	Passenger on motor bike/sidecar not wearing helmet.	RR 270(2)	395	
2545	Pillion passenger not properly seated on motorbike.	RR 271(2)	395	
	Passenger riding in a sidecar not seated safely.	RR 271(5B)		
2574	Holder of motor cycle learner permit carrying pillion passenger.	RS(D)R 59(2)(b)	593	3 (three)
3130	Ride miniaturised motor cycle on a road or road related area.	RSA 65C(1)	988	
7386	Driver failing to ensure passenger under 16 years old appropriately secured.	RR 266(1)	395	3 (three)
8358	Rider improperly carry pillion/sidecar passenger on a motor bike.		593	3 (three)
	• 271(3) – ride a motor bike with a passenger not seated astride and facing forward or with both feet not on the footrests provided.	RR 271(3)		
	• 271(4) – ride a motor bike with more than one passenger (excluding any passenger in a sidecar).	RR 271(4)		
	• 271(5) – ride a motor bike with more passengers in the sidecar than it was designed to carry.	RR 271(5)		
	• 271(5A) – ride a motor bike with a passenger under 8 years old (excluding any passenger in a sidecar).	RR 271(5A)		
8371	Leading an animal while driving a vehicle.		198	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	• 301(1) – driving a motor vehicle whilst leading an animal, including tethering the animal to the motor vehicle.	RR 301(1)		
	• 301(2) – being a passenger in, or on any part of, a moving motor vehicle whilst leading an animal.	RR 301(2)		
	• 301(3) – riding a bicycle whilst leading an animal, including tethering the animal to the bicycle.	RR 301(3)		
8379	• 301(4) – The rider of an electric scooter must not lead an animal, including by tethering the animal to the electric scooter.	RR 301(4)	395	3 (three)
	Carry unrestraint passenger - goods vehicle.			
	• 268(4A) – Driver travelling with a passenger in or on a part of motor vehicle not designed for the carriage of passengers or goods.	RR 268(4A)		
8382	• 268(4B) – Driver carrying passenger seated or unrestrained in or on a part of motor vehicle designed for carriage of goods.	RR 268(4B)	395	
	Rider not ensuring sidecar passenger properly seated.	RR 271(5C)		

Traffic – Drink and Drug Driving Licence Cancellation & Disqualification

Code	Offence	Reference	Penalty	Cancel and Disqualify (2093, 1991)
1991 (see note below)	Drive or be in charge of a motor vehicle with – (a) blood alcohol level of 0.05 or more but less than 0.07 g/100ml; or (b) breath alcohol level of 0.05 or more but less than 0.07g/210 litres of exhaled air – and - (c) RSA 52 (zero blood or breath alcohol) does not apply to the person; and (d) the person holds a full driver licence (or would hold a full driver licence but for the person's failure to renew it) and (e) the person is aged 26 years or older at the time of the traffic infringement.	RSA 49	593	3 months
1999	Drive or be in charge of a motor vehicle with prescribed concentration of drugs or more than the prescribed concentration of drugs present in blood or oral fluid.	RSA 49	593	6 month suspension
2093	Drive or be in charge of motor vehicle with unlawful blood alcohol level of less than 0.05g/100ml or breath alcohol level of less than 0.05g/210 litres of exhaled air while holding a full driver licence. (for probationary and learner drivers see code 8321). NOT TO BE ISSUED FOR READINGS BELOW 0.02g/100ml OF BLOOD or 0.02g/210 litres OF EXHALED AIR. - BRIEF FOR NON AUTHORISATION TO BE SUBMITTED IN THESE CIRCUMSTANCES.	RSA 49	494	3 months
7389	Consume intoxicating liquor while driving or in charge of a motor vehicle.	RSA 49B	395	
7390	Consume alcohol as a commercial driving instructor or a supervising driver.	RSA 49C	395	
1992 (see note below)	Drive or be in charge of a motor vehicle with – (a) blood alcohol level of 0.05 or more but less than 0.07g/100ml; or (b) breath alcohol level of 0.05 or more but less than 0.07g/210 litres of exhaled air– and - (c) RSA 52 (zero blood or breath alcohol) does not apply to the person; and (d) The person holds a full driver's licence; and (e) The person is aged under 26 years at the time of the infringement.	RSA 49	593	6 months
1994 (see note below)	Drive or be in charge of motor vehicle with – (a) blood alcohol level of 0.05 or more but less than 0.07 g/100ml; or (b) breath alcohol level of 0.05 or more but less than 0.07g/210 litres of exhaled air– and RSA 52 (zero blood or breath alcohol) applies to the person.	RSA 49	593	6 months
1996	Drive or be in charge of motor vehicle with blood alcohol level of 0.07 or more but less than 0.10g/100ml or breath alcohol level of 0.07 or more but less than 0.10g/210 litres of exhaled air.	RSA 49	593	6 months
2095	Drive or be in charge of motor vehicle with blood alcohol level of 0.10 or more but less than 0.11g/100ml or breath alcohol level of 0.10 or more but less than 0.11g/210 litres of exhaled air.	RSA 49	840	10 months
2096	Drive or be in charge of motor vehicle with blood alcohol level of 0.11 or more but less than 0.12g/100 ml or breath alcohol level of 0.11 or more but less than 0.12g/210 litres of exhaled air.	RSA 49	840	11 months
2097	Drive or be in charge of motor vehicle with blood alcohol level of 0.12 or more but less than 0.13g/100 ml or breath alcohol level of 0.12 or more but less than 0.13g/210 litres of exhaled air.	RSA 49	840	12 months
2098	Drive or be in charge of motor vehicle with blood alcohol level of 0.13 or more but less than 0.14g/100 ml or breath alcohol level of 0.13 or more but less than 0.14g/210 litres of exhaled air.	RSA 49	840	13 months
2099	Drive or be in charge of motor vehicle with blood alcohol level of 0.14 or more but less than 0.15g/100 ml or breath alcohol level of 0.14 or more but less than 0.15g/210 litres of exhaled air.	RSA 49	840	14 months
8321	Drive or be in charge of motor vehicle with unlawful blood alcohol level of less than 0.05g/100ml or breath alcohol level of less than 0.05g/210 litres of exhaled air while not holding a full driver licence [NOT TO BE ISSUED FOR READINGS BELOW 0.02g/100ml OF BLOOD or 0.2g/210 litres OF EXHALED AIR - BRIEF FOR NON AUTHORISATION TO BE SUBMITTED IN THESE CIRCUMSTANCES].	RSA 49	494	3 months

Note: Code 1991 to be issued to drivers that are **aged 26 years or older**. (full licence or would have held a full driver licence but for the person's failure to renew).
Code 1992 to be issued to drivers that are **aged under 26 years**. (full licence).
Code 1994 applies to **zero blood or breath alcohol** conditions.
Codes 2095 to 2099 - (Infringement Notices for **BAC of 0.10 or more**) must not be issued where a vehicle is to be seized/surrendered under RSA s.84.
Proceed by way of a Charge.

Traffic – Signals

Code	Offence	Reference	Penalty	Demerit Pts
2101	Fail to obey traffic lights.		494	3 (three)
	• 56(1) – red traffic light, fail to stop at stop line or if no stop line the nearest or only traffic lights.	RR 56(1)		
	• 56(2) – red traffic arrow fail to stop at stop line or if no stop line the nearest or only traffic arrows.	RR 56(2)		
	• 57(2) – yellow traffic arrow fail to stop at the stop line or if no stop line the nearest or only traffic lights or before entering the intersection.	RR 57(2)		
	• 59(1) – enter an intersection or marked foot crossing while the traffic lights are showing a red light.	RR 59(1)		
	• 60 – enter an intersection in the direction of a traffic arrow while the traffic arrow is showing a red light.	RR 60		
	• 61(2) – enter an intersection against red or yellow lights that changed to red or yellow while the driver was stopped and had not entered the intersection.	RR 61(2)		
	• 152(1) – drive in marked lane with overhead lane control device displaying a red diagonal cross.	RR 152(1)		
	• 281(a) – driver of public bus when facing red B lights, failing to stop at stop line or if no stop line at the B lights [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 281(a)		
	• 281(b) – driver of a public bus failing to stop at red B light [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 281(b)		
	• 282(a) – driver of a public bus when facing yellow B lights, failing to stop at stop line or if no stop line at the B lights if the driver can do so safely [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 282(a)		
	• 282(b) – driver of a public bus when facing yellow B lights if not stop line fail to stop at the lights if the driver can do so safely [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 282(b)		
	• 284(a) – driver of public bus proceeding after stopping for a red or yellow B light before a white B light shows [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 284(a)		
	• 284(b) – driver of public bus proceeding after stopping for a red or yellow B light, if not white B light shows, before the traffic lights change to green [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 284(b)		
2149	• 286(2)(a) – driver of a public bus enter intersection after stopping, where the B lights or traffic arrows change to red or yellow, without a white B light [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 286(2)(a)	494	
	• 286(2)(b) – driver of a public bus enter intersection after stopping, where the B lights or traffic arrows change to red or yellow, where there is no B light showing, without a green light [Also applies to driver of any vehicle if driver is in bus lane to which B light apply].	RR 286(2)(b)		
	• 286(2)(c) – driver of a public bus enter intersection after stopping where the B lights or traffic arrows change to red or yellow, when turning at the intersection without a white traffic arrow [Also applies to driver of any vehicle if driver is in bus lane to which B light apply].	RR 286(2)(c)		
	Failure of driver of tram to obey T light.			
	• 274 – when facing red T lights failing to stop at stop line or if no stop line failing to stop at the nearest T lights [Also applies to public bus using tram tracks].	RR 274		
	• 275 – when facing yellow T lights failing to stop at stop line or if no stop line failing to stop at the nearest T lights if the driver can stop safely [Also applies to public bus using tram tracks].	RR 275		
2149	• 277 – proceeding after stopping for a red or yellow T light before a white T light is showing or where there is no white T light before the traffic lights change to green and no other T light was showing [Also applies to public bus using tram tracks].	RR 277	494	
	• 279(2) – driver of tram stopped at intersection and while driver is stopped the T lights or traffic arrows turn to yellow or red or turn off and driver has not entered intersection / proceed before a white T light is showing / proceed where no T light is showing and traffic lights not showing a green light / proceed before a white traffic arrow shows and the driver is turning in that direction [Also applies to public bus using tram tracks].	RR 279(2)		
	• 279(3) – driver of tram fail to leave intersection as soon as the driver can do so safely when T lights or traffic arrows change to yellow or red, or turn off while the tram is stopped and within the intersection [Also applies to public bus using tram tracks].	RR 279(3)		

Traffic – Signals (Cont.)

Code	Offence	Reference	Penalty	Demerit Pts
8368	Fail to obey yellow traffic lights or disobey yellow traffic lights (fail to stop at the stop line or if no stop line the nearest or only traffic lights or before entering the intersection if the driver can do so safely).	RR 57(1)	494	3 (three)
8360	Fail to give way when turning at a flashing yellow light at an intersection (fail to give way when turning in the direction indicated by a flashing yellow traffic arrow).	RR 64	346	3 (three)
8372	Driver fail to leave intersection as soon as possible.		395	3 (three)
	• 57(3) – fail to leave an intersection when safe if entered intersection on a yellow traffic light or arrow.	RR 57(3)		
	• 60A(1) – allow any part of motor vehicle to enter a bicycle storage area that is before traffic lights that are showing a red traffic light.	RR 60A(1)		
	• 60A(2) – allow any part of motor vehicle to enter a bicycle storage area that is before traffic arrows that are showing a red traffic arrow and the driver is turning in the direction indicated by the arrow.	RR 60A(2)		
	• 286(3) – driver of a public bus fail to leave intersection as soon as possible if B lights change to red or yellow, or turn off while the driver is within the intersection [Also applies to driver of any vehicle if driver is in bus lane to which B lights apply].	RR 286(3)		

Traffic – Body Corporate

Code	Offence	Reference	Penalty	Demerit Pts
1947	Exceed speed limit in a vehicle other than a heavy vehicle by 10 km/h or more but less than 15 km/h (Body Corporate).	RR 20	3952	
1948	Exceed speed limit in a vehicle other than a heavy vehicle by 15 km/h or more but less than 25 km/h (Body Corporate).	RR 20	3952	
1949	Exceed speed limit in a vehicle other than a heavy vehicle by 25 km/h or more but less than 30 km/h (Body Corporate).	RR 20	3952	
1950	Exceed speed limit in a vehicle other than a heavy vehicle by 30 km/h or more but less than 35 km/h (Body Corporate).	RR 20	3952	
1951	Exceed speed limit in a vehicle other than a heavy vehicle by 35 km/h or more but less than 40 km/h (Body Corporate).	RR 20	3952	
1952	Exceed speed limit in a vehicle other than a heavy vehicle by 40 km/h or more but less than 45 km/h (Body Corporate).	RR 20	3952	
1954	Exceed speed limit in a vehicle other than a heavy vehicle in a 110 km/h zone by 20 km/h or more but less than 25 km/h (Body Corporate).	RR 20	3952	
1955	Exceed speed limit in a heavy vehicle by less than 10 km/h (Body Corporate).	RR 20	3952	
1956	Exceed speed limit in a heavy vehicle by 10 km/h or more but less than 15 km/h (Body Corporate).	RR 20	3952	
1957	Exceed speed limit in a heavy vehicle by 15 km/h or more but less than 25 km/h (Body Corporate).	RR 20	3952	
1958	Exceed speed limit in a heavy vehicle by 25 km/h or more but less than 30 km/h (Body Corporate).	RR 20	3952	
1959	Exceed speed limit in a heavy vehicle by 30 km/h or more but less than 35 km/h (Body Corporate).	RR 20	3952	
1960	Exceed speed limit in a heavy vehicle by 35 km/h or more but less than 40 km/h (Body Corporate).	RSA 65B	3952	
1961	Exceed speed limit in a heavy vehicle by 40 km/h or more but less than 45 km/h (Body Corporate).	RSA 65B	3952	
1962	Exceed speed limit in a heavy vehicle by 45 km/h or more (Body Corporate).	RSA 65B	3952	
1963	Fail to obey traffic lights.		3952	
	• 59(1) – entering intersection while red light showing (Body Corporate).	RR 59(1)		
	• 60 – entering intersection while red arrow showing (Body Corporate).	RR 60		
1964	Unlawfully enter level crossing (Body Corporate).	RR 121,122,123	3952	
1965	Exceed speed limit in a vehicle other than a heavy vehicle by less than 10 km/h (Body Corporate).	RR 20	3952	
1967	Exceed speed limit in a heavy vehicle by 20 km/h or more but less than 25km/h (110km/h limit) (Body Corporate).	RR20	3952	

Traffic – Use of Devices

Code	Offence	Reference	Penalty	Demerit Pts
2494	Driver having a portable device resting on the driver's body, clothes or lap.	RR 304J(3)	593	4 (four)
2497	Driver touching a portable device.	RR 304J(1)	593	4 (four)
2594	Person in a motor vehicle operating an inbuilt device, a mounted device or a motor bike helmet device. NOTE: ISSUING OF THESE INFRINGEMENTS IS SUBJECT TO SUBSECTIONS 2 AND 5.	RR 304H(1)	593	4 (four)
2595	Driver operating a wearable device.	RR 304I(1)	593	4 (four)
2596	Driver looking at a wearable device display being operated by another person.	RR 304I(4)	593	4 (four)
2597	Driver looking at a portable device display being operated by another person.	RR 304J(2)	593	4 (four)
2598	Fully licensed driver operating a portable device other than by touching the device.	RR 304K(1)	593	4 (four)
2599	Fully licensed driver operating a portable device where likely to distract another driver.	RR 304K(2)	593	4 (four)
2600	Driver of a motor vehicle who is not a fully licensed driver using a portable device or permitting ongoing activity on the portable device. NOTE: REGARDLESS OF LICENCE TYPE, IF PORTABLE DEVICE IS PHYSICALLY TOUCHED, THEN CODE 2497 SHOULD BE USED.	RR 304KA	593	4 (four)

TRAFFIC – PART 3

Table of Abbreviations

RSA – Road Safety Act 1986
RS(D)R – Road Safety (Drivers) Regulations 2019
RS(TM)R – Road Safety (Traffic Management) Regulations 2019
RS(V)R – Road Safety (Vehicles) Regulations 2021
RR – Road Safety Road Rules 2017
T(CM)A – Transport (Compliance and Miscellaneous) Act 1983

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Traffic – Registration and Licensing

Code	Offence	Reference	Penalty	Suspension	Demerit Pts
0960	Use of general identification mark or trade plates other than in accordance with the Regulations.		395		
	• 160(1) – A driver of a vehicle must not use a general identification mark or trade plates otherwise than in accordance with this Division.	RS(V)R 160(1)			
	• 160(2) – A person to whom a general identification mark is assigned must not cause or permit the general identification mark or trade plates to be used otherwise than in accordance with this Division.	RS(V)R 160(2)			
2104	Fail to return licence or learner permit upon suspension or cancellation (after being served or given a notice of the suspension or cancellation).	RS(D)R 83	198		
2105	Unlicensed driving where driver, within preceding 6 months held a Non-Vic Licence/Permit, was authorised under Regs to drive and had resided in Victoria for 12 months or less and the Licence/Permit wasn't cancelled for a driving offence.	RSA 18(1)	494		
2106	Unlicensed driving where driver held applicable Licence/Permit before the offence but failed to renew it for 6 months or less and the Licence/Permit wasn't cancelled for a driving offence.	RSA 18(1)	494		
2107	Unlicensed driving in circumstances other than those referred to in codes 2105 and 2106.	RSA 18	988		
2108+	Fail to produce driver licence or learner permit on request or within 7 days.	RSA 59(1)(a) 1(ab) T(CM)A 216(1)(a) AND (2)	198		
2109	Probationary driver failing to have licence in his or her possession while driving or in charge of a motor vehicle.	RSA 21(1A)	198		
2111	Breach of a condition of driver licence or permit in Schedule 2 to the RS(D)Rs (other than E condition). NOTE: DO NOT ISSUE FOR BREACH OF ALCOHOL INTERLOCK CONDITION - ISSUE PROCESS UNDER s.50AAD, ROAD SAFETY ACT 1986.	RSA 18AA(1)	198		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2112	Fail to display "L" plates - select most appropriate offence below and only issue one notice.		198	1 (one)
	• 48(1)(a) – Fail to display "L" plate to the rear when and as required.	RS(D)R 48(1)(a)		
	• 48(1)(b) – Fail to display "L" plate to the front (not being a motorcycle).	RS(D)R 48(1)(b)		
2114	Display "P" plates when not required.	RS(D)R 56(2)	198	
2115	Display "L" plates when not required.	RS(D)R 48(3)	198	
2116	Holder of driver licence or learner permit fail to notify secretary of change of name or address.	RS(D)R 68(1)	198	
	The registered operator of a vehicle must notify the Secretary within 14 days after a change in (a) the vehicle's garage address; or (b) the operator's name, residential address or postal or email address for service of notices.	RS(V)R 70(1)		
2129	Fail to display "P" plates - select most appropriate offence below and only issue one notice.		198	3 (three)
	• 56(1)(a) – Fail to display "P" plate to the rear when and as required.	RS(D)R 56(1)(a)		
	• 56(1)(b) – Fail to display "P" plate to the front (not being a motorcycle).	RS(D)R 56(1)(b)		
2159	Drink/Drug driving offender to whom a zero BAC requirement applies failing to have licence in person's possession while driving or in charge of a motor vehicle.	RSA 19(7)	99	
2160	Interstate licence or permit holder subject to interstate alcohol interlock requirement failing to have licence or permit in their possession while driving or in charge of a motor vehicle.	RSA 19(7A)	99	
8322	Fail to display driver under instruction plate.	RS(D)R 9(3)	198	
8323	Fail to carry notice explaining code condition (if required to carry notice by the Corporation).	RS(D)R 29(4)	198	
8324	Learner driver towing vehicle or trailer.	RS(D)R 47(1)	395	
8325	Learner driver driving without appropriate supervising driver - Note - Not to be issued when impounding the motor vehicle - Submit Brief of Evidence.	RSA 18AB(1)	988	3 (three)
8326	Learner driver driving tractor without meeting conditions.	RS(D)R 47(3)	395	
	A learner driver must not drive a tractor on a highway unless- (a) the learner permit held by the learner driver authorises the learner driver to drive a car; and (b) the tractor is being used solely in connection with agriculture, horticulture, dairying, pastoral or other similar pursuits, or commercial fishing; and (c) the learner driver has had 10 hours of experience driving a tractor.			
8328	Fail to notify of permanent or long-term injury or illness. If the holder of a driver licence or learner permit, or a person who is exempt from holding a driver licence or learner permit under regulation 17, is affected by a permanent or long-term injury or illness that may impair the person's ability to drive safely, the person must, as soon as practicable after becoming aware of the injury or illness, notify the Corporation about it.	RS(D)R 68(2)	198	
8374	Experienced driver sitting next to learner driver who is failing to comply with "L" plate requirements.	RS(D)R 48(2)	198	
8377	Probationary driver who drives a probationary prohibited vehicle on a highway.	RS(D)R 58(1)	395	3 (three)
8386	Use of vehicle where number plate not affixed or displayed in accordance with regulations.		395	3 (three)
	• 65(1) – A driver of a vehicle must not use the vehicle on a highway unless. (a) the vehicle bears number plates affixed and displayed in accordance with this Division; or (b) an authority under regulation 66 applies to the vehicle.	RS(V)R 65(1)		
	• 65(2) – Unless exempt under these Regulations or under any other law, the registered operator of a vehicle must ensure that the vehicle is not used on a highway without bearing number plates that - (a) have been issued by the Secretary or, in the case of a national heavy vehicle number plate, issued in another jurisdiction; and (b) display a registration number properly assigned to the vehicle and; (c) are affixed and displayed in accordance with this Division.	RS(V)R 65(2)		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
8384	Use of vehicle with altered, incorrect or misrepresented number plate.		395	
	• 278(1) – A person must not use a vehicle displaying an altered number plate on a highway.	RS(V)R 278(1)		
	• 278(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying an altered number plate.	RS(V)R 278(2)		
	• 278(3) – An owner of an unregistered vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying an altered number plate.	RS(V)R 278(3)		
	• 278(4) – A person other than a person referred to in subregulation (1), (2) or (3) who has control or use of a vehicle must not cause or permit the vehicle to be used on a highway while displaying an altered number plate.	RS(V)R 278(4)		
	• 278 (5) – A person must not affix or cause to be affixed or permit another person to affix an altered number plate to a vehicle which is used on a highway by any person.	RS(V)R 278(5)		
	• 280(1) – A person must not use a vehicle on a highway while that vehicle is displaying a number plate other than the number plate issued for the vehicle in accordance with these Regulations or another law.	RS(V)R 280(1)		
	• 280(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying a number plate other than the number plate issued for the vehicle in accordance with these Regulations or another law.	RS(V)R 280(2)		
	• 280(3) – The owner of an unregistered vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying a number plate.	RS(V)R 280(3)		
	• 280(4) – A person other than a person referred to in subregulation (1), (2) or (3), who has control or use of a vehicle must not cause or permit the vehicle to be used on a highway while displaying a number plate other than the number plate issued for the vehicle in accordance with these Regulations or another law.	RS(V)R 280 (4)		
	• 280(5) – A person must not affix or cause to be affixed or permit another person to affix a number plate that is not the number plate issued for the vehicle in accordance with these Regulations or another law to a vehicle which is used on a highway by any person.	RS(V)R 280(5)		
	• 281(1) – A person must not use a vehicle on a highway while displaying a representation of a number plate that is likely to be mistaken for a number plate displayed in accordance with these Regulations.	RS(V)R 281(1)		
	• 281(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying a representation of a number plate that is likely to be mistaken for a number plate displayed in accordance with these Regulations.	RS(V)R 281(2)		
	• 281(3) – The owner of an unregistered vehicle must take reasonable steps to ensure that the vehicle is not used on a highway while displaying a representation of a number plate that is likely to be mistaken for a number plate displayed in accordance with these Regulations.	RS(V)R 281(3)		
	• 281(4) – A person other than a person referred to in subregulation (1), (2) or (3) who has control or use of a vehicle must not cause or permit the vehicle to be used on a highway while displaying a representation of a number plate that is likely to be mistaken for a number plate displayed in accordance with these Regulations.	RS(V)R 281(4)		
	• 281(5) – A person must not affix or cause to be affixed or permit another person to affix a representation of a number plate to a vehicle which is used on a highway by any person if the representation is likely to be mistaken for a number plate displayed in accordance with these Regulations.	RS(V)R 281(5)		
2119	Use of vehicle where club permit label not properly affixed.		198	
	• 182(2) – A driver of a vehicle operated under a club permit must not use that vehicle on a highway if a club permit label is not affixed in accordance with subregulation (1) unless the use is permitted under these Regulations or any other law.	RS(V)R 182(2)		
	• 182(3) – A club permit holder of a vehicle operated under a club permit must ensure that the vehicle is not used on a highway if a club permit label is not affixed in accordance with subregulation (1) unless the use is permitted under these Regulations or under any other law.	RS(V)R 182(3)		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2120	Fail to return number plates.		198	
	75(3) – A person given a notice under subregulation (2)(a) must comply with the notice.	RS(V)R 75(3)		
	85(2) – If the registered operator of a vehicle is given a notice under subregulation (1), the registered operator must return the vehicle's number plates to the Secretary no later than the date specified in the notice.	RS(V)R 85(2)		
	133 – If the registration of a vehicle is cancelled by the Secretary under regulation 132, the registered operator of the vehicle, if required by the Secretary, must return the vehicle's number plates to the Secretary or an agent nominated by the Secretary within 14 days after the date of cancellation specified in the notice given to the registered operator under Regulation 132(3).	RS(V)R 133		
2121	Fail as disposer of vehicle to complete transfer application. 89(1) – A person who disposes of a registered vehicle (a disposer) to another person (an acquirer), immediately after disposing of the vehicle, must complete an application for transfer of registration as the disposer in the approved application form.	RS(V)R 89(1)	790	
2122	Fail to comply with repossession or restoration requirements.		198	
	93(1) – A holder of a security interest registered under the Personal Property Securities Act 2009 of the Commonwealth in relation to a registered vehicle must lodge with the Secretary a completed application for transfer of registration as the acquirer in the approved application form within 14 days after taking possession of the vehicle from the registered operator.	RS(V)R 93(1)		
	93(2) – If a person referred to in subregulation (1) subsequently disposes of the vehicle, the person must lodge with the Secretary a further completed application for transfer of registration as the acquirer in the approved application form within 14 days after disposing of the vehicle.	RS(V)R 93(2)		
2123	Fail as dealer to give a current roadworthy certificate to person who is not a dealer. 90(1) – A dealer who disposes of a registered vehicle to a person who is not a dealer must give to the person a current certificate of roadworthiness for the vehicle before the person takes possession of the vehicle, unless exempt under regulation 87 or 88.	RS(V)R 90(1)	395	
2125	Own or use unregistered motor vehicle with 2 axles (other than a motor cycle).	RSA 7	988	
2126	Own or use unregistered motor vehicle with 3 axles.	RSA 7	1778	
2127	Own or use unregistered motor vehicle with 4 axles.	RSA 7	1778	
2128	Own or use unregistered motor vehicle with 5 or more axles.	RSA 7	1778	
2533	Holder of motor cycle licence for less than 3 years carrying a pillion passenger.	RS(D)R 59(1)(b)	593	3 (three)
2534	Holder of motor cycle licence for less than 3 years driving without headlights on.	RS(D)R 59(1)(c)	198	
2535	Holder of motor cycle learner permit driving without headlights on.	RS(D)R 59(2)(c)	198	
2536	Holder of motor cycle learner permit driving without wearing a securely fitted and fastened approved high visibility vest or jacket.	RS(D)R 59(2)(d)	198	1 (one)
2537	Holder of motor cycle licence for less than 3 years driving motorcycle that is not a learner approved motorcycle.	RS(D)R 59(1)(a)	395	3 (three)
2538	Holder of a motorcycle licence for less than 3 years towing another vehicle.	RS(D)R 60	395	
2546	P1 probationary licence holder towing another vehicle or trailer.	RS(D)R 60	395	
2569	P1 probationary driver or corresponding novice driver driving a motor vehicle with more than one peer passenger. "Corresponding Novice Driver" means a person who- (a) holds a driver licence issued on a probationary basis under a corresponding law of another jurisdiction (Australian State or internal Territory); and (b) who has held that licence for less than 12 months and was under 21 years of age when that licence was granted to that person. NOTE: DO NOT ISSUE WHERE THERE IS AN EXPERIENCED DRIVER SEATED BESIDE THE DRIVER – EVEN IF THAT EXPERIENCED DRIVER IS LESS THAN 22 YEARS OF AGE.	RS(D)R 61(1)	593	3 (three)
2572	Holder of motor cycle learner permit driving motor cycle that is not a learner approved motor cycle.	RS(D)R 59(2)(a)	395	3 (three)
2576	Produce non-Victorian licence or permit.	RSA 18A(2)	395	

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2601	Own or use unregistered motor cycle with engine capacity of 60cc or less.	RSA 7	198	
2602	Own or use unregistered motor cycle with engine capacity of 61cc or more but less than 501cc.	RSA 7	593	
2603	Own or use unregistered motor cycle with engine capacity of 501cc or more.	RSA 7	988	
2604	Own or use an unregistered trailer that is not a heavy vehicle.	RSA 7	198	
2605	Own or use an unregistered trailer that is a heavy vehicle with 1 axle.	RSA 7	790	
2606	Own or use an unregistered trailer that is a heavy vehicle with 2 axle.	RSA 7	1186	
2607	Own or use an unregistered trailer that is a heavy vehicle with 3 or more axles.	RSA 7	1778	
2608	Person aged less than 26 years failing to have licence in his or her possession while driving or in charge of motor vehicle.	RSA 19(8)	99	
2609	Holder of learner permit failing to have learner permit in his or her possession while driving or in charge of motor vehicle.	RSA 22(6)	99	
2815	Fail to notify the secretary of change to description of vehicle within 14 days.	RS(V)R 70(2)	198	
2816	Fail to notify the secretary of change to vehicle or use of vehicle.	RS(V)R 70(3)	395	
2817	Use, or permit the use of, a conditionally registered vehicle without carrying a certificate of approved operations in the vehicle.	RS(V)R 49(8)	395	
2818	Alter, deface, remove, substitute or tamper with a vehicle identifier or an engine identification number without the written permission of the secretary.	RS(V)R 30	395	
2819	Fail to inform the secretary within 7 days about the alteration, defacement, removal or substitution of, or tampering with, a vehicle identifier or engine identification number.	RS(V)R 31(2)	198	
2827	Fail to present vehicle for inspection if requested by the secretary.		395	
	• 31(3) – The registered operator of the vehicle must present the vehicle to the Secretary or an authorised vehicle inspector for inspection, if requested by the Secretary.	RS(V)R 31(3)		
	• 47(4) – A person must comply with a notice given under subregulation (1) or (3), as the case requires.	RS(V)R 47(4)		
2828	Fail to apply to the secretary within 14 days for replacement of number plate that has been lost, damaged, destroyed or stolen.	RS(V)R 61(1)	198	
2829	Fail to lodge information with the secretary.		790	
	• 101(4) – An insurer or self-insurer must lodge with the Secretary the information specified in subregulation (3): (a) before the insurer or self-insurer disposes of the motor vehicle and within 7 days after the relevant date; or (b) within the later time approved by the Secretary and notified to the insurer or self-insurer, either generally or in a particular case.	RS(V)R 101(4)		
	• 102(1) – A motor wrecker must lodge with the Secretary the usual information in the approved application form for any motor vehicle that is demolished or dismantled in the course of the business carried on by the motor wrecker.	RS(V)R 102(1)		
	• 102(2) – A motor wrecker must lodge with the Secretary the usual information required by subregulation (1). (a) before the motor wrecker disposes of the part or parts of the motor vehicle on which the vehicle identifier is located and within 7 days after the relevant date; or (b) within the later time approved by the Secretary and notified to the motor wrecker, either in a particular case or generally.	RS(V)R 102(2)		
	• 103(1) – A motor car trader must lodge with the Secretary the usual information in the approved application form for each motor vehicle that is in the care, custody or control of the motor car trader in the course of the business carried on by the motor car trader, if the motor car trader knows, or ought reasonably to know, that the motor vehicle is a written-off vehicle which has not already been reported to the Secretary.	RS(V)R 103(1)		
2830	Fail as a seller who sells written off vehicle to inform purchaser that vehicle is a written off vehicle.	RS(V)R 104(1)	395	
2831	Fail to affix label to written-off vehicle with 7 days.		988	
	• 105(1) – An insurer or self-insurer must affix to a motor vehicle that is a statutory write-off a notice or label in the approved form within 7 days after the relevant date.	RS(V)R 105(1)		
	• 106(1) – A motor wrecker or motor car trader, who knows or ought reasonably to know that a motor vehicle in the care, custody or control of the motor wrecker or motor car trader in the course of the person's business is a motor vehicle that is a statutory write-off, must affix to the motor vehicle a notice or label in the approved form within 7 days after the relevant date.	RS(V)R 106(1)		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2832	Fail as a club permit holder to comply with club log book obligations.		494	
	183(2) – On each day that a vehicle operated under the club permit is driven outside the vehicle's local zone, the club permit holder must ensure that the next available entry in the club log book is completed before beginning the journey.	RS(V)R 183(2)		
	183(4) – A club permit holder must not complete or partially complete entries in a club log book which relate to a future day.	RS(V)R 183(4)		
	183(5) – A club permit holder must ensure that, if a club permit is a 45 day club permit, only the first 45 entries in the club log book are used, unless a second 45 day club permit is issued for the club permit period and affixed inside the club log book.	RS(V)R 183(5)		
	183(6) – A club permit holder must ensure that, if all available entries in a club log book have been completed, or if the club permit has expired or been cancelled, the vehicle under the club permit must not be driven outside the vehicle's local zone until a new club permit is issued.	RS(V)R 183(6)		
2833	Cause or permit driver to fail to comply with club log book obligations.	RS(V)R 184	198	
2834	Fail to ensure vehicle under a club permit is not used for hire or reward or as a commercial passenger vehicle.	RS(V)R 186	494	
2835	Fail to comply, or causing or permitting another person to fail to comply, with the operating conditions that apply to the use of a vehicle specified in a club permit.		198	
	188(1) – (1) If the Secretary imposes an operating condition on a club permit, the club permit holder must carry the certificate of approved operations in the vehicle operated under the club permit.	RS(V)R 188(1)		
	188(2) – A club permit holder must comply with the operating condition imposed on a club permit.	RS(V)R 188(2)		
	188(3) – A club permit holder must not cause or permit a person to fail to comply with an operating condition imposed on a club permit.	RS(V)R 188(3)		
	188(4) – The driver of a vehicle operated under a club permit must comply with any operating conditions imposed on a club permit that relate to the use of the vehicle as specified in the club permit.	RS(V)R 188(4)		
2836	Fail as disposer of vehicle to give the acquirer completed transfer application or certificate of roadworthiness.	RS(V)R 89(2)	198	
2837	Fail as an acquirer of vehicle from a dealer to complete transfer application and pay dealer application duty and applicable transfer fee.	RS(V)R 91(2)	395	
2838	Within 14 days after acquiring possession of the vehicle, lodge with the secretary, fail as acquirer of vehicle by legal process to complete and lodge transfer application, court order, applicable duty and applicable transfer fee.	RS(V)R 92	198	
2839	Fail as dealer to provide transfer application, applicable duty, applicable transfer fee or evidence relating to certificate of roadworthiness to the secretary. 90(2) – A dealer who disposes of a registered vehicle to a person who is not a dealer must lodge with the Secretary within 14 days after disposing of the vehicle— (a) a completed application for transfer of registration; and (b) any applicable duty; and (c) the applicable transfer fee; and (d) evidence that a current certificate of roadworthiness has been obtained for the vehicle, unless exempt under regulation 87 or 88.	RS(V)R 90(2)	790	

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty		Demerit Pts
2840	Fail to comply with written off vehicle requirements applicable to insurers, self-insurers, motor wreckers and motor car traders.		790		
	101(4) – An insurer or self-insurer must lodge with the Secretary the information specified in subregulation (3)— (b) within the later time approved by the Secretary and notified to the insurer or self-insurer, either generally or in a particular case: (a) before the insurer or self-insurer disposes of the motor vehicle and within 7 days after the relevant date or (b) within the later time approved by the Secretary and notified to the insurer or self-insurer, either generally or in a particular case.	RS(V)R 101(4)			
	102(1) – A motor wrecker must lodge with the Secretary the usual information in the approved application form for any motor vehicle that is demolished or dismantled in the course of the business carried on by the motor wrecker.	RS(V)R 102(1)			
	102(2) – A motor wrecker must lodge with the Secretary the usual information required by subregulation (1). (a) before the motor wrecker disposes of the part or parts of the motor vehicle on which the vehicle identifier is located and within 7 days after the relevant date; or (b) within the later time approved by the Secretary and notified to the motor wrecker, either in a particular case or generally.	RS(V)R 102(2)			
	103(1) – A motor car trader must lodge with the Secretary the usual information in the approved application form for each motor vehicle that is in the care, custody or control of the motor car trader in the course of the business carried on by the motor car trader, if the motor car trader knows, or ought reasonably to know, that the motor vehicle is a written-off vehicle which has not already been reported to the Secretary.	RS(V)R 103(1)			
	105(1) – (1) An insurer or self-insurer must affix to a motor vehicle that is a statutory write-off a notice or label in the approved form within 7 days after the relevant date.	RS(V)R 105(1)			
	106(1) – (1) A motor wrecker or motor car trader, who knows or ought reasonably to know that a motor vehicle in the care, custody or control of the motor wrecker or motor car trader in the course of the person's business is a motor vehicle that is a statutory write-off, must affix to the motor vehicle a notice or label in the approved form within 7 days after the relevant date.	RS(V)R 106(1)			
2841	Fail to disclose information to purchaser of written-off vehicle.	RS(V)R 104(1)	395		
2842	Fail as a person who ceases to be eligible for a general identification mark and trade plates to notify the secretary and return the trade plates.	RS(V)R 158	395		
2843	Fail as an authorised person to advise the secretary of unused certificate serial numbers after authorisation is revoked.	RS(V)R 15(1)	198		
2844	Fail to comply with the guidelines or directions given by the secretary in the completion of a test report.		198		
	263(1) – A licensed tester or an examining mechanic must complete a test report in accordance with: (a) any relevant guidelines made by the Secretary under regulation 9(3); and (b) any written directions given by the Secretary under regulation 251.	RS(V)R 263(1)			
	263(2) – A licensed tester or an examining mechanic must ensure that the results of an examination and test of a vehicle are entered on the test report at the time of examining and testing the vehicle.	RS(V)R 263(2)			
2845	Fail to comply with licensed tester requirements on expiry, surrender, suspension or cancellation of tester's licence.		198		
	244(2) – The person must cease all examinations and testing, and the issue of test reports and certificates, from the date of expiry, surrender, suspension or cancellation.	RS(V)R 244(2)			
	244(3) – If required by the Secretary or an authorised person, the person must return all books, unused forms and documents given to the person by the Secretary within 7 days of the date of expiry, surrender, suspension or cancellation.	RS(V)R 244(3)			
2846	Fail to comply with licensed tester signage requirements and restrictions.		198		
	248(1) – If required to do so by the Secretary, a licensed tester must display at the tester's premises a sign, approved or provided by the Secretary, indicating the person is a licensed tester.	RS(V)R 248(1)			
	248(2) – A person must not wholly or partly obscure a sign displayed under subregulation (1).	RS(V)R 248(2)			
	248(3) – A person must not alter or deface a sign displayed under subregulation (1).	RS(V)R 248(3)			
	248(4) – A person who is not a licensed tester must not, by displaying a sign or otherwise, indicate the person is a licensed tester.	RS(V)R 248(4)			

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2847	Fail to comply with general duties of licensed tester.		198	
	• 249(1) – A licensed tester must provide and maintain in a fully serviceable condition all the equipment and facilities required to examine and test vehicles in accordance with this Part.	RS(V)R 249(1)		
	• 249(2) – A licensed tester must ensure that a vehicle presented for examination and testing is examined and tested by a person who has the qualifications required under regulation 245(1).	RS(V)R 249(2)		
	• 249(3) – A licensed tester, if asked by a person presenting a vehicle for examination and testing, must produce evidence of being a licensed tester.	RS(V)R 249(3)		
	• 249(4) – A licensed tester must supervise the work of an examining mechanic.	RS(V)R 249(4)		
	• 249(5) – A licensed tester must comply with any written directions given by the Secretary under regulation 251.	RS(V)R 249(5)		
	• 249(6) – A licensed tester must issue a certificate of roadworthiness for any vehicle examined and tested at or from the tester's premises for which no cause of rejection has been disclosed:- (a) during an examination and test of the vehicle; or (b) if 2 examinations and test of the vehicle are carried out within 14 days, during a second examination and test.	RS(V)R 249(6)		
	• 249(7) – A licensed tester must give the Secretary written notice of any change of the trade name, location or proprietorship of the tester's business at least 14 days prior to the change.	RS(V)R 249(7)		
2848	• 249(8) – A licensed tester must give the Secretary written notice of any change of examining mechanic within 14 days after the change.	RS(V)R 249(8)	395	
	Fail as licensed tester to keep and provide records.			
	• 250(1) – A licensed tester must keep records of all tests and examinations for 7 years.	RS(V)R 250(1)		
	• 250(2) – On the request of the Secretary, a licensed tester must provide the records kept under subregulation (1) within 7 days after the request.	RS(V)R 250(2)		
2849	• 250(3) – At each premises used by a licensed tester to examine and test vehicles, the licensed tester must keep records that specify:- (a) the name and qualifications of each examining mechanic; and (b) the vehicles examined and tested at that premises; (c) the person who examined or tested each vehicle; and (d) the vehicles for which certificates of roadworthiness and test reports were issued.	RS(V)R 250(3)	198	
	Tester fail to follow directions.			
2850	• 251(2) – A licensed tester must ensure that the examination and test of a vehicle by the tester or an examining mechanic is in accordance with any directions given to the tester under subregulation (1).	RS(V)R 251(2)	198	
2850	Fail to operate at licenced premises. A licensed tester must ensure that all examinations and tests are carried out at or from the premises referred to in the licence.	RS(V)R 252	198	
2851	Fail to maintain certificates security.		198	
	• 256(1) – A licensed tester must take reasonable precautions to keep control of certificate of roadworthiness forms and test report forms given to the licensed tester by the Secretary.	RS(V)R 256(1)		
2852	• 256(2) – A licensed tester must take all reasonable precautions to prevent the improper use of the forms referred to in subregulation (1).	RS(V)R 256(2)	198	
2852	A person who has been given certificate of roadworthiness forms or test report forms by the Secretary must not transfer or deliver an unused form to another person.	RS(V)R 257(1)	198	
2853	Improper issuing of certificate.		198	
	• R258(3) – licensed tester or examining mechanic must not issue a certificate of roadworthiness for a vehicle unless – (a) the vehicle has been examined by the licensed tester or examining mechanic on that day and as required by this Part; and (b) the information specified in regulation 259 is recorded in the certificate of roadworthiness; and (c) the licensed tester or examining mechanic is satisfied that the vehicle is roadworthy.	RS(V)R 258(3)		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty		Demerit Pts
2854	Fail to record required details on certificate of roadworthiness and test report. (a) The date of the first examination and test and (b) the name and address of the person who presented the vehicle; and (c) the vehicle particulars.	RS(V)R 259	198		
2855	Fail to record incomplete examination and testing. (a) give the person who presented the vehicle a test report that states that the examination and test is incomplete. (b) keep a record of the incomplete test that includes the following information - (i) the serial number of the test report; (ii) the name and address of the person who presented the vehicle; (iii) the vehicle particulars". (c) the vehicle particulars.	RS(V)R 260	198		
2856	Fail to properly conduct and record examination and test.		198		
	262(1) – If no cause for rejection of a vehicle is disclosed at a first examination and test, the licensed tester or the examining mechanic must, on the day of the examination and test, complete the certificate of roadworthiness for the vehicle in accordance with— (a) any relevant guidelines made by the Secretary under regulation 9(3); and (b) any written directions given by the Secretary under regulation 251.	RS(V)R 262(1)			
	262(2) – If no cause for rejection of a vehicle is disclosed at a first examination and test, the licensed tester or the examining mechanic must, on the day of the examination and test, issue a test report and certificate of roadworthiness to the applicant.	RS(V)R 262(2)			
	262(3) – If a cause for rejection of a vehicle is disclosed at a first examination and test, the licensed tester or the examining mechanic must— (a) give a copy of the test report to the applicant on the day of the examination and test; and (b) if the vehicle is returned to the licensed tester within 14 days of the first examination and test, ensure that a second examination and test is made of each item rejected in the first examination and test.	RS(V)R 262(3)			
	262(4) – If a second examination and test is made under subregulation (3), the licensed tester or examining mechanic must ensure that the results of the second examination and test are entered in the panel corresponding to each item on the test report in accordance with regulation 262.	RS(V)R 262(4)			
	262(5) – If no cause for rejection is disclosed at a second examination and test, the licensed tester or the examining mechanic, on the day of the examination and test, must:- (a) complete the certificate of roadworthiness in accordance with regulation 258; and (b) issue a test report and certificate of roadworthiness to the applicant.	RS(V)R 262(5)			
	262(6) – If a cause for rejection is disclosed at a second examination and test, the licensed tester or examining mechanic must, on the day of the examination and test, issue a test report and give a copy of the test report to the applicant.	RS(V)R 262(6)			
	262(8) – A licensed tester or an examining mechanic must not conduct a second examination and test if the vehicle is not returned to the licensed tester within 14 days after the first examination and test.	RS(V)R 262(8)			
	263(1) – A licensed tester or an examining mechanic must complete a test report in accordance with— (a) any relevant guidelines made by the Secretary under regulation 9(3); and (b) any written directions given by the Secretary under regulation 251.	RS(V)R 263(1)			
	263(2) – A licensed tester or an examining mechanic must ensure that the results of an examination and test of a vehicle are entered on the test report at the time of examining and testing the vehicle.	RS(V)R 263(2)			
2857	Fail to present a vehicle for examination and testing by a licensed tester when a roadworthy certificate has been impounded.	RS(V)R 264(5)	395		
2858	Add, alter, remove or substitute equipment or fittings to a tested vehicle that has a current certificate of roadworthiness.	RS(V)R 265	198		
2859	Fail as acquirer of vehicle to complete and lodge transfer application, certificate of roadworthiness, applicable duty and transfer fee within 14 days.	RS(V)R 91(1)	198		

Traffic – Registration and Licensing (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2863	Fail to comply with guidelines or directions given by the secretary in the issue of a certificate.		395	
	36(2) – An authorised vehicle inspector must not issue a VASS approval certificate for the purposes of regulation 35 unless— (a) the vehicle has been inspected in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12; and (b) records of the inspection of the vehicle are kept in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12.	RS(V)R 36(2)		
	38(2) – An authorised vehicle inspector must not issue an AFSA certificate for the purposes of regulation 37 unless— (a) the motor vehicle has been inspected in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12; and (b) records of the inspection of the motor vehicle are kept in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12.	RS(V)R 38(2)		
	43(2) – An authorised vehicle inspector must not issue a certificate of vehicle identity for the purposes of regulation 42(2) unless— (a) the vehicle has been inspected in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12; and (b) records of the inspection of the vehicle are kept in accordance with the guidelines made under regulation 9(2) and written directions issued under regulation 12.	RS(V)R 43(2)		
	113(2) – An authorised vehicle inspector must not issue a VIV certificate for the purposes of regulation 112 for a vehicle unless— (a) the vehicle has been inspected in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12; and (b) records of the inspection of the vehicle are kept in accordance with the guidelines made under regulation 9(2) and written directions given under regulation 12.	RS(V)R 113(2)		
	275(2) – An authorised vehicle inspector must not issue a vehicle defect notice clearance certificate for the purposes of regulation 274(4) unless— (a) the vehicle has been inspected in accordance with the guidelines for verifying that a vehicle's defects have been rectified; and (b) records of the inspection of the vehicle are kept in accordance with the guidelines.	RS(V)R 275(2)		

Traffic – Miscellaneous

Code	Offence	Reference	Penalty	Demerit Pts
0951	Interfere or Interrupt funeral procession.	RR 77A	99	
2131	Reverse from median strip parking area.	RR 212(2)	198	
2132	Reverse when unsafe or further than is reasonable.		198	
	• 296(1) – reverse when not safe.	RR 296(1)		
	• 296(2) – reverse for further than is reasonable in the circumstances.	RR 296(2)		
2133	Drive motor vehicle on a path, nature strip, traffic island or dividing strip.		198	
	• 137(1) – drive on a dividing strip when not permitted.	RR 137(1)		
	• 288(1) – drive on a path when not permitted.	RR 288(1)		
	• 289(1) – drive on a nature strip adjacent to a length of road in a built-up area when not permitted.	RR 289(1)		
	• 290 – drive on a traffic island when not permitted.	RR 290		
2134	Fail to remove thing on road. • 293(2) – driver must remove the thing, or take action to have the thing removed, from the road as soon as the driver can safely do so (<i>example of things - fallen loads, oil or grease, debris from an accident, wheel locks</i>).	RR 293(2)	247	
2135	Leave motor vehicle unattended with keys in ignition, motor running, and brakes not secured or doors unlocked.	RR 213(1)	198	
2136	Fail to drive sufficient distance behind a vehicle.	RR 126	296	1 (one)
2137	Fail to obey traffic direction given by police officer or authorised person.	RR 304(1)	395	3 (three)
2138	Drive in a tram lane or tramway (excludes drivers of trams, tram recovery vehicles or public buses). • 155(1) – drive in a tram lane (part of a road with tram tracks that is between a tram lane sign and an end tram lane sign and is marked along the left side of the tracks by a continuous yellow line) unless driving a truck and it is necessary to drive in the tram lane to reach a place to drop off, or pick up, passengers or goods.	RR 155(1)	198	
2139	Enter intersection blocked/likely to be.		198	
	• 128 – Enter an intersection when the intersection is blocked or the road beyond the intersection is blocked.	RR 128		
	• 128A – Enter a crossing when the crossing is blocked or the road beyond the crossing is blocked.	RR 128A		
2140	Impede a tram.		198	
	• 76(1) – move into the path of a tram in a tram lane or on tram tracks with a broken or continuous yellow line.	RR 76(1)		
	• 76(2) – fail to move out of the path of a tram in a tram lane or on tram tracks with a broken or continuous yellow line as soon as the driver can do so safely.	RR 76(2)		
2144	An owner or a relevant nominated person failing to provide information when required. NOTE: ISSUE TO COMPANIES ONLY, NOT TO INDIVIDUALS.	RSA 60, 60A	1186	
2145	A person, other than a person referred to in regulation 274(4), must not remove or deface a vehicle defect label which has been affixed to a vehicle unless authorised to do so by: (a) the Secretary; or (b) an officer of a corresponding registration authority; or (c) an authorised officer.	RS(V)R 277	395	
2147	Use or permit use of light vehicle in breach of major defect notice.	RS(V)R 272(1)	790	3 (three)
2148	Use or permit use of light vehicle in breach of minor vehicle defect notice.	RS(V)R 272(1)	296	1 (one)
2522	Stop on a keep clear marking.	RR 96(1)	198	
2523	Ride motorbike more than two abreast.		198	
	• 151(1) – ride more than 2 abreast on a road other than a multi lane road when not permitted.	RR 151(1)		
	• 151(2) – ride more than 2 abreast in a marked lane when not permitted.	RR 151(2)		
2524	Drive over continuous white edge line.	RR 150	198	
2525	Drive motor vehicle with person in attached trailer.	RR 298(1)	395	
2527	Fail to comply with roundabout requirements.		346	3 (three)
	• 115(1) – fail to drive to the left of roundabout.	RR 115(1)		

Traffic – Miscellaneous (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2570	Careless Driving committed by the holder of a full driver licence. Note: for the offence of Careless Driving members may issue an Infringement Notice only if: - The member has interviewed the driver and made necessary enquiries to discount any other causes or reasons for the offending driving. - The driver has a full and current licence. - Whether or not the incident is a collision there must be no injury and minor damage only.	RSA 65	474	3 (three)
2143	Use vehicle that has been modified, does not comply with standards for registration. 293 – A person must not use on a highway a vehicle that has been modified from the condition it was in when first registered if the person has not complied with regulation 35 in respect of the modification. 294(1) – A person must not—(a) use on a highway a vehicle (whether or not registered) that does not comply with any standard for registration that is applicable to the vehicle, or that would be applicable if the vehicle were registered; or (b) cause or permit to be used on a highway a vehicle (whether or not registered) that does not comply with any standard for registration that is applicable to the vehicle, or that would be applicable if the vehicle were registered.	RS(V)R 293 RS(V)R 294(1)	790	
2860	Use, or cause or permit use of, unsafe vehicle. 295(1) – a person must not use a vehicle or a combination of vehicles on a highway if the vehicle or the combination of vehicles is not in a safe and roadworthy condition. 295(2) – a person must not cause or permit to be used a vehicle or a combination of vehicles on a highway if the vehicle is not, or the combination of vehicles is not, in a safe and roadworthy condition.	RS(V)R 295(1) RS(V)R 295(2)	790	
2861	Use motor vehicle with equipment or fitting projecting in a way likely to cause injury to another person, including motor vehicle attached to another vehicle with such projecting equipment or fitting.	RS(V)R 295(3)	198	
2862	Fail to give a vehicle defect notice, or cause a vehicle defect notice to be given, to the registered operator of the vehicle.	RS(V)R 270	198	
7394	Drive a vehicle on a road in an organised procession without permission.	RS(TM) R 27	198	
7395	Hold a race on a road without permission or not in compliance with the permission.	RS(TM)R 28(1)	198	
7396	Highway collection without permission.	RS(TM)R 31(1)	198	
8352	Drive unlawfully in a bicycle lane.	RR 153(1)	296	
8378	Drive unlawfully in bus, transit or truck lane. 156(1) – drive in a transit lane when not permitted. 157(1) – drive in a truck lane when not permitted. 154(1) – drive in a bus lane when not permitted. 154A (1) – A driver (except the driver of a public bus) must not drive in a bus only lane, unless the driver is permitted to drive in the bus only lane under subrule (2). 154A (3) – A driver must not drive across a bus only lane, unless the driver is permitted to drive across the bus only lane under subrule (4). 154A (5) – A driver turning at an intersection immediately after a bus only lane must if the driver is approaching the bus only lane from the same direction as a vehicle in a bus only lane—approach the bus only lane from the lane nearest to the bus only lane; and give way to any vehicles driving in the bus only lane.	RR 156(1) RR 157(1) RR 154(1) RR 154A (1) RR 154A (3) RR 154A (5)	198	
8387	Use or permit use of vehicle without warning signal for rear projection. 218(1) – A driver of a vehicle carrying a load referred to in regulation 212(1)(a), (b) or (c) must not use the vehicle on a highway if the load does not carry a warning signal that complies with regulation 212(2). 218(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with a requirement set out in regulation 212. 218(3) – A person other than a person referred to in subregulation (1) or (2) must not cause or permit a vehicle to be used on a highway that does not comply with a requirement set out in regulation 212.	RS(V)R 218(1) RS(V)R 218(2) RS(V)R 218(3)	494	

Traffic – Heavy / Large Vehicles

Code	Offence	Reference	Penalty	Demerit Pts
1907	Long vehicle failing to keep minimum distance behind another long vehicle "Long vehicle" - a vehicle that, together with any load or projection, is 7.5 metres long, or longer "Minimum distance" - in a road train area-200 metres or in another area-60 metres.	RR 127(1)	395	1 (one)
2161	Fail to carry, use or permit inspection of portable warning triangles. 226(1) – drive a vehicle over 12 tonnes GVM without at least 3 portable warning triangles. 226(2) – fail to produce portable warning triangles for inspection when requested. 227(2) – fail to use 3 portable warning triangles in a position as required when vehicle over 12 tonnes GVM stopped on a road and not visible for at least 200 metres in all directions. 227(3) – fail to use 3 portable warning triangles in a position as required when the load or part of the load falls onto the road and not visible for at least 200 metres.	RR 226(1) RR 226(2) RR 227(2) RR 227(3)	198	
2172	Fail to carry and produce documents when required. 296(1) – The driver of a class O vehicle must produce for inspection by a police officer or an authorised officer on request— (a) any class O notice that applies to the vehicle; or (b) an information sheet or bulletin issued by the Secretary that sets out the obligations imposed under the notice. 296(2) – The driver of a class O vehicle must carry in the driving compartment and produce to a police officer or an authorised officer if requested a copy of any class O permit that applies to the vehicle.	RS(V)R 296(1) RS(V)R 296(2)	198	
2179	Fail as driver to comply with class O vehicle requirements other than dimension requirements. 226(1) – A driver must not use a class O vehicle on a highway in contravention of a requirement set out in Schedule 6 (other than a relevant width limit, length limit or height limit) unless the vehicle is used in accordance with a class O notice or class O permit.	RS(V)R 226(1)	988	
2180	Fail to comply with pilot or escort vehicle requirements. 227(1) – A person must not use on a highway a class O vehicle that is accompanied by a pilot vehicle— (a) if the highway is in an area, or on a route, where the class O vehicle is not permitted to be used under Schedule 6, a class O notice or class O permit; or (b) at a time at which the class O vehicle is not permitted to be used on that highway under a class O notice or class O permit; or (c) if the class O vehicle exceeds a dimension limit under Schedule 6. 227(2) – A person must not drive on a highway a pilot vehicle that is accompanying a class O vehicle— (a) if the highway is in an area, or on a route, where the class O vehicle is not permitted to be used under Schedule 6, a class O notice or class O permit; or (b) at a time at which the class O vehicle is not permitted to be used on that highway under a class O notice or class O permit; or (c) if the class O vehicle exceeds a dimension limit under Schedule 6. 227(3) – The registered operator of a class O vehicle must take reasonable steps to ensure that the class O vehicle is not used on highway while the class O vehicle is accompanied by a pilot vehicle— (a) in an area, or on a route, where the class O vehicle is not permitted to be used under Schedule 6, a class O notice or class O permit; or (b) at a time at which the class O vehicle is not permitted to be used on that highway under a class O notice or class O permit; or (c) if the class O vehicle exceeds a dimension limit under Schedule 6. 228(1) – vehicles required (1) A person must not use on a highway a class O vehicle unless it is accompanied by the number of pilot vehicles required by— (a) Schedule 6; or (b) the class O notice; or (c) the class O permit.	RS(V)R 227(1) RS(V)R 227(2) RS(V)R 227(3) RS(V)R 228(1)	395	

Traffic – Heavy / Large Vehicles (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2180	228(2) – A person must not drive on a highway a pilot vehicle accompanying a class O vehicle if the class O vehicle is accompanied by less than the number of pilot vehicles required by— (a) Schedule 6; (b) the class O notice; (c) the class O permit.	RS(V)R 228(2)	395	
	228(3) – The registered operator of a class O vehicle must take reasonable steps to ensure that the class O vehicle is not used on a highway while being accompanied by less than the number of pilot vehicles required by— (a) Schedule 6; (b) the class O notice; (c) the class O permit.	RS(V)R 228(3)		
	229(1) – A driver of a pilot vehicle that is accompanying a class O vehicle must comply with the relevant requirements set out in Part 6 of Schedule 6.	RS(V)R 229(1)		
	229(2) – The registered operator of a class O vehicle that is accompanied by a pilot vehicle must take reasonable steps to ensure that a person driving the pilot vehicle complies with a relevant requirement set out in Part 6 of Schedule 6.	RS(V)R 229(2)		
	230(1) – A driver of an escort vehicle that is accompanying a class O vehicle on a highway must comply with the relevant requirements in Part 6 of Schedule 6.	RS(V)R 230(1)		
	230(2) – The registered operator of a class O vehicle that is accompanied by an escort vehicle must take reasonable steps to ensure that a person driving the escort vehicle complies with a relevant requirement in Part 6 of Schedule 6.	RS(V)R 230(2)		
2813	Fail to ensure compliance with class O vehicle requirements other than dimension requirements.	RS(V)R 226(2)	395	
2814	Cause or permit class O vehicle to be used which does not comply with Class O vehicle requirements other than dimension requirements.	RS(V)R 226(3)	395	

Traffic – Mass and Dimension Limits

NOTE: Use these codes for Light Vehicles only . Use the Heavy Vehicle National Law codes in Part 5 for vehicles >4.5 T.

Code	Offence	Reference	Penalty	Demerit Pts
4451	Operator of vehicle in breach of mass limit – minor risk breach, where operator is a body corporate.	RSA 174(1)	1482	
4452	Operator of vehicle in breach of mass limit – minor risk breach, where the operator is not a body corporate.	RSA 174(1)	296	
4453	Operator of vehicle in breach of mass limit – substantial risk breach, 5% or more excess but less than 10% excess, where operator is a body corporate.	RSA 174(1)	1976	
4454	Operator of vehicle in breach of mass limit – substantial risk breach, 5% or more excess but less than 10% excess, where operator is not a body corporate.	RSA 174(1)	395	
4455	Operator of vehicle in breach of mass limit – substantial risk breach, 10% or more excess but less than 15% excess, where operator is a body corporate.	RSA 174(1)	3952	
4456	Operator of vehicle in breach of mass limit – substantial risk breach, 10% or more excess but less than 15% excess, where operator is not a body corporate.	RSA 174(1)	790	
4457	Operator of vehicle in breach of mass limit – substantial risk breach, 15% or more excess but less than 20% excess, where operator is a body corporate.	RSA 174(1)	3952	
4458	Operator of vehicle in breach of mass limit – substantial risk breach, 15% or more excess but less than 20% excess, where operator is not a body corporate.	RSA 174(1)	1976	
4459	Driver of vehicle in breach of mass limit – minor risk breach.	RSA 175(1)	296	
4460	Driver of vehicle in breach of mass limit – substantial risk breach, 5% or more excess but less than 10% excess.	RSA 175(1)	395	
4461	Driver of vehicle in breach of mass limit – substantial risk breach, 10% or more excess but less than 15% excess.	RSA 175(1)	790	
4462	Driver of vehicle in breach of mass limit – substantial risk breach, 15 % or more excess but less than 20% excess.	RSA 175(1)	1976	

Traffic - Limits and Requirements other than Mass Limits

Code	Offence	Reference	Penalty	Demerit Pts
4463	Operator of vehicle in breach of width, length or height limit or load restraint requirement – minor risk breach, where operator is a body corporate.	RSA 174(1)	1482	
4464	Operator of vehicle in breach of width, length or height limit or load restraint requirement – minor risk breach, where operator is not a body corporate.	RSA 174(1)	296	
4465	Operator of vehicle in breach of width, length or height limit or load restraint requirement – substantial risk breach where operator is a body corporate.	RSA 174(1)	3952	
4466	Operator of vehicle in breach of width, length or height limit or load restraint requirement – substantial risk breach, where operator is not a body corporate.	RSA 174(1)	790	
4467	Driver of vehicle in breach of width, length or height limit or load restraint requirement – minor risk breach.	RSA 175(1)	296	
4468	Driver of vehicle in breach of width, length or height limit or load restraint requirement – substantial risk breach.	RSA 175(1)	790	
4474	Use light vehicle exceeding permitted dimensions.		494	
	• 213(1) – A driver of a vehicle must not use the vehicle on a highway if the vehicle does not comply with an applicable length limit set out in regulation 205.	RS(V)R 213(1)		
	• 213(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with an applicable length limit set out in regulation 205.	RS(V)R 213(2)		
	• 213(3) – A person, other than a person referred to in subregulation (1) or (2), must not cause or permit a vehicle that does not comply with a relevant length limit set out in regulation 205 to be used on a highway.	RS(V)R 213(3)		
	• 214(1) – A driver of a vehicle must not use the vehicle on a highway if the vehicle does not comply with the rear overhang limit set out in regulation 208.	RS(V)R 214(1)		
	• 214(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with the rear overhang limit set out in regulation 208.	RS(V)R 214(2)		
	• 214(3) – A person other than a person referred to in subregulation (1) or (2) must not cause or permit a vehicle to be used on a highway if the vehicle does not comply with the rear overhang limit set out in regulation 208.	RS(V)R 214(3)		
	• 215(1) – A driver of a vehicle must not use the vehicle on a highway if the vehicle does not comply with the trailer drawbar length limit set out in regulation 209.	RS(V)R 215(1)		
	• 215(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with the trailer drawbar length limit set out in regulation 209.	RS(V)R 215(2)		
	• 215(3) – A person other than a person referred to in subregulation (1) or (2) must not cause or permit a vehicle to be used on a highway if the vehicle does not comply with the trailer drawbar length limit set out in regulation 209.	RS(V)R 215(3)		
	• 216(1) – A driver of a vehicle must not use the vehicle on a highway if the vehicle does not comply with the minimum ground clearance set out in regulation 210.	RS(V)R 216(1)		
	• 216(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with the minimum ground clearance set out in regulation 210.	RS(V)R 216(2)		
	• 216(3) – A person other than a person referred to in subregulation (1) or (2) must not cause or permit a vehicle to be used on a highway if the vehicle does not comply with the minimum ground clearance set out in regulation 210.	RS(V)R 216(3)		
	• 217(1) – A driver of a vehicle must not use the vehicle on a highway if the vehicle does not comply with the limit for front and side projections set out in regulation 211.	RS(V)R 217(1)		
	• 217(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway if the vehicle does not comply with the limit for front and side projections set out in regulation 211.	RS(V)R 217(2)		
	• 217(3) – A person other than a person referred to in subregulation (1) or (2) must not cause or permit a vehicle to be used on a highway if the vehicle does not comply with the limit for front and side projections from a vehicle set out in regulation 211.	RS(V)R 217(3)		

Traffic - Directions and Orders

Code	Offence	Reference	Penalty	Demerit Pts	
4475	Failure by a body corporate to comply with a direction of inspector.	RSA 168(1)	3952		
4476	Failure by a person other than a body corporate to comply with a direction of inspector.	RSA 168(1)	1976		
4477	Failure by a body corporate to comply with condition imposed under direction or authorization.	RSA 168(2)	3952		
4478	Failure by a person other than a body corporate to comply with condition imposed under direction or authorization.	RSA 168(2)	1976		

TRAFFIC – PART 4

Table of Abbreviations

RR – Road Safety Road Rules 2017

RS(V)R – Road Safety (Vehicles) Regulations 2021

RR(ES)R – Road Safety Road Rules Amendment (Electric Scooter Trial) Rules 2021

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Traffic – Bicycles & Electric Scooters

Code	Offence	Reference	Penalty	Demerit Pts
2221	Fail to obey traffic direction given by a police officer or authorised person (bicyclist).	RR 304(1)	395	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
2222	Fail to obey Traffic Lights (bicyclist).		494	
	56(1) – red traffic light - fail to stop at stop line/if stop here on red signal sign and no stop line as near as practicable to, bit before reaching, the sign/if no stop line or stop here on red signal sign as near as practicable to, but before reaching, the nearest or only traffic lights.	RR 56(1)		
	56(2) – red traffic arrow - fail to stop at stop line/if stop here on red arrow sign and no stop line as near as practicable to, bit before reaching, the sign/if no stop line or stop here on red arrow sign as near as practicable to, but before reaching, the nearest or only traffic arrows.	RR 56(2)		
	57(2) – yellow traffic arrow - fail to stop at stop line/if no stop line as near as practicable to, but before reaching, the nearest or only traffic arrows (if the driver can stop safely).	RR 57(2)		
	59(1) – enter an intersection against a red traffic light.	RR 59(1)		
	60 – enter an intersection in the direction of a traffic arrow while the traffic arrow is showing a red traffic arrow.	RR 60		
	61 – Proceeding when traffic lights or arrows at an intersection change to yellow or red.	RR 61		
	Fail to Obey Red Bicycle Crossing Light.		494	
	260(1) – Fail to Obey Red Bicycle Crossing Light – rider of bicycle or electric scooter approaching or at an intersection or another place on a road or road related area fails to obey red bicycle crossing light.	RR 260(1)		
	Fail to Obey Yellow Bicycle Crossing Light.		494	
	261(1) – Yellow Bicycle Crossing Light – rider of bicycle or electric scooter approaching or at an intersection or another place on a road or road related area fails to obey yellow bicycle crossing light.	RR 261(1)		

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2223	Fail to obey traffic sign (other than a traffic sign referred to in Code 2239 or 2240).		198	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	• 34(1) – make a hook turn other than in accordance of a hook turn only sign.	RR 34(1)		
	• 36 – make a hook turn at an intersection that has a no hook turn by bicycles sign.	RR 36		
	• 39(1) – make a U-turn in a break in a dividing strip if there is a no U-turn sign at the break.	RR 39(1)		
	• 39(2) – make a U-turn on a length of road to which a no U-turn sign applies.	RR 39(2)		
	• 41 – make a U-turn at an intersection without traffic lights if there is a no U-turn sign at the intersection.	RR 41		
	• 88(1) – fail to turn left at a left turn only sign.	RR 88(1)		
	• 88(2) – fail to turn left when in a marked lane with a left lane must turn left sign.	RR 88(2)		
	• 89(1) – fail to turn right at a right turn only sign.	RR 89(1)		
	• 89(2) – fail to turn right when in a marked lane with a right lane must turn right sign.	RR 89(2)		
	• 90 – make a left, right or U-turn at an intersection with a no turns sign.	RR 90		
	• 91(1) – make a left turn at an intersection with a no left turn sign.	RR 91(1)		
	• 91(2) – make a right turn at an intersection with a no right turn sign.	RR 91(2)		
	• 93(1) – drive past a no overtaking or passing sign while an oncoming vehicle was on the bridge or length of road to which the sign applies.	RR 93(1)		
	• 93(1) – overtake a vehicle on a bridge or length of road to which a no overtaking or passing sign applies.			
	• 94 – overtake on a bridge to which a no overtaking on bridge sign applies.	RR 94		
	• 98(1) – ride on length of road in a direction other than indicated by the arrow on a one-way sign.	RR 98(1)		
	• 100 – ride past a no entry sign.	RR 100		
• 252(1) – ride on road or footpath to which a no bicycles sign or no bicycle road marking applies.	RR 252(1)			
• 252(1A) – The rider of an electric scooter must not ride on a length of road to which a no bicycles sign, or a no bicycles road marking, applies.	RR 252(1A)			
2224	Fail to keep left (bicyclist).		198	
	• 129(1) –ride on a road (except a multi-lane road or a road with 2 or more lines of traffic in the same direction), fail to keep as left as practicable.	RR 129(1)		
	• 132(1) – fail to keep left of centre of a two-way road without a dividing line or median strip, unless permitted.	RR 132(1)		
	• 132(2A) – drive across a single continuous dividing line, a single continuous dividing line to the left of a broken dividing line or 2 parallel continuous dividing lines to perform a U-turn.	RR 132(2A)		

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2226	Fail to give way (bicyclist).		198	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	38 – while making a U-turn.	RR 38		
	64 – when turning in the direction indicated by a flashing yellow traffic arrow.	RR 64		
	72(1) – on the road being entered when turning left or right at an intersection (uncontrolled), or any pedestrian on a slip lane when turning left using the slip lane.	RR 72(1)		
	72(1) – when going straight ahead at an intersection (uncontrolled), to any vehicle approaching from the right or if turning right to any oncoming vehicle.			
	73(1) – when turning from the terminating road at a T-intersection (uncontrolled) (not using slip lane) into the continuing road to: > Any vehicle on the continuing road (except a vehicle making a U-turn on the continuing road at the T-intersection). > Any pedestrian on the continuing road at or near the intersection.	RR 73(1)		
	73(1) – when turning left from the terminating road at a T-intersection (uncontrolled) (using slip lane) into the continuing road to: > Any vehicle travelling on the continuing road. > Any pedestrian on the slip lane.			
	73(1) – when turning left from the continuing road at a T-intersection (uncontrolled) (not using slip lane) into the terminating road to: > Any pedestrian on the terminating road at or near the intersection. > Any vehicle approaching form the right (except a vehicle making a U-turn on the continuing road at the T-intersection). > Any pedestrian on the slip lane. > Any pedestrian on the terminating road at or near the intersection.			
	73(1) – when turning right from the continuing road at a T-intersection (uncontrolled) into the terminating road to: > Any oncoming vehicle that is travelling through the intersection on the continuing road or turning left at the intersection. > Any pedestrian who is crossing the terminating road at or near the intersection.			
	74(1) – when entering a road from a road related area or adjacent land (no controls) to: > any vehicle travelling on or turning into the road. > any pedestrian on the road. > any vehicle or pedestrian on a road related area the rider crosses. > when entering from a road related area, any vehicle or pedestrian on the road related area.			
	75(1) – when entering a road related area or adjacent land from a road (no controls) to: > any pedestrian on the road. > any vehicle or pedestrian on any road related area the rider crosses or enters. > if turning right from the road, any oncoming vehicle going straight ahead or turning left. > if the road ends at a T-intersection that the rider is leaving opposite the road related area or adjacent land and the rider is crossing the continuing road, any vehicle on the continuing road.	RR 75(1)		

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2228	Fail to have lights or equipment (bicyclist).		247	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	258 – ride a bicycle without one effective brake and a bell, horn, or similar warning device in working order.	RR 258		
	259 – ride a bicycle at night or hazardous weather conditions causing reduced visibility without one white light visible to the front and one red light visible to the rear and one red reflector to the rear.	RR 259		
2229	Riding improperly (bicyclist).		198	
	27(1) – rider, fail to approach and enter intersection from as near as practicable to the far left side of the road when turning left.	RR 27(1)		
	28(1) – rider, fail to approach and enter intersection from a multi-lane road from within the left lane when turning left.	RR 28(1)		
	28(1A) – rider, fail to turn left at an intersection from a multi-lane road from within slip lane.	RR 28(1A)		
	28(2A) – rider, when turning left where bicycle storage area extends across one or more marked lanes of a multi-lane road fail to approach and enter intersection from within bicycle storage area that is directly in front of left marked lane or bicycle lane on left side of road.	RR 28(2A)		
	29(1) – rider, fail to turn left at an intersection as indicated by a turn line.	RR 29(1)		
	31(1) – rider, when turning right at intersection (except on a multi-lane road) with dividing line or median strip, fail to approach and enter intersection from the left of, and parallel to, and as near as practicable to, the dividing line or median strip (includes from a bicycle storage area).	RR 31(1)		
	31(1) – rider, when turning right at intersection (except on a multi-lane road) without dividing line or median strip, fail to approach and enter intersection from the left of, parallel to, and as near as practicable to, the centre of the road (includes from a bicycle storage area).	RR 31(1)		
	31(1) – rider, when turning right at intersection (except on a multi-lane road) on a one-way road, fail to approach and enter intersection from as near as practicable to the far right side of the road (includes from a bicycle storage area).	RR 31(1)		
	32(1) – rider, when turning right at an intersection from a multi-lane road fail to approach and enter intersection from within right lane.	RR 32(1)		
	33(1) – rider, fail to turn right at an intersection as indicated by a turn line.	RR 33(1)		
	32(2A) – rider, when turning right at an intersection from a multi-lane road fail to approach and enter the intersection from within the part of the bicycle storage area directly in front of the right marked lane or a bicycle lane on the right side of the road.	RR 32(2A)		
	245 – rider, fail to sit astride and facing forward, and have at least 1 hand on the handlebars, and be seated in a position other than on the seat.	RR 245		
	246(1) – rider, carry more persons than the bicycle is designed to carry.	RR 246(1)		
	246(2) – passenger on a bicycle that is moving, or stationary but not parked, fail to sit in the seat designed for the passenger.	RR 246(2)		
	246(3) – rider, riding with a passenger who is not seated on a seat designed for the passenger.	RR 246(3)		
	247A(1) – rider, approaching a bicycle storage area at an intersection with traffic lights or arrows, fail to enter bicycle storage area from a bicycle lane.	RR 247A(1)		
	255 – ride within 2 metres of the rear of a moving motor vehicle for more than 200 metres.	RR 255		

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2230	Misuse path, separated footpath or shared path or footpath or fail to use bicycle lane.		198	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	• 247(1) – fail to use bicycle lane where provided.	RR 247(1)		
	• 249 – ride on part of separated footpath designated for pedestrians.	RR 249		
	• 250(1) – rider 13 years or older riding on footpath (unless accompanying and supervising a child rider under 13 years of age rider or has a medical certificate).	RR 250(1)		
	• 250(2) – when riding on a footpath or shared path, fail to keep to the left and give way to pedestrians.	RR 250 (2)		
	• 250(2A) – The rider of an electric scooter riding on a shared path must—(a) keep to the left of the shared path unless it is impracticable to do so; and (b) give way to any pedestrian (except a person travelling on an electric personal transporter) on the shared path.	RR 250(2A)		
	• 251 – fail to keep to the left of oncoming bicycles or electric scooters when riding on a path, footpath, separated footpath or shared path.	RR 251		
2231	Bicycle or electric scooter drawn by other vehicle.		247	
	• 254(1) – ride a bicycle that is being towed by another vehicle.	RR 254(1)		
	• 254(2) – hold onto a moving vehicle while riding a bicycle.	RR 254(2)		
2232	Ride more than 2 abreast (bicycles).		198	
	• 151(1) – ride more than 2 abreast on a road other than a multi-lane road, unless permitted (unless overtaking other riders).	RR 151(1)		
	• 151(2) – ride more than 2 abreast in a marked lane, unless permitted (unless overtaking other riders).	RR 151(2)		
	• 151(4) – If the rider of a motor bike or bicycle is riding on a road that is not a multi-lane road alongside another rider, or in a marked lane alongside another rider in the marked lane, the rider must ride not over 1·5 metres from the other rider.	RR 151(4)		
2233	Fail to wear securely fitted approved bicycle helmet.		247	
	• 256(1) – rider of bicycle failing to wear securely fitted approved bicycle helmet [use for bicycle rider ONLY. For E-Scooter rider use Code 4484].	RR 256(1)		
	• 256(2) – passenger failing to wear securely fitted approved bicycle helmet.	RR 256(2)		
2234	Use a bicycle to carry a person who is not wearing a securely fitted approved bicycle helmet.	RR 256(3)	247	
2235	Ride bicycle or electric scooter on dividing strip, nature strip, painted island or traffic island when not permitted.		198	
	• 137(1) – ride on a dividing strip, unless permitted.	RR 137(1)		
	• 138(1) – ride on or over a painted island marked with a single continuous line or 2 parallel continuous lines unless permitted.	RR 138(1)		
	• 289(1) – ride on nature strip adjacent to a length of road, unless permitted.	RR 289(1)		
	• 290 – ride on traffic island, unless permitted.	RR 290		
2236	No riding bicycle or electric scooter across a children's, pedestrian or marked foot crossing.		198	
	• 248(1) – ride across a road, or part of a road, on a children's crossing or pedestrian crossing.	RR 248(1)		
	• 248(2) – ride across a road, or part of a road, on a marked foot crossing (unless there are bicycle crossing lights showing a green light).	RR 248(2)		
2237	Overtake to left of left turning vehicle (bicyclist).	RR 141(2)	198	
2238	Fail to comply with roundabout requirements (bicyclist). Driver fail to drive to the left of the central traffic island in the roundabout.	RR 115(1)	198	

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2239	Fail to obey stop, stop here on red signal or stop here on red arrow sign (bicyclist).		395	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	• 67(1) – at an intersection with a stop line or sign did fail to stop at the stop line and if no stop line as near as practicable to but before entering the intersection.	RR 67(1)		
	• 68(1) – fail to stop at a stop sign or line other than at an intersection, children’s crossing, level crossing or twin red lights.	RR 68(1)		
	• 101(1) – fail to stop before reaching a hand-held stop sign other than at a children’s crossing.	RR 101(1)		
	• 101(2) – proceed after stopping at a hand-held stop sign while the sign is displayed or before being directed to do so.	RR 101(2)		
2240	Fail to obey give way sign: fail to obey arrester bed or safety ramp sign (bicyclist).		395	
	• 69(1) – fail to give way at a give way sign or line at an intersection.	RR 69(1)		
	• 70 – fail to give way at a give way sign approaching a bridge or length of narrow road.	RR 70		
	• 71(1) – fail to give way at a give way sign or line other than at an intersection, bridge, narrow length of road, level crossing or twin lights.	RR 71(1)		
	• 101A(1) – drive on a safety ramp or arrester bed when not necessary for the rider to do so in the interests of safety or when not permitted.	RR 101A(1)		
8329	Perform unsafe U-turn (bicyclist).	RR 37	395	
8331	Fail to give signal (bicyclist).		198	
	• 48(1) – when changing direction to the right for long enough to give sufficient warning to other drivers and pedestrians.	RR 48(1)		
	• 48(1) – when moving from a stationary position at the side of road or in a median strip parking area for at least 5 seconds before moving (DOES NOT APPLY TO THE RIDER OF A BICYCLE THAT IS STOPPED IN TRAFFIC BUT NOT PARKED, OR MAKING A HOOK TURN).	RR 48(1)		
8332	Bicyclist or electric scooter rider fail to leave or clear intersection.		198	
	• 57(3) – fail to leave intersection as soon as possible if unable to stop and entering intersection on yellow light.	RR 57(3)		
	• 262 (2) – If the bicycle or electric scooter crossing lights change from green to yellow, flashing yellow, red or flashing red while the rider is crossing the road, the rider must not stay on the road for longer than necessary to cross safely to the nearer (in the direction of travel of the rider) of the following.	RR 262 2)		
	• 61(5) – fail to leave intersection as soon as possible if lights change to yellow or red whilst in intersection.	RR 61(5)		
8336	Fail to stop and remain stationary at children’s crossing (bicyclist).		494	
	• 80(2) – rider fail to stop if hand held stop sign is displayed or a pedestrian on or entering the crossing.	RR 80(2)		
	• 80(3) – rider proceed before pedestrian clears crossing and holder of hand held stop sign still displaying sign toward rider.	RR 80(3)		
	• 80(4) – rider proceed before pedestrian clear of crossing.	RR 80(4)		
8337	Pass stopped vehicle at children’s crossing or pedestrian crossing (bicyclist).	RR 82	494	
8339	Fail to obey traffic lane arrow (bicyclist).	RR 92(1)	247	
8340	Fail to obey emergency stopping lane only sign (bicyclist).	RR 95(1)	395	

Traffic – Bicycles & Electric Scooters (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
8341	Fail to stop or give way at level crossing (bicyclist).		988	REFER TO RPC E-SCOOTER HUB ON INTRANET (& VIA IRIS) BEFORE ISSUING FOR ELECTRIC SCOOTERS.
	• 121 – with a stop sign fail to stop at the sign or line and fail to give way to any train or tram on, approaching or entering the crossing.	RR 121		
	• 122 – with a give way sign or give way line to any train or tram on, approaching or entering the crossing.	RR 122		
	• 123 – enter a level crossing when devices are operating or train/tram is visible etc.	RR 123		
8342	Fail to drive sufficient distance behind a vehicle (bicyclist).	RR 126	296	
8343	Fail to keep left of oncoming vehicle (bicyclist).	RR 131(1)	346	
8344	Drive on wrong side of divided road (bicyclist).	RR 135(1)	395	
8345	Drive in wrong direction on a one-way service road (bicyclist).	RR 136	346	
8346	Pass to right of right turning vehicle or a vehicle making a U-turn from the centre of the road (bicyclist).		395	
	• 142(1) – overtake to the right of a right turning vehicle or a vehicle making a U-turn from the centre of the road and is giving a right change of direction signal.	RR 142(1)		
	• 143(2) – ride past or overtake to the right of a right turning vehicle displaying a do not overtake turning vehicle sign and is giving a right change of direction signal.	RR 143(2)		
8348	Overtake vehicle with DO NOT OVERTAKE TURNING VEHICLE sign on left (bicyclist).		395	
	• 143(1) – pass to the left of a left turning vehicle displaying a do not overtake turning vehicle sign and is giving a left change of direction signal.	RR 143(1)		
	• 143(1A) – ride past or overtake to the left of a vehicle displaying a do not overtake turning vehicle sign on other than a multi lane road (unless the vehicle being passed or overtaken is turning right or making a U turn or is stationary).	RR 143(1A)		
8350	Fail to leave enough room when overtaking, or cut in too soon (bicyclist).	RR 144	395	
8351	Improperly overtake or pass or change lanes or line of traffic without giving way (bicyclist).		296	
	• 148(1) – from one marked lane to another marked lane.	RR 148(1)		
	• 148(2) – on a road with two or more lines of traffic, from one line of traffic to another.	RR 148(2)		
	• 148A – within a marked lane to any vehicle that is in the lane.	RR 148A		
8353	Pass to right or left of tram (bicyclist).		395	
	• 160(2) – ride past or overtake a tram to the right .	RR 160(2)		
	• 160(3) – ride past or overtake a left turning tram or a tram signalling an intention to turn left.	RR 160(3)		
8355	Fail to keep left of safety zone or stop behind tram (bicyclist).		494	
	• 162(1) – rider fail to keep left of safety zone.	RR 162(1)		
	• 163(1) – fail to stop before passing the rear of a tram when the rider is riding behind the rear of a tram and the tram stops at a tram stop and there is no safety zone, dividing strip or traffic island or proceeds after stopping whilst tram doors are open or the road is not clear of pedestrians or in excess of 10kph if complying with green traffic lights or as directed by a public transport operator.	RR 163(1)		
8357	Bicyclist carrying person in bicycle trailer while bicyclist is under 16, or passenger over 10, or without helmet.	RR 257(1)	247	
8383	Ride over or conduct a U-turn over a continuous single line, continuous single line to left of broken line or double lines (bicyclist).	RR 132(2)	198	
2610	Rider of bicycle or electric scooter or driver of a vehicle that is not a motor vehicle operating an inbuilt device, a mounted device or a motor bike helmet device.	RR 304L(1)	593	
2611	Rider of bicycle or electric scooter or driver of a vehicle that is not a motor vehicle operating a wearable device.	RR 304M(1)	593	
2612	Rider of bicycle or electric scooter or driver of a vehicle that is not a motor vehicle operating a portable device.	RR 304N(1)	593	
2613	Rider of bicycle or electric scooter or driver of a vehicle that is not a motor vehicle resting a portable device on the rider's or driver's body, clothes or lap.	RR 304N(2)	593	

Traffic – Pedestrians

Code	Offence	Reference	Penalty	Demerit Pts
2241	Fail to obey traffic direction given by police officer or authorised person.	RR 304(1)	395	
2242	Fail to obey traffic lights.		99	
	• 231(1) – cross intersection when pedestrian lights show red pedestrian light.	RR 231(1)		
	• 231(1) – remain on road for longer than necessary to cross safely after pedestrian lights have changed to flashing red or red.	RR 231(1)		
	• 231(1) – if at a dividing strip, safety zone or traffic island fail to remain until pedestrian lights change to green.	RR 231(1)		
	• 232(1) – cross intersection when traffic lights show a red or yellow traffic light (no pedestrian light).	RR 232(1)		
	• 232(1) – remain on road for longer than is necessary to cross safely after traffic lights change to yellow or red (no pedestrian light).	RR 232(1)		
	• 232(1) – if at a dividing strip, safety zone or traffic island fail to remain until traffic lights change to green or flashing yellow or no red light showing (no pedestrian light).	RR 232(1)		
	• 238(1) – travel on road when a footpath or nature strip is available and suitable to travel on.	RR 238(1)		
2243	Walk improperly on road.		99	
	• 230(1) – fail to cross a road by the shortest safe route and remain for longer than is necessary.	RR 230(1)		
	• 233(1) – cross a road to get on a tram before the tram has stopped at the tram stop.	RR 233(1)		
	• 233(2) – after getting off a tram, fail to cross to the nearest footpath by the shortest safe route and not stay on the road for longer than is necessary.	RR 233(2)		
2244	Alight from or board moving vehicle.		99	
	• 237(1) – get on or into a moving vehicle, unless permitted.	RR 237(1)		
	• 269(1) – get off or out of a moving vehicle, unless permitted.	RR 269(1)		
2245	Crossing road within 20 metres of pedestrian crossing.	RR 234(1)	99	
2247	Fail to give way when crossing a bicycle path or separated footpath.	RR 239(3)	99	
2246	Cross level crossing when not permitted.		99	
	• 235(1) – fail to use pedestrian facility to cross railway line, or tram tracks, at a level crossing (where pedestrian facility is at or within 20 metres of the level crossing).	RR 235(1)		
	• 235(2) – cross at a level crossing when warning lights are flashing or bells are ringing / gate, boom or barrier is opening or closing / train or tram is on or entering crossing / train or tram approaching and sounding a warning.	RR 235(2)		
	• 235(2A) – fail to finish crossing without delay after starting to cross and warning lights or bells start operating / gate, boom or barrier starts to close / train or tram approaching.	RR 235(2A)		
2248	Person on road or in vehicle soliciting contributions or employment, hitchhike, buy, sell, clean etc.		99	
	• 401 – A person must not drive or stop a vehicle on a road— (a) to solicit employment or business from the vehicle; or (b) to offer articles for sale from the vehicle— if it results in, or is likely to result in, a concentration, standing or movement of vehicles or persons which causes, or is likely to cause, a danger or traffic congestion. (2) A person in a vehicle must not buy, or offer to buy, an article from a person standing on a road.	RR 401		
	• 236 (4) – A pedestrian must not stand on, or move onto, a road to solicit contributions, employment or business from an occupant of a vehicle; or hitchhike; or display an advertisement; or sell or offer articles for sale; or wash or clean, or offer to wash or clean, the windscreen of a vehicle (other than a parked vehicle).	RR 236 (4)		
2249	Fail to obey no pedestrians sign or road access sign.		346	
	• 228 – Pedestrian travel past a no pedestrians sign.	RR 228		
	• 229 – Pedestrian when not permitted travel on a length of road to which a road access sign applies.	RR 229		

Traffic – Signs

Code	Offence	Reference	Penalty	Demerit Pts
2501	Fail to obey turn prohibition or requirement sign or marking.		247	
	• 34(1) – fail to make right turn at intersection with a hook turn only sign in accordance with sign.	RR 34(1)		
	• 39(1) – make U-turn at a break in a dividing strip against a no U-turn sign.	RR 39(1)		
	• 39(2) – make a U-turn on a length of road to which a no U-turn sign applies.	RR 39(2)		
	• 40 – make a U-turn at an intersection with traffic lights against a no U-turn sign.	RR 40		
	• 41 – make a U-turn at an intersection without traffic lights against a no U-turn sign.	RR 41		
	• 88(1) – fail to turn left at an intersection with a left turn only sign.	RR 88(1)		
	• 89(1) – fail to turn right at an intersection with a right turn only sign.	RR 89(1)		
	• 89(2) – fail to turn right at an intersection from a right marked lane with a right lane must turn right sign.	RR 89(2)		
	• 90 – did turn left, right or make a U-turn at an intersection against a no turns sign.	RR 90		
	• 91(1) – did turn left at an intersection against a no left turn sign.	RR 91(1)		
	• 91(2) – did turn right at an intersection against a no right turn sign.	RR 91(2)		
	• 159(1) – fail to comply with a traffic sign applying to a particular kind of vehicle in a particular marked lane, unless permitted to do so.	RR 159(1)		
	• 212(1) – fail to comply with a traffic control device indicating the way to enter or leave a median strip parking area.	RR 212(1)		
2502	Fail to obey one way or no entry sign.		395	3 (three)
	• 98(1) – fail to drive in the direction indicated by the arrow on a one-way sign.	RR 98(1)		
	• 100 – drive past a no entry sign.	RR 100		
2503	Fail to obey no overtaking or passing or no overtaking on bridge sign.		395	3 (three)
	• 93(1) – drive past a no overtaking or passing sign when an oncoming vehicle which is on a bridge or length of to which the sign applies or overtake a vehicle on a bridge or length of road when such a sign applies.	RR 93(1)		
	• 94 – overtake a vehicle on a bridge when a no overtaking on bridge sign applies.	RR 94		
2504	Fail to obey keep left or keep right sign.		198	
	• 99(1) – fail to keep left of a keep left sign.	RR 99(1)		
	• 99(2) – fail to keep right of a keep right sign.	RR 99(2)		
2505	Fail to obey stop, stop here on red signal or stop here on red arrow sign.		395	3 (three)
	• 67(1) – fail to stop and give way at a stop sign or line at an intersection.	RR 67(1)		
	• 68(1) – fail to stop and give way at a stop sign or line other than at an intersection, children's crossing, level crossing or twin red lights.	RR 68(1)		
	• 101(1) – fail to stop before reaching a hand-held stop sign other than at a children's crossing.	RR 101(1)		
	• 101(2) – after stopping at a hand-held stop sign, proceed while the sign was still displayed or before directed to do so, other than at a children's crossing.	RR 101(2)		
2506	Fail to obey give way sign.		395	3 (three)
	• 69(1) – fail to give way at an intersection with a give way sign or line.	RR 69(1)		
	• 70 – fail to give way at a give way sign at a bridge or length of narrow road.	RR 70		
	• 71(1) – fail to give way at a give way sign or line at a place other than a bridge, length of narrow road, intersection, children's crossing, level crossing or twin red lights.	RR 71(1)		
2507	Fail to obey emergency stopping lane only sign.	RR 95(1)	395	3 (three)
2509	Fail to obey low clearance or clearance sign.		988	
	• 283(1) – A person must not use a vehicle on a highway to travel or attempt to travel beneath a bridge or overhead structure that carries a sign with the words "LOW CLEARANCE" or "CLEARANCE" if the height of the vehicle is equal to or greater than the height shown on the sign.	RS(V)R 283(1)		
	• 283(2) – The registered operator of a vehicle must take reasonable steps to ensure that the vehicle is not used on a highway in contravention of subregulation (1).	RS(V)R 283(2)		

Traffic – Signs (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2511	Fail to obey no trucks sign.		198	
	• 104(1) – drive a vehicle past a no trucks sign indicating a mass limit if the vehicle's mass exceeds that shown on the sign.	RR 104(1)		
	• 104(2) – drive a vehicle past a no trucks sign indicating a length limit if the vehicle's length exceeds that shown on the sign and if the driver is driving a combination the length of the combination.	RR 104(2)		
	• 104(3) – drive a truck past a no trucks sign unless permitted.	RR 104(3)		
2512	Fail to obey trucks must enter or buses must enter sign.		395	
	• 105 – fail to comply with a trucks must enter sign.	RR 105		
	• 107 – fail to comply with a buses must enter sign.	RR 107		
2513	Exceed mass limit sign by up to 1 tonne.		296	
	• 282(1) – A driver of a vehicle must not drive past a sign that has information on it indicating a mass or dimension limit (other than a sign set out in subregulation (2) or regulation 283) if the vehicle exceeds the mass or dimension limit displayed on the sign.	RS(V)R 282(1)		
	• 282(3) – The registered operator of a vehicle must ensure that the vehicle is not used on a highway in contravention of subregulation (1).	RS(V)R 282(3)		
	• 282(4) – A person other than a person referred to in subregulation (1) or (3) must not cause or permit a vehicle to be used in contravention of subregulation (1).	RS(V)R 282(4)		
2514	Exceed mass limit sign by 1.01 to 2 tonnes.		593	
	• 282(1) – A driver of a vehicle must not drive past a sign that has information on it indicating a mass or dimension limit (other than a sign set out in subregulation (2) or regulation 283) if the vehicle exceeds the mass or dimension limit displayed on the sign.	RS(V)R 282(1)		
	• 282(3) – The registered operator of a vehicle must ensure that the vehicle is not used on a highway in contravention of subregulation (1).	RS(V)R 282(3)		
	• 282(4) – A person other than a person referred to in subregulation (1) or (3) must not cause or permit a vehicle to be used in contravention of subregulation (1).	RS(V)R 282(4)		
2515	Exceed mass limit sign by 2.01 to 3 tonnes.		790	
	• 282(1) – A driver of a vehicle must not drive past a sign that has information on it indicating a mass or dimension limit (other than a sign set out in subregulation (2) or regulation 283) if the vehicle exceeds the mass or dimension limit displayed on the sign.	RS(V)R 282(1)		
	• 282(3) – The registered operator of a vehicle must ensure that the vehicle is not used on a highway in contravention of subregulation (1).	RS(V)R 282(3)		
	• 282(4) – A person other than a person referred to in subregulation (1) or (3) must not cause or permit a vehicle to be used in contravention of subregulation (1).	RS(V)R 282(4)		
2516	Exceed mass limit sign by 3.01 to 4 tonnes.		988	
	• 282(1) – A driver of a vehicle must not drive past a sign that has information on it indicating a mass or dimension limit (other than a sign set out in subregulation (2) or regulation 283) if the vehicle exceeds the mass or dimension limit displayed on the sign.	RS(V)R 282(1)		
	• 282(3) – The registered operator of a vehicle must ensure that the vehicle is not used on a highway in contravention of subregulation (1).	RS(V)R 282(3)		
	• 282(4) – A person other than a person referred to in subregulation (1) or (3) must not cause or permit a vehicle to be used in contravention of subregulation (1).	RS(V)R 282(4)		
2517	Disobey information on road access sign.	RR 97(1)	198	
2518	Fail to obey no buses sign.		198	
	• 106(1) – drive past no buses sign with a bus that exceeds the mass indicated on the sign.	RR 106(1)		
	• 106(2) – drive past no buses sign in a bus that exceeds the length indicated on the sign.	RR 106(2)		
	• 106(3) – drive past no buses sign that has no information on or with it indicating a mass or length.	RR 106(3)		
8338	Fail to obey traffic lane arrow.	RR 92(1)	247	2 (two)
8335	Fail to obey safety ramp or arrester bed sign.	RR 101A(1)	395	

Traffic – Riders of Animals

Code	Offence	Reference	Penalty	Demerit Pts
1289	Ride animal-drawn vehicle on a road or road related area in the animal-drawn vehicle prohibited area.	RR 303AA	494	
2529	Rider or person being carried who is under 18 years fail to wear approved helmet.	RR 303A	247	
2530	Fail to give way to pedestrians on footpath or nature strip.	RR 302	198	
2531	Fail to give way to vehicle leaving a roundabout.	RR 119	198	
2532	Ride animal more than two abreast.		198	
	• 303(1) – ride on a road not being a multi-lane road more than 2 abreast, unless permitted.	RR 303(1)		
	• 303(2) – ride in a marked lane more than 2 abreast, unless permitted.	RR 303(2)		

Traffic – Wheeled Recreational Devices

Code	Offence	Reference	Penalty	Demerit Pts
2551	Travel in or on a wheeled recreational device on a prohibited road or disobeying a sign.		99	
	• 240(1) – travel on a road with a dividing line or median strip / travel on a road with a speed limit greater than 50 km/h / travel on a one-way road with more than 1 marked lane.	RR 240(1)		
	• 240(2) – travel on a road at night.	RR 240(2)		
	• 240A – travel on a road past a no wheeled recreational devices or toys sign.	RR 240A		
2552	Travel improperly on a road in or on a wheeled recreational device.		99	
	• 241(1) – fail to keep as far left as practicable / travel alongside more than 1 other pedestrian or vehicle).	RR 241(1)		
	• 242(1) – when travelling on a footpath or shared path - fail to keep to the left / fail to give way to any pedestrian.	RR 242(1)		
2553	Travel on rollerblades/roller-skates on pedestrian side of separated footpath.	RR 243(1)	99	
2554	Person on rollerblades/roller-skates fail to keep out of the path of bicycle on bicycle path or separated footpath.	RR 243(2)	99	
2555	Travel in or on wheeled recreational device.		99	
	• 244(1) – whilst it is being towed by a vehicle.	RR 244(1)		
	• 244(2) – while holding onto a moving vehicle.	RR 244(2)		
	• 244(3) – within 2 metres of the rear of a moving vehicle continuously for more than 200 metres.	RR 244(3)		
8356	Travelling improperly on a scooter.		247	
	• 244B(1) – fail to wear securely fitted and fastened approved bicycle helmet.	RR 244B(1)		
	• 244B(4) – travel on a scooter without at least 1 effective brake and a working bell, horn, or similar warning device.	RR 244B(4)		
	• 244B(5) – travel on a scooter at night, or in hazardous weather conditions without lights/rear red reflector.	RR 244B(5)		

Traffic – Electric Personal Transporters (Segway)

Code	Offence	Reference	Penalty	Demerit Pts
2979	Travel on road or road related area other than as part of an electric personal transporter tour.	RR 244(D)	148	
2980	Travel on road or road related area that is not an electric personal transporter route or in an electric personal transporter use area.	RR 244(E)	148	
2981	Travel along a road if there is a bicycle path, footpath, nature strip or shared path adjacent to the road.	RR 244F(1)	148	
2982	Travel on a road with a dividing line or a median strip or a speed-limit greater than 50 km/h or on a one-way road with more than one marked lane.	RR 244F(2)	148	
2983	Travel at night.	RR 244F(3)	148	
2984	Fail to obey no electric personal transporter sign.	RR 244G	148	
2985	Fail to keep as far to the left side of a road as is practicable.	RR 244H(1)	148	
2986	Travel alongside more than 1 other pedestrian or vehicle travelling on the road or road related area in the same direction.	RR 244H(2)	148	
2987	Fail to keep to the left side on a footpath or shared path.	RR 244I(1)	148	

Traffic – Electric Personal Transporters (Segway) (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
2988	Fail to give way to a pedestrian on a footpath or shared path or in a shared zone.	RR 244I(2)	148	
2989	Travel on bicycle side of footpath.	RR 244J(1)	148	
2990	Fail to give way to a pedestrian on a separated footpath.	RR 244J(2)	148	
2991	Fail to keep out of path of any bicycle on a bicycle path.	RR 244J(3)	148	
2992	Travel on a road or road related area while being towed by a vehicle.	RR 244N	148	
2993	Fail to keep proper control.	RR 244O	247	
2994	Travel without wearing a securely fitted approved bicycle helmet.	RR 244P(1)	247	
2995	Fail to have equipment.	RR 244Q	99	
2996	Exceed speed limit.	RR 244S	148	
2997	Carry a person or animal.	RR 244T	148	
2998	Consume intoxicating liquor.	RR 244U	247	

Traffic – Wheeled Recreational Devices & Electric Personal Transporters (Segway)

Code	Offence	Reference	Penalty	Demerit Pts
2614	Person travelling in or on wheeled recreational device or electric personal transporter operating an inbuilt device, a mounted device or a motor bike helmet device.	RR 304O(1)	593	
2615	Person travelling in or on wheeled recreational device or electric personal transporter operating a wearable device.	RR 304P(1)	593	
2616	Person travelling in or on wheeled recreational device or electric personal transporter operating a portable device.	RR 304Q(1)	593	
2617	Person travelling in or on wheeled recreational device or electric personal transporter resting a portable device on the person's body, clothes or lap.	RR 304Q(2)	593	

Traffic – Electric Scooters

Code	Offence	Reference	Penalty	Demerit Pts
1882	Ride electric scooter on a footpath.	RR 262C	296	
1883	Ride electric scooter on a road with a speed-limit greater than 60km per hour.	RR 262D(1)	346	
1884	Ride electric scooter alongside another rider or pedestrian travelling on the road or road related area in the same direction.	RR 262E	198	
1885	Ride electric scooter under 16 years of age.	RR 262F	296	
1886	Exceed 20 km/h on an electric scooter.	RR 262G	247	
1887	Carry any other person on electric scooter.	RR 262H	247	
1888	Consume liquor while riding electric scooter.	RR 262I	395	
4484	Rider of an electric scooter failing to wear securely fitted approved bicycle helmet.	RR 256(1)	395	
7383	Passenger on an Electric Scooter Wearing/Not Wearing an Approved Bicycle Helmet.			
	• 262HA – Being a passenger on an electric scooter wearing an approved bicycle helmet securely fitted and fastened on the person's head.	RR 262HA	247	
	• 262HA – Being a passenger on an electric scooter not wearing an approved bicycle helmet securely fitted and fastened on the person's head.	RR 262HA	642	

TRAFFIC – PART 5

Table of Abbreviations

RSA – Road Safety Act 1986

RR – Road Safety Road Rules 2017

HVNL – Heavy Vehicle National Law (Victoria)

HV(MDL)NR – Heavy Vehicle (Mass, Dimension & Loading) National Regulation

HV(FM)NR – Heavy Vehicle (Fatigue Management) National Regulation

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Traffic – Parking

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Traffic – Heavy Vehicle National Law

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Traffic – Parking

Code	Offence	Reference	Penalty	Demerit Pts
0618+	Park in Council controlled area.	RSA 90E	198	
0620+	Stopped in a slip lane.	RR 203A	198	
0622+	Parked in a road related area (except in a median strip parking area) where vehicle not facing direction of adjacent traffic.	RR 208A	119	
0623+	Stopped on a painted island.	RR 197(1A)	119	
0625+	Parked less than 3 metres from continuous dividing line or dividing strip Note: In this rule a continuous dividing line is a single continuous line / single continuous line to the left or right of a broken line / 2 parallel lines.	RR 208(1)	119	
0624+	Stopped at a tram stop or within 20 metres before a sign displaying the words "tram stop" or "tram stop request".	RR 196(1)	198	
0626+	Stopped on or across a driveway or other way of access (unless dropping off or picking up passengers, does not leave vehicle unattended and drives on within 2 minutes after stopping).	RR 198(2)	119	
0627+	Stopped on a road within 10 metres before or after a safety zone.	RR 190(1)	119	
0701+	Parked for period longer than indicated.	RR 205	40	
0702+	Parked – fail to pay fee and obey instructions on sign/meter/ticket/ticket vending machine.	RR 207(2)	40	
0704+	Stopped on a bicycle parking area.	RR 201	40	
0705+	Stopped on a motor bike parking area.	RR 202	40	
0706+	Parked contrary to requirement of parking area (in median strip parking area) - not facing in direction of travel of vehicles, not parallel or as near as practicable to median strip, not in a parking bay and less than 1 metre between vehicles.	RR 209(2)	40	
0707+	Parked not at an angle of 45 degrees.	RR 210(1)	40	
0708+	Parked not at an angle of 90 degrees.	RR 210(1)	40	
0711+	Parked not completely within a parking bay.	RR 211(2)	40	
0712+	Parked – long vehicle exceeding minimum number of bays.	RR 211(3)	40	
0713+	Parked – wide vehicle exceeding minimum number of bays.	RR 211(3)	40	
0621+	Stopped contrary to a no parking sign.	RR 168(1)	40	
0715+	Stopped on a marked foot crossing.	RR 173(1)	119	
0716+	Stopped within 10 metres of a marked foot crossing.	RR 173(1)	119	
0717+	Stopped within 3 metres after marked foot crossing.	RR 173(1)	119	
0718+	Stopped within 10 metres before bicycle crossing lights.	RR 174(2)	119	
0719+	Stopped within 3 metres after bicycle crossing lights.	RR 174(2)	119	
0720+	Stopped in a loading zone.	RR 179(1)	198	
0721+	Stopped in a loading zone longer than 30 minutes.	RR 179(2)(a)	198	
0722+	Stopped in a loading zone longer than indicated time.	RR 179(2)(b)	198	
0723+	Stopped in a truck zone.	RR 180	119	
0724+	Stopped in a mail zone.	RR 186(1)	119	
0725+	Stopped in a works zone.	RR 181(1)	119	
0726+	Stopped in a taxi zone.	RR 182(1)	119	
0727+	Stopped in a bus zone.	RR 183(1)	119	
0728+	Stopped in a permit zone.	RR 185(1)	119	
0729+	Stopped – double park.	RR 189	119	
0730+	Stopped within 1 metre of fire hydrant.	RR 194(1)	119	
0731+	Stopped within 1 metre of fire hydrant indicator.	RR 194(1)	119	
0732+	Stopped within 1 metre of fire plug indicator.	RR 194(1)	119	

Traffic – Parking (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
0733+	Stopped on a bus stop.	RR 195(1)	119	
0734+	Stopped within 20 metres before a sign indicating a bus stop.	RR 195(1)	119	
0735+	Stopped within 10 metres after a sign indicating a bus stop.	RR 195(1)	119	
0736+	Stopped on a bicycle path.	RR 197(1)	119	
0737+	Stopped on a footpath.	RR 197(1)	119	
0738+	Stopped on a shared path.	RR 197(1)	119	
0739+	Stopped on a dividing strip.	RR 197(1)	119	
0740+	Stopped on a nature strip.	RR 197(1)	119	
0741+	Stopped within 3 metres of a public post box.	RR 199(1)	119	
0742+	Stopped within 20 metres of intersection with traffic lights.	RR 170(2)	119	
0745+	Parked not facing direction of travel.	RR 208(1)	119	
0746+	Parked not parallel to far left side of two-way road.	RR 208(3)	119	
0747+	Parked not as near as practicable to far left side of two-way road.	RR 208(3)	119	
0748+	Parked not parallel to far left side of one-way road.	RR 208(4)	119	
0749+	Parked not parallel to far right side on one-way road.	RR 208(4)	119	
0750+	Parked not as near as practicable to far left side of one-way road.	RR 208(4)	119	
0751+	Parked not as near as practicable to far right side of one-way road.	RR 208(4)	119	
0752+	Parked less than 1 metre from other vehicle.	RR 208(5)	119	
0754+	Parked – fail to leave 3 metres of road for other vehicle to pass.	RR 208(7)	119	
0755+	Parked unreasonably obstructing the path of vehicles.	RR 208(8)	119	
0756+	Parked unreasonably obstructing the path of pedestrians.	RR 208(8)	119	
0758+	Stopped next to a yellow edge line.	RR 169	119	
0759+	Stopped on a level crossing.	RR 175(1)	119	
0760+	Stopped within 20 metres before level crossing.	RR 175(1)	119	
0761+	Stopped within 20 metres after level crossing.	RR 175(1)	119	
0762+	Stopped on a freeway.	RR 177(1)	119	
0763+	Stopped in an emergency stopping lane.	RR 178	119	
0764+	Stopped in a bus lane.	RR 187(1)	119	
0765+	Stopped in a transit lane.	RR 187(1)	119	
0766+	Stopped in a truck lane.	RR 187(1)	119	
0767+	Stopped in a tram lane.	RR 187(2)	119	
0768+	Stopped on a tram track.	RR 187(2)	119	
0769+	Stopped in a shared zone.	RR 188	119	
0770+	Stopped in a safety zone.	RR 190(1)	119	
0771+	Stopped within 10 metres before a safety zone.	RR 190(1)	119	
0772+	Stopped within 10 metres after a safety zone.	RR 190(1)	119	
0773+	Stopped near an obstruction in position that obstructs traffic.	RR 191	119	
0774+	Stopped on a bridge, carriageway, ramp or similar structure with width less than approach road.	RR 192(1)	119	
0775+	Stopped in a tunnel with width less than approach road.	RR 192(2)	119	
0776+	Stopped in an underpass with width less than approach road.	RR 192(2)	119	
0777+	Stopped on a crest not in a built-up area (vehicle not visible for 100 metres to drivers approaching in the same direction of travel and on the same side of the road as the vehicle).	RR 193(1)	119	
0778+	Stopped near a crest not in a built-up area (vehicle not visible for 100 metres to drivers approaching in the same direction of travel and on the same side of the road as the vehicle).	RR 193(1)	119	
0779+	Stopped on a curve not in a built-up area (vehicle not visible for 100 metres to drivers approaching in the same direction of travel and on the same side of the road as the vehicle).	RR 193(1)	119	
0780+	Stopped near a curve not in a built-up area (vehicle not visible for 100 metres to drivers approaching in the same direction of travel and on the same side of the road as the vehicle).	RR 193(1)	119	
0781+	Stopped – obstruct access to a footpath.	RR 198(1)	119	
0782+	Stopped – obstruct access to a bicycle path.	RR 198(1)	119	
0783+	Stopped – obstruct access to a passageway.	RR 198(1)	119	
0784+	Stopped – obstruct access from a footpath.	RR 198(1)	119	
0785+	Stopped – obstruct access from a bicycle path.	RR 198(1)	119	
0786+	Stopped – obstruct access from a passageway.	RR 198(1)	119	

Traffic – Parking (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
0787+	Stopped – heavy vehicle not on shoulder of road and not being a built-up area.	RR 200(1)	119	
0788+	Stopped – long vehicle not on shoulder of road and not being a built-up area.	RR 200(1)	119	
0789+	Stopped – heavy vehicle in built-up area longer than 1 hour.	RR 200(2)	119	
0790+	Stopped – long vehicle in a built-up area longer than 1 hour.	RR 200(2)	119	
0791+	Stopped – clearance and side marker lights not operating effectively and visible.	RR 220(1)(a)	119	
0792+	Stopped – parking lights not operating effectively and visible.	RR 220(1)(b)	119	
0793+	Stopped contrary to a no stopping sign.	RR 167	198	
0794+	Stopped on a children's crossing.	RR 171(1)	198	
0795+	Stopped within 20 metres before a children's crossing.	RR 171(1)	198	
0796+	Stopped within 10 metres after children's crossing.	RR 171(1)	198	
0797+	Stopped on a pedestrian crossing.	RR 172(1)	198	
0798+	Stopped within 20 metres before pedestrian crossing.	RR 172(1)	198	
0799+	Stopped within 10 metres after pedestrian crossing.	RR 172(1)	198	
0800+	Stopped on a clearway.	RR 176(1)	198	
0803+	Stopped in a parking area for people with disabilities either- (a) without a current parking permit for people with disabilities clearly displayed in the vehicle: or (b) not in accordance with the permit conditions.	RR 203(1)	198	
0804+	Stopped within 10 metres of intersection.	RR 170(3)	198	
0805+	Stopped in an intersection.	RR 170(1)	198	
0807+	Disobey direction to move vehicle from parking area for people with disabilities.	RR 203(4)	198	
0948	Stopped in a bus only lane.	RR 187(3)	119	
0949	Stopped in an area for electric vehicles.	RR 203B(1)	119	
0950	Stop in an area for charging electric vehicles.	RR 203C(1)	119	
2575+	Stopped on a traffic island.	RR 197(1B)	119	

Traffic – Heavy Vehicle National Law

NOTE: Use these codes for Heavy Vehicles only.
Use the Light Vehicle codes in Part 3 for vehicles 4.5 T or less.

Code	Offence	Reference	Penalty	Demerit Pts
4501	Contravene a heavy vehicle standard.	HVNL 60(1)(a)	398	
4502	Contravene hv standard (speed limiter).	HVNL 60(1)(b)	800	
4503	Fail to comply with notice to return vehicle standards (exemption) permit.	HVNL 79(2)	530	
4504	Person breaching condition of vehicle standards exemption.	HVNL 81(1)	530	
4505	Use / permit use of vehicle contravening vehicle standards exemption.	HVNL 81(2)	530	
4506	Use vehicle in way that contravenes condition of vehicle standards exemption.	HVNL 81(3)	530	
4507	Fail to comply with condition of vehicle standards exemption.	HVNL 82(2)	398	
4508	Relevant party liable for breach of s. 82(1).	HVNL 82(3)	398	
4509	Fail to keep copy of vehicle standards exemption (permit).	HVNL 83(1)	398	
4510	Fail to return copy of vehicle standards (exemption) permit.	HVNL 83(2)	398	
4511	Relevant party liable for breach of s. 83(1).	HVNL 83(3)	398	
4512	Modify heavy vehicle without approval.	HVNL 85(1)	398	
4513	Use heavy vehicle modified without approval.	HVNL 85(2)	398	
4514	Approved vehicle examiner fail to meet requirements.	HVNL 86(2)	398	
4515	Use or permit use of unsafe heavy vehicle on road.	HVNL 89(1)	800	
4516	Use or permit use of heavy vehicle on road - no emission control system fitted.	HVNL 90(1)	398	
4517	Use or permit use of heavy vehicle on road - ecs not operating per manufacturer's design.	HVNL 90(2)	398	
4518	Use or permit use of heavy vehicle on road - operation of ecs fails to comply with standard.	HVNL 90(3)	398	
4519	Display warning sign on incorrect vehicle type, size, or configuration.	HVNL 92(2)	398	
4520	Mass requirement breach - minor risk.	HVNL 96(1)	530	
4521	Mass requirement breach - substantial risk.	HVNL 96(1)	800	
4522	Dimension requirement breach - no goods/passengers.	HVNL 102(1)(a)	398	
4523	Dimension requirement breach - minor risk.	HVNL 102(1)(b)(i)	398	
4524	Dimension breach - substantial risk.	HVNL 102(1)(b)(ii)	666	
4525	Not using correct warning signals for load rear projection - daytime.	HVNL 109(2)(a)	398	
4526	Not using correct warning signals for load rear projection - night.	HVNL 109(2)(b)	398	
4527	Loading requirement breach - minor.	HVNL 111(1)(a)	398	
4528	Loading requirement breach - substantial.	HVNL 111(1)(b)	666	
4529	Contravene condition of mass or dimension exemption.	HVNL 129(1)	800	
4530	Permit contravention of mass or dimension exemption.	HVNL 129(2)	800	
4531	Use vehicle in way which contravenes condition of mass or dimension exemption.	HVNL 129(3)	800	
4532	Driver of pilot/escort vehicle fail to comply with conditions of mass or dimension exemption.	HVNL 130(2)	800	
4534	Driver pilot vehicle - heavy vehicle off route.	HVNL 131(1)(a)	800	
4535	Driver pilot vehicle - accompany heavy vehicle outside permitted time of travel.	HVNL 131(1)(b)	800	
4536	Driver pilot vehicle-insufficient accompanying vehicles.	HVNL 131(1)(c)	800	
4537	Driver class 1 or 3 heavy vehicle - fail to comply with condition of mass or dimension exemption.	HVNL 132(2)	398	
4538	Relevant party liable for s. 132(2).	HVNL 132(3)	398	
4539	Driver class 1 or 3 heavy vehicle - fail to have mass or dimension permit in possession.	HVNL 133(1)	398	
4540	Driver class 1 or 3 heavy vehicle - fails to return mass or dimension permit.	HVNL 133(2)	530	
4541	Relevant party liable for s. 133(1).	HVNL 133(3)	398	
4542	Display heavy vehicle warning sign - not being used under dimension exemption.	HVNL 134(1)	398	
4543	Display pilot vehicle warning sign - not used under dimension exemption.	HVNL 134(2)	398	

Traffic – Heavy Vehicle National Law (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
4544	Use class 2 heavy vehicle without class 2 heavy vehicle authorisation.	HVNL 137	800	
4545	Driver or operator contravene condition class 2 heavy vehicle authorisation.	HVNL 150(1)	800	
4546	Class 2 heavy vehicle (notice) - Fail to carry (notice) as per condition.	HVNL 151(2)	398	
4547	Relevant party liable for s. 151(2).	HVNL 151(3)	398	
4548	Driver under class 2 heavy vehicle permit - fail to keep permit in possession.	HVNL 152(1)	398	
4549	Driver class 2 heavy vehicle - fail to return class 2 permit.	HVNL 152(2)	530	
4550	Relevant party liable for s. 152(1).	HVNL 152(3)	398	
4553	Failure to comply with notice to return mass dimension permit.	HVNL 181(3)	530	
4575	Drive heavy vehicle towing more than 1 vehicle.	HVNL 184(1)	398	
4576	Trailer not securely coupled to heavy vehicle combination.	HVNL 185(1)	800	
4577	Components of coupling between vehicles in heavy vehicle combination not compatible or not properly connected.	HVNL 185(2)	800	
4578	Responsible entity fail to provide container weight declaration to operator or driver.	HVNL 190(1)	800	
4579	Operator - fail to give container weight declaration to driver.	HVNL 191(1)	800	
4580	Operator - fail to give carrier container weight declaration.	HVNL 191(3)	800	
4581	Driver - fail to have container weight declaration.	HVNL 192(1)	800	
4582	Driver - fail to keep container weight declaration in or about vehicle.	HVNL 192(2)	398	
4604	Solo driver standard hours - minor risk breach (work).	HVNL 250(1)(a)	530	
4605	Solo driver standard hours - minor risk breach (rest).	HVNL 250(1)(b)	530	
4606	Solo driver standard hours - substantial risk breach (work).	HVNL 250(1)(a)	800	
4607	Solo driver standard hours - substantial risk breach (rest).	HVNL 250(1)(b)	800	
4608	2UP driver standard hours - minor risk breach (work).	HVNL 251(1)(a)	530	
4609	2UP driver standard hours - minor risk breach (rest).	HVNL 251(1)(b)	530	
4610	2UP driver standard hours - substantial risk breach (work).	HVNL 251(1)(a)	800	
4611	2UP driver standard hours - substantial risk breach (rest).	HVNL 251(1)(b)	800	
4612	Solo driver bfm - minor risk breach (work).	HVNL 254(1)(a)	530	
4613	Solo driver bfm - minor risk breach (rest).	HVNL 254(1)(b)	530	
4614	Solo driver bfm - substantial risk breach (work).	HVNL 254(1)(a)	800	
4615	Solo driver bfm - substantial risk breach (rest).	HVNL 254(1)(b)	800	
4616	2UP driver bfm - minor risk breach (work).	HVNL 256(1)(a)	530	
4617	2UP driver bfm - minor risk breach (rest).	HVNL 256(1)(b)	530	
4618	2UP driver bfm - substantial risk breach (work).	HVNL 256(1)(a)	800	
4619	2UP driver bfm - substantial risk breach (rest).	HVNL 256(1)(b)	800	
4620	Driver afm - minor risk breach (work).	HVNL 258(1)(a)	530	
4621	Driver afm - minor risk breach (rest).	HVNL 258(1)(b)	530	
4622	Driver afm - substantial risk breach (work).	HVNL 258(1)(a)	800	
4623	Driver afm - substantial risk breach (rest).	HVNL 258(1)(b)	800	
4624	Driver work/rest exemption - minor breach (work).	HVNL 260(1)(a)	530	
4625	Driver work/rest exemption - minor risk breach (rest).	HVNL 260(1)(b)	530	
4626	Driver work/rest exemption - substantial risk breach (work).	HVNL 260(1)(a)	800	
4627	Driver work/rest exemption - substantial risk breach (rest).	HVNL 260(1)(b)	800	
4628	Change work/rest option - fail to comply with requirements.	HVNL 263(1)	530	

Traffic – Heavy Vehicle National Law (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
4629	Fail to return work/rest exemption (permit).	HVNL 284(2)	800	
4630	Contravene condition of work/rest hrs exemption.	HVNL 286(1)	800	
4631	Fail to comply with condition to keep work/rest exemption (notice) in possession.	HVNL 287(2)	398	
4632	Relevant party liability for s. 287(2).	HVNL 287(3)	398	
4633	Fail to keep work/rest exemption (permit) in driver possession.	HVNL 288(1)	398	
4634	Driver fail to return copy of work/rest exemption (permit).	HVNL 288(2)	530	
4635	Relevant party liable for s. 288(1).	HVNL 288(3)	398	
4636	Driver fail to keep and carry work diary.	HVNL 293(1)	800	
4637	Driver fail to record required information in work diary.	HVNL 296(1)	200	
4638	Driver fail to record required information after starting work on a day.	HVNL 297(2)	800	
4639	Driver - fail to record odometer reading.	HVNL 298(1)	200	
4640	2UP driver fail to give required info to other driver.	HVNL 299	398	
4641	Driver - fail to record information in written work diary in way required.	HVNL 301	200	
4642	Failure to record information in electronic work diary.	HVNL 302	200	
4643	Driver - fail to record time according to driver base time zone.	HVNL 303	200	
4644	Driver - fail to record information in supplementary record.	HVNL 305(1)	800	
4645	Fail to record information in written supplementary record per instructions.	HVNL 305(2)	398	
4646	Driver - fail to record in supplementary record according to driver base time zone.	HVNL 305(3)	200	
4647	Driver - fail to notify work diary filled up/destroyed/lost/stolen.	HVNL 306	398	
4648	Driver - fail to notify electronic work diary filled up/destroyed/lost/stolen.	HVNL 307(2)	398	
4649	Lost/stolen work diary found - fail to take required action.	HVNL 308(1)	398	
4650	Driver - fail to inform record keeper of filled up/destroyed/lost/stolen work diary.	HVNL 309(2)	398	
4651	Intelligent access reporting entity - fail to notify record keeper of malfunction.	HVNL 310(2)	800	
4652	Record keeper - fail to record info.	HVNL 319(1)	800	
4653	Record keeper - fail to keep records.	HVNL 321(1)	800	
4654	Bfm/afm record keeper - fail to record info.	HVNL 321(3)	800	
4655	Driver - fail to give copy of work diary daily entry to record keeper.	HVNL 322(2)	398	
4656	Driver - fail to give 28 day record to new record keeper.	HVNL 323(2)	398	
4657	Record keeper - fail to keep div 3 record for 3 years.	HVNL 341(1)	800	
4658	Driver's record keeper - fail to keep div 8 or 8a record for 3 years.	HVNL 341(2)	800	
4659	Driver's record keeper - fail to keep record or copy at driver's record location.	HVNL 341(3)	398	
4660	Own record keeper - fail to keep record or copy at record location.	HVNL 341(4)	398	
4661	Electronic recording system approval - fail to comply with regulator direction.	HVNL 354(3)	800	

Traffic – Heavy Vehicle National Law (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
4662	Electronic recording system approval - fail to give notice to relevant persons.	HVNL 354(5)	800	
4663	Electronic work diary - fail to obey notice to remove label.	HVNL 355(2)	800	
4664	Electronic work diary - fail to comply with regulator direction.	HVNL 355(4)	800	
4665	Electronic work diary approval cancelled - fail to notify other person.	HVNL 355(6)	800	
4666	Fail to return amended or cancelled work diary exemption (permit).	HVNL 373(2)	800	
4667	Contravene condition of work diary exemption.	HVNL 375	800	
4668	Driver - fail to comply with condition of work diary exemption.	HVNL 376(2)	398	
4669	Relevant party liable for s. 376(2).	HVNL 376(3)	398	
4670	Driver - fail to keep work diary exemption permit in possession.	HVNL 377	398	
4671	Fail to return record keeping exemption (permit) within period.	HVNL 392(2)	800	
4672	Contravene condition of fatigue record keeping exemption.	HVNL 395	800	
4673	Failure to maintain odometer (owner).	HVNL 396(2)	800	
4674	Employer or operator - drive/permit in contravention of s. 398.	HVNL 399(2)	800	
4675	Holder of bfm/afm accreditation - fail to comply with conditions.	HVNL 467	800	
4676	Driver under accreditation - fail to carry documents.	HVNL 468(1)	398	
4677	Operator liable for breach s. 468(1).	HVNL 468(3)	398	
4678	Driver - fail to return accreditation documents.	HVNL 469(2)	530	
4679	NHVAS operator - fail to inform drivers of afm hours.	HVNL 470(3)	800	
4680	NHVAS operator - fail to comply with regulator notice.	HVNL 470(8)	398	
4681	NHVAS operator - fail to notify driver or scheduler of amendment, suspension or cessation of accreditation.	HVNL 471(2)	800	
4682	NHVAS driver - fail to return document.	HVNL 471(3)	530	
4683	NHVAS accredited person - fail to comply with regulator notice s. 476(1).	HVNL 476(2)	800	
4684	AO not returning id card after office ends.	HVNL 488	530	
4685	Fail to obey direction to stop heavy vehicle without reasonable excuse.	HVNL 513(4)	800	
4686	Fail to obey direction of authorised officer without reasonable excuse.	HVNL 514(3)	800	
4687	Driver or operator - fail to move vehicle to stated reasonable place.	HVNL 516(3)	800	
4688	Driver or operator - fail to obey authorised officer direction to move heavy vehicle if causing harm or obstruction.	HVNL 517(4)	800	
4689	Fail to produce heavy vehicle for inspection as specified by notice.	HVNL 522(5)	800	
4690	Fail to obey authorised officer direction to leave heavy vehicle.	HVNL 524(5)	800	
4691	Driver - fail to give vehicle defect notice to operator.	HVNL 526(4)	398	
4692	Remove/deface defective vehicle label.	HVNL 528(3)	398	
4693	Contravene minor vehicle defect notice.	HVNL 529(a)	800	1 (one) minor
4694	Contravene major vehicle defect notice.	HVNL 529(a)	800	3 (three) major
4695	Driver or operator - fail to obey s. 533 direction of authorised officer.	HVNL 533(7)	1331	
4696	Driver or operator - fail to obey s. 534 direction of authorised officer.	HVNL 534(5)	1331	
4697	Fail to state name, address, date of birth.	HVNL 567(4)	398	
4698	Driver - fail to produce required document for inspection.	HVNL 568(3)(b)	398	
4479	Fail to produce document etc.	HVNL 568(3)(a)	800	
4480	Driver - fail to produce required document for inspection (WORK DIARY).	HVNL 568(3)(b)	800	
4481	Failure by driver to keep a copy of PBS vehicle approval while driving.	HVNL 25A(1)	398	
4482	Failure by relevant party to ensure driver keeps a copy of PBS vehicle approval while driving, without reasonable excuse.	HVNL 25A(2)	398	
4699	Fail to comply with authorised officer requirement to certify extract/image/writing from document as true copy.	HVNL 568(7)	398	
4700	Responsible person - fail to obey s. 569(1) direction of authorised officer.	HVNL 569(2)	800	
4701	Fail to obey authorised officer requirement under s. 569(6) without reasonable cause.	HVNL 569(7)	398	
4703	Use HML vehicle without intelligent access agreement or monitoring equipment.	HV(MDL)NR 16(2)	398	

Traffic – Heavy Vehicle National Law (cont.)

Code	Offence	Reference	Penalty	Demerit Pts
4704	Driver or operator contravene condition of HML permit.	HV(MDL)NR 28	398	
4705	Fail to comply with regulator notice to return cancelled HML permit.	HV(MDL)NR 34(2)	530	
4707	Tamper with plate or label fitted or affixed to a heavy vehicle.	HVNL 87A(1)	398	
4708	Use or permit a restricted access vehicle on a road without authority.	HVNL 153A(1)	800	
4709	Fail to notify electronic diary filled.	HVNL 307(3)	398	
4710	Fail to notify work diary destroyed.	HVNL 312(3)	800	
4711	Record keeper fail to give driver record.	HVNL 324A(2)	200	
4712	Record keeper fail to maintain record.	HVNL 341(7)	200	
4713	Fail to give operator amended or withdrawn vehicle defect notice.	HVNL 531(4)	398	
4714	Accreditation label not affixed correctly.	HVNL 466(2A)	398	
4715	Drive vehicle without accreditation label / label obscured, defaced or not legible.	HVNL 466(2B)	398	
4717	Use vehicle in breach of self clearing defect notice.	HVNL 529 (B)	398	
4718	Failure in changing work diary forms.	HV(FM)NR 18A(1)	200	
4719	Solo driver (severe) breach standard hrs (work).	HVNL 250 (1)(A)	1331	3 (three)
4720	Solo driver (severe) breach standard hrs (rest).	HVNL 250 (1)(B)	1331	3 (three)
4721	2UP driver (severe) risk breach standard hrs (work).	HVNL 251 (1)(A)	1331	3 (three)
4722	2UP driver (severe) risk breach standard hrs (rest).	HVNL 251 (1)(B)	1331	3 (three)
4723	Solo driver (severe) breach BFM hrs (work).	HVNL 254 (1)(A)	1331	3 (three)
4724	Solo driver (severe) breach BFM hrs (rest).	HVNL 254 (1)(B)	1331	3 (three)
4725	2UP driver (severe) risk BFM hrs (work).	HVNL 256 (1)(A)	1331	3 (three)
4726	2UP driver (severe) risk BFM hrs (rest).	HVNL 256 (1)(B)	1331	3 (three)
8597	Driver not recording working hours.	HVNL 319A(2)	398	
8598	Record Keeper not giving work diary.	HVNL 324(2)	398	
8599	Record Keeper not recording driving hours.	HVNL 341(5)	800	

LITTER AND OTHER WASTE – PART 6

Table of Abbreviations

EPR – Environment Protection Regulations 2021

EPA – Environment Protection Act 2017

Code	Offence	Reference	Penalty
0200	Unlawful deposit of litter.	EPA 115(1)	395
0201	Unlawful deposit of litter (Body Corporate).	EPA 115(1)	1976
0202	Unlawful deposit of dangerous litter.	EPA 115(2)	790
0203	Unlawful deposit of dangerous litter (Body Corporate).	EPA 115(2)	3952
0204	Unlawful deposit of waste of more than 50 litres but not more than 1000 litres.	EPA 115(3)	1186
0205	Unlawful deposit of waste of more than 50 litres but not more than 1000 litres (Body Corporate).	EPA 115(3)	5928
0206	Unlawful deposit of waste of more than 1000 litres.	EPA 115(4)	1976
0207	Unlawful deposit of waste of more than 1000 litres (Body Corporate).	EPA 115(4)	9880
0214	Fail to comply with request by litter enforcement officer (Police Officer) to provide name and address.	EPA 125(3)	395
0215	State false name or address to litter enforcement officer (Police Officer).	EPA 125(4)	395
0216	Fail to comply with request by litter enforcement officer (Police Officer) to provide proof of name or address.	EPA 125(6)	395
0247	Unlawfully deposit an unsolicited document in, on or at, or affix it to, a place or premises.	EPR 55(1)	395
0248	Unlawfully deposit an unsolicited document in, on or at, or affix it to, a place or premises (Body Corporate).	EPR 55(1)	1976
0249	Deposit an unsolicited document in a receptacle, slot or location or under the door of a building if there is a sign or marking indicating unsolicited documents are not to be deposited.	EPR 55(3)	395
0250	Deposit an unsolicited document in a receptacle, slot or location or under the door of a building if there is a sign or marking indicating unsolicited documents are not to be deposited (Body Corporate).	EPR 55(3)	1976
0251	Deface, set fire to, damage or destroy a litter or waste receptacle provided by a litter authority.	EPR 57	790
0252	Deface, set fire to, damage or destroy a litter or waste receptacle provided by a litter authority (Body Corporate).	EPR 57	3952
0253	Fail to ensure vehicle is loaded so no part of load can leave vehicle and become waste without human assistance.	EPR 58(1)	790
0254	Fail to ensure vehicle is loaded so no part of load can leave vehicle and become waste without human assistance (Body Corporate).	EPR 58(1)	3952

MARINE – PART 7

Table of Abbreviations

MSA – Marine Safety Act 2010

MSR – Marine Safety Regulations 2023

M(DA & PC)A – Marine (Drug, Alcohol and Pollution Control) Act 1988

PM(LP)R –Port Management (Local Ports) Regulations 2015

Code	Offence	Reference	Penalty
2251	As Master operate an unregistered vessel or vessel not exempt from registration.	MSA 37(2)	988
2252	As owner cause or allow an unregistered vessel or vessel not exempt from registration to be operated.	MSA 37(1)	988
2253	Operate or cause or allow operation of a vessel in breach of a condition of registration.	MSA 37(3)	395
5799	Act as a master of a registered recreational without a marine licence.	MSA 46(1)	988
9794	Act as master of a regulated hire and drive vessel without a marine licence.	MSA 49(1)	988
5800	Act as a master of a prescribed class or type of registered recreational vessel without a licence endorsement for that class or type of vessel.	MSA 47(1)	988
5706	Operate a registered recreational vessel in breach of a condition of a marine licence.	MSA 46(2)	395
	Operate a regulated hire and drive vessel in breach of a condition of a marine licence.	MSA 49(2)	
5707	Operate a prescribed class or type of registered recreational vessel in breach of a prescribed condition of the licence endorsement for that class or type of vessel.	MSA 47(2)	395
	Operate a prescribed class or type of regulated hire and drive vessel in breach of a prescribed condition of the licence endorsement for that class or type of vessel.	MSA 50(2)	
9800	Act as master of a regulated hire and drive vessel without a licence endorsement for that class or type of vessel.	MSA 50(1)	988
5708	Act as master of a registered recreational vessel in breach of a condition of a licence or certificate issued in another state, territory or county.	MSA 59	395
5709	Act as master of a registered recreational vessel without being in possession of a marine licence document.	MSA 61	198
2257	Operate a vessel at a speed exceeding 5 knots within 50 metres of a person.	MSA 197 NOTICE CL.2(A)	395
2258	Operate a vessel at a speed exceeding 5 knots within 100 metres of divers flag.	MSA 197 NOTICE CL.2(B)	395
2259	Operate a vessel at a speed exceeding 5 knots within 50 metres of another vessel.	MSA 197 NOTICE CL.2(C)	395
2261	Operate a vessel at a speed exceeding 5 knots within 50 metres of the water's edge or a structure in inland waters.	MSA 197 NOTICE CL.3	395
5793	Operate a vessel at a speed exceeding 5 knots within 200 metres of the waters edge except in an access lane.	MSA 197 NOTICE CL.4(A)	395
5794	Operate a vessel at a speed exceeding 5 knots within 50 metres of a wharf or similar structure except in an access lane.	MSA 197 NOTICE CL.4(B)	395
5795	Operate a vessel at a speed exceeding 5 knots when passing through an anchorage for small craft.	MSA 197 NOTICE CL.4(C)	395
5796	Operate a vessel towing a water-skier at greater than 5 knots and depart from or return to the shore other than through an access lane.	MSA 197 NOTICE CL.6(1)	395
5797	Engage in water-skiing at greater than 5 knots and depart from or return to the shore other than through an access lane.	MSA 197 NOTICE CL.6(1)	395
5798	Use an access lane other than for a purpose specified in clause 6(2) of the notice.	MSA 197 NOTICE CL.6(2)	395
5801	Operate a vessel in an access lane at a speed greater than reasonably required.	MSA 197 NOTICE CL.6(4)(A)	395
5802	Operate a vessel in an access lane and fail to remove or beach vessel and secure equipment.	MSA 197 NOTICE CL.6(4)(B)	395
5803	Operate a vessel in an access lane and fail to keep right or left as required.	MSA 197 NOTICE CL.6(4)(C)	395
5804	Operate a vessel in an access lane and fail to give way.	MSA 197 NOTICE CL.6(4)(D)	395
2264	Operate a vessel at a speed exceeding the speed limit specified in the notice for the area of water.	MSA 197 NOTICE CL.7	395
2265	Enter prohibited area towing water-skier or when water- skiing.	MSA 197 NOTICE CL.8	395
2266	Operate a vessel in a prohibited area.	MSA 197 NOTICE CL.9	395
2267	Operate vessel with an engine in a prohibited area.	MSA 197 NOTICE CL.10	395
2268	Fail to operate a vessel in a manner which creates minimal or no wash in a no wash zone.	MSA 197 NOTICE CL.11	395
2269	Operate a vessel with an engine in a direction other than as permitted by the notice in inland waters.	MSA 197 NOTICE CL.14	395

Marine (cont.)

Code	Offence	Reference	Penalty
2270	Operate a vessel or engage in an activity in a prohibited area of water.	MSA 197 NOTICE CL.12	395
2271	Use waters contrary to conditions of use specified in a notice.	MSA 197 NOTICE CL.13	395
2272	Fail to give way to other vessel when departing from shore on a vessel with an engine.	MSA 197 NOTICE CL.15	395
2298	Bathe within 50 metres of a launching ramp being used or about to be used or an access lane.	MSA 197 NOTICE CL.16	395
2260	Operate sailboard in contravention of a notice.	MSA 197 NOTICE CL.17	395
5805	Operate a vessel towing more than 3 water-skiers.	MSA 197 NOTICE CL.19(B)	395
5806	Operate a vessel towing a water-skier between one hour after sunset and one hour before sunrise.	MSA 197 NOTICE CL.19(C)	395
2300	Operate a recreational or hire and drive vessel engaged in diving operations without exhibiting a flag indicating diver below that complies with the notice.	MSA 197 NOTICE CL.22	395
2301	Engage in diving without a buoy or flag displayed that complies with the notice.	MSA 197 NOTICE CL.23(1)	395
2316	Permit vessel to be moored or secured to navigation marker, buoy, pole.	MSA 197 NOTICE CL.23A(1)	395
2317	Anchor vessel in navigation channel or the area of state waters which is marked with beacons or buoys.	MSA 197 NOTICE CL.23C	395
2025	As holder of a marine licence fail to notify the safety director of a change of name or address.	MSR 52	198
2026	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no lifejacket].	MSR 61(1)	247
2027	Being the master of recreational vessel when vessel not equipped with compulsory items of equipment i.e., handheld distress flare and smoke signal, or GPS enabled EPIRB or personal locator beacon, or installed marine radio min 25 watt output.	MSR 61(3)	247
2028	Fail to wear compulsory lifejacket in accordance with manufacturer's instructions.	MSR 66(5)	395
2029	Fail wear lifejacket as per instructions.	MSR 67(6)	395
2030	As master of a recreational vessel or hire and drive vessel, cause or allow vessel to be operated when person on board is not wearing lifejacket as required by reg. 67 of the Marine Safety Regulations 2023.	MSR 70(2)	395
2047	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 of the Marine Safety Regulations 2023 [anchor or chain non compliant].	MSR 61(7)	247
2048	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 of the Marine Safety Regulations 2023 [bilge pumping system non-compliant].	MSR 61(7)	247
2049	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 of the Marine Safety Regulations 2023 [unsuitable bailer].	MSR 61(7)	247
2050	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 of the Marine Safety Regulations 2023 [dinghy or life-raft non-compliant].	MSR 61(7)	247
2053	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 of the Marine Safety Regulations 2023 [EPIRB does not comply with requirements].	MSR 61(7)	247
2254	As owner of a registered recreational vessel fail to fix registration label in conspicuous position.	MSR 24(2)	198
2255	Being the master of a registered vessel without identification mark painted or displayed.	MSR 24(7)	395
2289	As master of recreational vessel or recreational hire and drive vessel, permit vessel to be fuelled at a wharf, jetty or pier with passengers on board.	MSR 56(2)	395
2293	Being the master of a recreational vessel or recreational hire and drive vessel that is overloaded.	MSR 57(1)	395
2326	As master of a recreational hire and drive vessel, permit vessel to go outside geographical limits specified in the certificate of operation.	MSR 59(1)	395
2340	Being the master of a recreational vessel of a class specified in Column 2 of Table B in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 on coastal waters when the vessel is not equipped with the compulsory items of equipment.	MSR 61(2)	395
5750	As master fail to ensure a person under 12 years of age in open area of underway vessel wears required lifejacket - enclosed waters.	MSR 68(2)	395
5751	As master fail to ensure a person under 12 years of age in open area of underway vessel wears required lifejacket - inland waters.	MSR 68(3)	395

Marine (cont.)

Code	Offence	Reference	Penalty
5772	As master fail to ensure that person aged less than 12 years old in open area of recreational vessel or hire and drive vessel that is underway wears compulsory lifejacket - coastal waters.	MSR 68(1)	395
5752	Act as master of recreational vessel if vessel is not equipped with required personal flotation devices.	MSR 61(2), (4), (6)	395
5753	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no anchor chain or line].	MSR 61(1)	247
5754	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no bilge pumping system].	MSR 61(1), (3), (5)	247
5755	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [vessel not equipped with bailer].	MSR 61(1), (3), (5)	247
5756	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [vessel not equipped with compass].	MSR 61(1)	247
5757	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no bucket with lanyard].	MSR 61(1), (3), (5)	247
5758	Being the master of a recreational vessel of a class specified in Column 2 of Table B in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 on coastal waters when the vessel is not equipped with the compulsory items of equipment [vessel not equipped with marine radio].	MSR 61(2)	395
5759	Being the master or a recreational vessel of a class specified in Column 2 of Table A in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 on coastal waters when the vessel is not equipped with the compulsory items of equipment [no red star parachute distress rocket].	MSR 61(1)	247
5760	Being the master or a recreational vessel of a class specified in Column 2 of Table A in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 on coastal waters when the vessel is not equipped with the compulsory items of equipment [no orange smoke distress signal].	MSR 61(1)	247
5761	Being the master or a recreational vessel of a class specified in Column 2 of Table A in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 on coastal waters when the vessel is not equipped with the compulsory items of equipment [no red hand-held distress flare].	MSR 61(1)	247
5762	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no oars, rowlocks or paddles].	MSR 61(1), (3), (5)	247
5763	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no waterproof buoyant torch].	MSR 61(1), (3), (5)	247
5764	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [vessel not equipped with lifebuoy].	MSR 61(1), (3), (5)	247
5765	Being the master or a recreational vessel when the vessel is not equipped with the compulsory items of equipment [no dinghy or life raft].	MSR 61(1), (3)	247
5766	As master of recreational vessel (other than a personal watercraft) fail to ensure that the vessel has the required number of portable fire extinguishers, and that the vessel has a portable fire extinguisher of the minimum nominal capacity.	MSR 62(1)	247
5768	As owner of a recreational vessel, cause or allow vessel to be operated when required safety equipment or firefighting equipment has not been maintained or serviced as required.	MSR 64(2)	247
5769	As owner of a recreational vessel, cause or allow vessel to be operated when required safety equipment or firefighting equipment has not been serviced on or before the date specified by the manufacturer.	MSR 64(3)	247
5770	As master of a recreational vessel, fail to keep portable fire extinguishers in separate positions on vessel.	MSR 63(3)	247
5771	Fail to wear compulsory lifejacket while in open area of recreational vessel or hire and drive vessel that is underway.	MSR 66(1), 66(2), 66(3)	395
5773	Fail to wear compulsory lifejacket while being towed by vessel.	MSR 69	395
5774	As master of a recreational vessel or hire and drive vessel, cause or allow vessel to be operated when person on board is not wearing compulsory lifejacket as required by regulation 66 of the Marine Safety Regulations 2023.	MSR 70(1)	395
5775	As master of a recreational vessel, cause or allow vessel to tow a person not wearing a compulsory lifejacket.	MSR 70(3)	395
5810	As owner of a registered recreational vessel that is not a personal watercraft, fail to ensure identification mark is painted or displayed in certain positions on vessel.	MSR 24(3)	395
5811	As owner of a registered recreational vessel that is a personal watercraft, fail to ensure identification mark is painted or displayed in certain positions on vessel.	MSR 24(5)	395
5812	Being the master of a vessel, tow a person without using another person on board to observe and communicate with master.	MSR 60	395
5813	As master of a recreational vessel or recreational hire and drive vessel, permit vessel to be restarted with passengers on board after being fuelled at a wharf, jetty or pier.	MSR 56(4)	395
5814	Being the master of a recreational vessel or recreational hire and drive vessel with overloaded flying bridge.	MSR 58	395

Marine (cont.)

Code	Offence	Reference	Penalty
5815	Fail to wear compulsory lifejacket while in open area of recreational vessel or hire and drive vessel that is underway on coastal waters.	MSR 67(1), (4)(A)-(I)	395
5816	Fail to wear compulsory lifejacket while in open area of recreational vessel or hire and drive vessel that is underway on enclosed waters.	MSR 67(2), (4)(A)-(I)	395
5817	Fail to wear compulsory lifejacket while in open area of recreational vessel or hire and drive vessel that is underway on inland waters.	MSR 67(3), (4)(A)-(I)	395
5818	As master, fail to ensure that vessel that is underway displays required navigation lights.	MSR 76(1) - (9)	395
5819	As master, fail to ensure that vessel that is underway keeps to right of centre of channel or fairway.	MSR 77(1)	395
5820	As master, fail to ensure that vessel that is underway keeps out of the way of a vessel that can only navigate safely within the channel or fairway.	MSR 77(2)	395
5821	As master of a power-driven vessel that is underway, fail to ensure vessel keeps out of the way.	MSR 78(1) - (5)	395
5822	As master of a sailing vessel that is underway, fail to ensure vessel keeps out of the way.	MSR 79(1) - (4)	395
5862	As registered person, fail to notify the safety director of a change to the details of the vessel referred to in regulation 11(2)(d) of the Marine Safety Regulations 2023.	MSR 15	198
5863	As registered person, fail to notify the safety director of a change of name or address.	MSR 16	198
5864	As person disposing of vessel registered in person's name, fail to comply with transfer requirements.	MSR 17	198
5865	As person acquiring registered vessel, fail to comply with transfer requirements.	MSR 18	198
9371	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 [expired smoke signals].	MSR 61(7)	247
9372	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 [expired distress flares].	MSR 61(7)	247
9373	Being the master of a recreational vessel, when the compulsory items of equipment do not comply with the requirements specified in Table G in Part 2 of Schedule 3 to the Marine Safety Regulations 2023 [expired distress rocket].	MSR 61(7)	247
5831	Install a mooring in local port without a permit.	PM(LP)R 29(1)	395
5823	Moor vessel in a prohibited mooring area without a permit.	PM(LP)R 30(2)	395
5824	Berth vessel in a prohibited berthing area without a permit.	PM(LP)R 30(1)	395
5827	Allow vessel to be berthed or moored for a continuous period exceeding a specified period.	PM(LP)R 33(1)(A)	395
5832	Allow vessel to be berthed or moored for a continuous period exceeding 48 hours.	PM(LP)R 33(1)(B)	395
5833	Enter or park vehicle in an area not subject to a set aside determination or without a permit.	PM(LP)R 43	395
9363	Fail to retrieve fishing rod or line when a vessel approaches or departs from the wharf.	PM(LP)R 53	395
9364	Cut, break or destroy vessel mooring.	PM(LP)R 56(1)	395
9365	Interfere with, cast off or remove vessel from wharf or mooring.	PM(LP)R 56(2)	395
5834	Fail to comply with direction from port manager, transport safety officer or police officer.	PM(LP)R 66(3)	395
5848	Refusing or failing to allow a vessel or equipment on a vessel to be inspected.	MSA 162A(4)	395
5849	Refusing or failing to comply with a direction under section 162A(2)(b) to stop or manoeuvre a vessel and produce for inspection equipment specified in a direction.	MSA 162A(5)	395
5850	Failing to provide information concerning the identity and the location of the owner or master of a vessel.	MSA 162C (2)	290
9439	Enter, leave or navigate or attempt to do so within waters for which local knowledge certificate required.	MSA 80	395

Marine (cont.)

Please note: under the provisions of M(DA & PC)A S61BA – All PCA / PCD marine infringements carry a 6 month suspension for Victorian marine licence holders (or 6 month disqualification for interstate or unlicensed)

Code	Offence	Reference	Penalty	Suspension
5851	Operate or be the master or pilot of a vessel with alcohol level of 0.05g or more but less than 0.07g per 100ml of blood or 210 litres of exhaled air, zero blood/breath alcohol does not apply, person is aged 26 or older.	M(DA & PC)A 28(1)(B)	593	6 months
5852	Operate or be the master or pilot of a vessel with alcohol level of 0.05g or more but less than 0.07g per 100ml of blood or 210 litres of exhaled air, zero blood/breath alcohol does not apply, person is aged under 26.	M(DA & PC)A 28(1)(B)	593	6 months
5853	Operate or be the master or pilot of a vessel with alcohol level of 0.05g or more but less than 0.07g per 100ml of blood or 210 litres of exhaled air, zero blood/breath alcohol applies.	M(DA & PC)A 28(1)(B)	593	6 months
5854	Operate or be the master or pilot of a vessel with blood alcohol level of 0.07 or more but less than 0.10g per 100ml or breath alcohol level of 0.07g or more but less than 0.10g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	593	6 months
5855	Operate or be the master or pilot of a vessel with breath or blood alcohol level of less than 0.05g per 100ml of blood or 210 litres of exhaled air and a prescribed concentration of zero blood or breath alcohol applies to the person.	M(DA & PC)A 28(1)(B)	494	6 months
5856	Operate or be the master or pilot of a vessel with blood alcohol level of 0.10g or more but less than 0.11g per 100 ml or breath alcohol level of 0.10g or more but less than 0.11g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	840	6 months
5857	Operate or be the master or pilot of a vessel with blood alcohol level of 0.11g or more but less than 0.12g per 100 ml or breath alcohol level of 0.11g or more but less than 0.12g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	840	6 months
5858	Operate or be the master or pilot of a vessel with blood alcohol level of 0.12g or more but less than 0.13g per 100 ml or breath alcohol level of 0.12g or more but less than 0.13g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	840	6 months
5859	Operate or be the master or pilot of a vessel with blood alcohol level of 0.13g or more but less than 0.14g per 100 ml or breath alcohol level of 0.13g or more but less than 0.14g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	840	6 months
5860	Operate or be the master or pilot of a vessel with blood alcohol level of 0.14g or more but less than 0.15g per 100 ml or breath alcohol level of 0.14g or more but less than 0.15g per 210 litres of exhaled air.	M(DA & PC)A 28(1)(B)	840	6 months
5861	Operate or be the master or pilot of a vessel while the prescribed concentration of drugs or more than the prescribed concentration of drugs is present in blood or oral fluid.	M(DA & PC)A 28(1)(BB)	593	

TRANSPORT INFRINGEMENT NOTICES – PART 8

Table of Abbreviations

T(CM)A – Transport (Compliance & Miscellaneous) Act 1983
T(CMT)R – Transport (Compliance & Miscellaneous)(Ticketing) Regulations 2017
T(CMCPT)R – Transport (Compliance and Miscellaneous)(Conduct on Public Transport) Regulations 2015
T(BTCPV)(TIAO)R – Transport (Buses, Taxi-cabs & other Commercial Passenger Vehicles)
 (Taxi-cab Industry Accreditation & Other Matters) Regulations 2017
CPVIA – Commercial Passenger Vehicle Industry Act 2017
CPVIR – Commercial Passenger Vehicle Industry Regulations 2018
BSA – Bus Safety Act 2009
BSR – Bus Safety Regulations 2020

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NOTE: A child who commits a Transport Infringement or a Ticket infringement now has a different penalty to an adult, as per

Note that different offence codes apply to children

Ticket Infringement Offences

Code	Offence	Reference	Penalty
3100+	Failing to produce evidence of concession (Adult).	T(CMT)R 10(3) or 11(3)	296
3277+	Failing to produce evidence of concession (Child).	T(CMT)R 10(3) or 11(3)	99
3103+	Transferring ticket to another person (Adult).	T(CMT)R 19(1)	296
3278+	Transferring ticket to another person (Child).	T(CMT)R 19(1)	99
3104+	Failing to hold valid ticket (Adult).	T(CMT)R 7(1) or 7(2)	296
3275+	Failing to hold valid ticket (Child).	T(CMT)R 7(1) or 7(2)	99
3106+	Failing to produce valid ticket (Adult).	T(CMT)R 8(2) or 9(2)	296
3276+	Failing to produce valid ticket (Child).	T(CMT)R 8(2) or 9(2)	99
3279+	Failing to surrender ticket (Adult).	T(CMT)R 21(2)	198
3280+	Failing to surrender ticket (Child).	T(CMT)R 21(2)	99

Transport Infringement Notices – General

Code	Offence	Reference	Penalty
3124+	Failing or refusing to give name and address (Adult).	T(CM)A 218B (4)(A)	296
3281+	Refuse or fail to give name and address (Child).	T(CM)A 218B (4)(A)	99
3123+	Stating false name or incorrect address (Adult).		296
	• 218B(4)(b) - Stating false name (Adult).	T(CM)A 218B(4)(b)	
	• 218B(4)(c) - Stating incorrect address (Adult).	T(CM)A 218B(4)(c)	
3282+	Stating false or incorrect name or address (Child).		99
	• 218B(4)(b) - Stating false name (Child).	T(CM)A 218B(4)(b)	
	• 218B(4)(c) - Stating incorrect address (Child).	T(CM)A 218B(4)(c)	
3283+	Failing to provide evidence of name and address, without reasonable excuse (Adult).	T(CM)A 218B(6B)	198
3284+	Failing to provide evidence of name and address, without reasonable excuse (Child).	T(CM)A 218B(6B)	99
8975+	Leave a motor vehicle parked in a public transport parking area without using public transport.	T(CMCPT)R 51(1)	119
8976+	Remove a motor vehicle from a public transport parking area without a valid ticket for travel.	T(CMCPT)R 56(1)	119
8977+	Fail to produce a valid ticket for travel when removing a motor vehicle from a public transport parking area.	T(CMCPT)R 57(3)	119
8978+	Fail to comply with direction relating to parking or removal of a motor vehicle at or from a designated park and ride facility.	T(CMCPT)R 63(6)	99
8994+	Fail to comply with request from authorised officer (Adult).	T(CMCPT)R 47(4)	198
8995+	Fail to comply with request from authorised officer (Child).	T(CMCPT)R 47(4)	99

Transport Infringement Notices – Conduct Affecting Amenity

Code	Offence	Reference	Penalty
3122+	Trespassing (Adult).	T(CM)A 223	395
8223+	Trespassing (Child).	T(CM)A 223	99
3126+	Failing to place luggage as directed by authorised person (Adult).	T(CMCPT)R 36	99
8227+	Failing to place luggage as directed by authorised person (Child).	T(CMCPT)R 36	99
3158+	Continuing to occupy unreserved seat when requested to make seat available (Adult).	T(CMCPT)R 46	198
8225+	Continuing to occupy unreserved seat when requested to make seat available (Child).	T(CMCPT)R 46	99
3285+	Failing to vacate a designated special needs seat to enable it to be occupied by a person with special needs (Adult).	T(CMCPT)R 43	296
8224+	Failing to vacate a designated special needs seat to enable it to be occupied by a person with special needs (Child).	T(CMCPT)R 43	99
3121+	Playing a musical instrument or sound equipment (Adult).		296
	• 28 – Play a musical instrument on or in public transport vehicle or premises without written authority (Adult).	T(CMCPT)R 28	
	• 29(1) – Operate sound equipment on or in public transport vehicle or premises without headphones or otherwise inaudible (Adult).	T(CMCPT)R 29(1)	
8228+	Playing a musical instrument or sound equipment (Child).		99
	• 28 – Play a musical instrument on or in public transport vehicle or premises without written authority (Child).	T(CMCPT)R 28	
	• 29(1) – Operate sound equipment on or in public transport vehicle or premises without headphones or otherwise inaudible (Child).	T(CMCPT)R 29(1)	
3127+	Selling or offering for hire any thing or touting (Adult).	T(CMCPT)R 30(1)	296
8230+	Selling or offering for hire any thing or touting (Child).	T(CMCPT)R 30(1)	99
3120+	Distributing handbills, soliciting money or goods or busking (Adult).	T(CMCPT)R 30(2)	296
8231+	Distributing handbills, soliciting money or goods or busking (Child).	T(CMCPT)R 30(2)	99
3236+	Taking animal onto or into a public transport vehicle or public transport premises (Adult).	T(CMCPT)R 39(1)	296
8232+	Taking animal onto or into a public transport vehicle or public transport premises (Child).	T(CMCPT)R 39(1)	99
3237+	Failing to remove matter emanating from dog or other animal or from the animal's container (Adult).	T(CMCPT)R 39(3)	296
8233+	Failing to remove matter emanating from dog or other animal or from the animal's container (Child).	T(CMCPT)R 39(3)	99

Transport Infringement Notices – Conduct Affecting Amenity (cont.)

Code	Offence	Reference	Penalty
3289+	Allowing dog to occupy seat or preventing another person from using the seat (Adult).	T(CMCPT)R 40	198
8234+	Allowing dog to occupy seat or preventing another person from using the seat (Child).	T(CMCPT)R 40	99
3144+	Drinking liquor on any vehicle or premises (Adult).	T(CMCPT)R 31(1)	494
8235+	Drinking liquor on any vehicle or premises (Child).	T(CMCPT)R 31(1)	99
3105+	Failing to comply with request to leave vehicle or premises (Adult).	T(CMCPT)R 66(4)	395
8252+	Failing to comply with request to leave vehicle or premises (Child).	T(CMCPT)R 66(4)	99
3140+	Smoking in or on vehicle / a tram stop shelter/bus stop shelter/ train platform / designated area/tram stop platform or where there is a notice (Adult).	T(CMCPT)R 32(1)	296
8237+	Smoking in or on vehicle / a tram stop shelter/bus stop shelter/ train platform / designated area/tram stop platform or where there is a notice (Child).	T(CMCPT)R 32(1)	99
3156+	Littering in or on a vehicle or premises (Adult).	T(CMCPT)R 33(1)	296
8239+	Littering in or on a vehicle or premises (Child).	T(CMCPT)R 33(1)	99
3187+	Protruding part of body or object from rail or road vehicle while vehicle is in motion (Adult).	T(CMCPT)R 8	593
8250+	Protruding part of body or object from rail or road vehicle while vehicle is in motion (Child).	T(CMCPT)R 8	99
3200+	Graffiti (Adult).	T(CMCPT)R 37	395
8243+	Graffiti (Child).	T(CMCPT)R 37	99
3205+	Placing feet other than on the floor or a part of a public transport vehicle designed for the placing of feet (Adult).	T(CMCPT)R 35(1)	296
8245+	Placing feet other than on the floor or a part of a public transport vehicle designed for the placing of feet (Child).	T(CMCPT)R 35(1)	99
3223+	Possessing open container of liquor (Adult).	T(CMCPT)R 31(2)	296
8236+	Possessing open container of liquor (Child).	T(CMCPT)R 31(2)	99
3239+	Scratching or burning a public transport vehicle or premise (Adult).	T(CMCPT)R 38	395
8244+	Scratching or burning a public transport vehicle or premise (Child).	T(CMCPT)R 38	99
3242+	Placing feet on furniture of a passenger transport company or bus company (Adult).	T(CMCPT)R 35(2)	296
8246+	Placing feet on furniture of a passenger transport company or bus company (Child).	T(CMCPT)R 35(2)	99
3290+	Leaving or depositing any thing in or on a vehicle or premises that may endanger any person or property (Adult).	T(CMCPT)R 33(2)	395
8240+	Leaving or depositing any thing in or on a vehicle or premises that may endanger any person or property (Child).	T(CMCPT)R 33(2)	99
3291+	Conveying or bringing any thing likely to annoy or disturb (Adult).	T(CMCPT)R 27(1)	198
8247+	Conveying or bringing any thing likely to annoy or disturb (Child).	T(CMCPT)R 27(1)	99
3292+	Conveying or bringing any thing likely to injure or endanger people or property (Adult).	T(CMCPT)R 7(1)	395
8248+	Conveying or bringing any thing likely to injure or endanger people or property (Child).	T(CMCPT)R 7(1)	99
3293+	Failure to obey instructions to desist from carrying thing likely to annoy, disturb, injure or endanger (Adult).	T(CMCPT)R 7(2)	593
8249+	Failure to obey instructions to desist from carrying thing likely to annoy, disturb, injure or endanger (Child).	T(CMCPT)R 7(2)	99
3294+	Throwing or dropping any thing from vehicle or premises (Adult).	T(CMCPT)R 9	395
8251+	Throwing or dropping any thing from vehicle or premises (Child).	T(CMCPT)R 9	99
8963+	Spitting in, at or on a public transport vehicle or public transport premises (Adult).	T(CMCPT)R 34(1)	494
8964+	Spitting in, at or on a public transport vehicle or public transport premises (Child).	T(CMCPT)R 34(1)	99
8965+	Spitting at or on people (Adult).	T(CMCPT)R 34(2)	790
8966+	Spitting at or on people (Child).	T(CMCPT)R 34(2)	99
8996+	Fail to vacate designated wheelchair area on request (Adult).	T(CMCPT)R 45	296
8997+	Fail to vacate designated wheelchair area on request (Child).	T(CMCPT)R 45	99

Transport Infringement Notices – General Conduct Affecting Safety

Code	Offence	Reference	Penalty
3168+	Mounting part of vehicle not meant for travel, without reasonable excuse (Adult).	T(CM)A 221ZD(1)	494
8253+	Mounting part of vehicle not meant for travel, without reasonable excuse (Child).	T(CM)A 221ZD(1)	99
3169+	Walking or climbing on any part of rail premises not intended for passenger use, without reasonable excuse (Adult).	T(CM)A 221ZD(2)	494
8254+	Walking or climbing on any part of rail premises not intended for passenger use, without reasonable excuse (Child).	T(CM)A 221ZD(2)	99
3170+	Travelling on part of vehicle not meant for travel (Adult).	T(CM)A 221ZE(1)	494
8255+	Travelling on part of vehicle not meant for travel (Child).	T(CM)A 221ZE(1)	99
3295+	Attaching self or another person to rail or road vehicle when riding a bicycle or other wheeled recreational device or wheeled toy (Adult).	T(CM)A 221ZE(2)	494
8256+	Attaching self or another person to rail or road vehicle when riding a bicycle or other wheeled recreational device or wheeled toy (Child).	T(CM)A 221ZE(2)	99
3147+	Using indecent, obscene, offensive or threatening language (Adult).	T(CMCPT)R 26(a)	395
8257+	Using indecent, obscene, offensive or threatening language (Child).	T(CMCPT)R 26(a)	99
3178+	Behaving in an obscene, offensive, threatening, disorderly or riotous manner (Adult).	T(CMCPT)R 26(b)	395
8258+	Behaving in an obscene, offensive, threatening, disorderly or riotous manner (Child).	T(CMCPT)R 26(b)	99
3146+	Creating an obstruction (Adult).	T(CMCPT)R 10(1)	395
8259+	Creating an obstruction (Child).	T(CMCPT)R 10(1)	99
3149+	Exiting or entering through wrong doorway (Adult).		494
	• 14 – A person must not without reasonable excuse or permission from an authorised person (conduct) enter or leave or attempt to enter or leave—		
	> (2) – a train or tram that stops next to a platform other than by a doorway next to the platform; or	T(CMCPT)R 14(2)	
	> (3) – a public transport vehicle, public transport premises or a designated area except through an entrance or exit provided for passengers or the public.	T(CMCPT)R 14(3)	
8260+	Exiting or entering through wrong doorway (Child).		99
	• 14 – A person must not without reasonable excuse or permission from an authorised person (conduct) enter or leave or attempt to enter or leave—		
	> (2) – a train or tram that stops next to a platform other than by a doorway next to the platform; or	T(CMCPT)R 14(2)	
	> (3) – a public transport vehicle, public transport premises or a designated area except through an entrance or exit provided for passengers or the public.	T(CMCPT)R 14(3)	
3296+	Entering or leaving a vehicle through an emergency exit (Adult).	T(CMCPT)R 14(4)	395
8262+	Entering or leaving a vehicle through an emergency exit (Child).	T(CMCPT)R 14(4)	99
2487+	Failing to obey parking control signs on rail premises.	T(CMCPT)R 13(2)	119
3128+	Riding bicycle, etc. on vehicle (Adult).	T(CMCPT)R 12	296
8267+	Riding bicycle, etc. on vehicle (Child).	T(CMCPT)R 12	99
3153+	Failing to comply with direction when driving, riding or parking a vehicle, wheeled recreational device, etc. on public transport premises.	T(CMCPT)R 13(6)	99
3175+	Failing to obey traffic control devices on rail premises (Adult).	T(CMCPT)R 13(3)	198
8988+	Failing to obey traffic control devices on rail premises (Child).	T(CMCPT)R 13(3)	99
3186+	Entering or leaving a road or rail vehicle while vehicle is in motion (Adult).	T(CMCPT)R 14(1)	494
8264+	Entering or leaving a road or rail vehicle while vehicle is in motion (Child).	T(CMCPT)R 14(1)	99
3225+	Causing an obstruction when parking a vehicle on rail premises.	T(CMCPT)R 13(5)	296
3243+	Jumping or climbing over barrier (Adult).	T(CMCPT)R 14(5)	296
8263+	Jumping or climbing over barrier (Child).	T(CMCPT)R 14(5)	99
3244+	Stepping, standing, sitting, kneeling or lying on or holding onto an exterior part of a rail vehicle while vehicle is in motion (Adult).	T(CMCPT)R 15(4)	494
8265+	Stepping, standing, sitting, kneeling or lying on or holding onto an exterior part of a rail vehicle while vehicle is in motion (Child).	T(CMCPT)R 15(4)	99
3297+	Driving riding or parking on any part of rail premises not set aside for the use of vehicles.	T(CMCPT)R 13(1)	395

Transport Infringement Notices – General Conduct Affecting Safety (cont.)

Code	Offence	Reference	Penalty
8980+	Bring bicycle onto metropolitan train through front door of first carriage (Adult).	T(CMCPT)R 11(1)	198
8981+	Bring bicycle onto metropolitan train through front door of first carriage (Child).	T(CMCPT)R 11(1)	99
8982+	Being in possession of bicycle near the first door inside the first carriage (Adult).	T(CMCPT)R 11(2)	198
8983+	Being in possession of bicycle near the first door inside the first carriage (Child).	T(CMCPT)R 11(2)	99
8984+	Bring bicycle onto a tram or tram stop platform (Adult).	T(CMCPT)R 11(3)	198
8985+	Bring bicycle onto a tram or tram stop platform (Child).	T(CMCPT)R 11(3)	99
8986+	Bring bicycle onto bus (Adult).	T(CMCPT)R 11(4)	198
8987+	Bring bicycle onto bus (Child).	T(CMCPT)R 11(4)	99

Transport Infringement Notices – General Conduct Affecting Safety (Over Dimensional Vehicles)

Code	Offence	Reference	Penalty
3184+	Without the permission of the PTDA, driving or conveying an over dimensional vehicle across railway tracks.	T(CM)A 221X(1)(a) or 221X(1)(b)	1450
3185+	Without the permission of the PTDA, driving or conveying an over dimensional vehicle across railway tracks that may obstruct, displace or interfere with track or overhead power line.	T(CM)A 221X(1)(c)	1450
3206+	Driving or conveying an over dimensional vehicle across tramway tracks without permission.	T(CM)A 221X(2)(a) or 221X(2)(b)	1450
3207+	Driving or conveying an over dimensional vehicle across tramway tracks that may obstruct, displace or interfere with track or overhead power line without permission.	T(CM)A 221X(2)(c)	1450
3298+	Failing to comply with conditions in permission of PTDA to drive or convey an over dimensional or obstructive vehicle across railway or tramway tracks.	T(CM)A 221XD	1450
3299+	Operator of over dimensional or obstructive vehicle(s) crossing tracks without permission.	T(CM)A 221Y(1)	1450

Transport Infringement Notices – General Conduct Affecting Safety (Railway Tracks and Crossings)

Code	Offence	Reference	Penalty
3181+	Pedestrian crossing railway tracks while gates closed (Adult).	T(CMCPT)R 22(2)(a)	494
8268+	Pedestrian crossing railway tracks while gates closed (Child).	T(CMCPT)R 22(2)(a)	99
3189+	Pedestrian crossing railway tracks when warning signals or devices operating (Adult).	T(CMCPT)R 22(2)(b)	494
8269+	Pedestrian crossing railway tracks when warning signals or devices operating (Child).	T(CMCPT)R 22(2)(b)	99
3224+	Crossing railway tracks when rail vehicle in sight or heard approaching (Adult).	T(CMCPT)R 22(2)(c)	494
8270+	Crossing railway tracks when rail vehicle in sight or heard approaching (Child).	T(CMCPT)R 22(2)(c)	99
3300+	Pedestrian crossing railway tracks when rail vehicle on or entering crossing (Adult).	T(CMCPT)R 22(2)(d)	494
8271+	Pedestrian crossing railway tracks when rail vehicle on or entering crossing (Child).	T(CMCPT)R 22(2)(d)	99
8151+	Pedestrian crossing railway tracks when crossing or path beyond crossing is blocked (Adult).	T(CMCPT)R 22(2)(e)	494
8272+	Pedestrian crossing railway tracks when crossing or path beyond crossing is blocked (Child).	T(CMCPT)R 22(2)(e)	99
3183+	Crossing railway tracks against authorised person's direction (Adult).	T(CMCPT)R 22(2)(f)	494
8273+	Crossing railway tracks against authorised person's direction (Child).	T(CMCPT)R 22(2)(f)	99
3188+	Pedestrian crossing railway tracks other than at crossing place (Adult).	T(CMCPT)R 22(1)	494
8274+	Pedestrian crossing railway tracks other than at crossing place (Child).	T(CMCPT)R 22(1)	99

Transport Infringement Notices – General Conduct Affecting Safety (Railway Tracks and Crossings) (cont.)

Code	Offence	Reference	Penalty
3191+	Entering a place between platforms where there is a railway track or tramway track (Adult).	T(CMCPT)R 25(1)	494
8283+	Entering a place between platforms where there is a railway track or tramway track (Child).	T(CMCPT)R 25(1)	99
3246+	Descending from a platform onto a railway or designated tramway track other than at crossing place (Adult).	T(CMCPT)R 25(3)	494
8284+	Descending from a platform onto a railway or designated tramway track other than at crossing place (Child).	T(CMCPT)R 25(3)	99
3247+	Entering onto railway or designated tramway track other than at crossing place (Adult).	T(CMCPT)R 25(4)	494
8285+	Entering onto railway or designated tramway track other than at crossing place (Child).	T(CMCPT)R 25(4)	99
3231+	Driving or riding across railway or designated tramway tracks other than at a level crossing (Adult).	T(CMCPT)R 23(1)	790
8286+	Driving or riding across railway or designated tramway tracks other than at a level crossing (Child).	T(CMCPT)R 23(1)	99
3232+	Driving or riding across railway or designated tramway tracks when warning signals are operating (Adult).	T(CMCPT)R 23(2)(a)	790
8287+	Driving or riding across railway or designated tramway tracks when warning signals are operating (Child).	T(CMCPT)R 23(2)(a)	99
3233+	Driving or riding across railway or designated tramway tracks when gates closed (Adult).	T(CMCPT)R 23(2)(b)	790
8288+	Driving or riding across railway or designated tramway tracks when gates closed (Child).	T(CMCPT)R 23(2)(b)	99
3234+	Driving or riding across railway or designated tramway tracks when rail vehicle or road vehicle approaching (Adult).	T(CMCPT)R 23(2)(c)	790
8289+	Driving or riding across railway or designated tramway tracks when rail vehicle or road vehicle approaching (Child).	T(CMCPT)R 23(2)(c)	99
8155+	Driving or riding across railway or designated tramway tracks when crossing or road beyond is blocked (Adult).	T(CMCPT)R 23(2)(d)	790
8290+	Driving or riding across railway or designated tramway tracks when crossing or road beyond is blocked (Child).	T(CMCPT)R 23(2)(d)	99
8156+	Driving or riding across railway or designated tramway tracks when rail vehicle or road vehicle is on or entering crossing (Adult).	T(CMCPT)R 23(2)(e)	790
8291+	Driving or riding across railway or designated tramway tracks when rail vehicle or road vehicle is on or entering crossing (Child).	T(CMCPT)R 23(2)(e)	99
3235+	Driving or riding across railway or designated tramway tracks against authorised person's directions (Adult).	T(CMCPT)R 23(2)(f)	790
8292+	Driving or riding across railway or designated tramway tracks against authorised person's directions (Child).	T(CMCPT)R 23(2)(f)	99
3248+	Stopping vehicle on level crossing between boom gates (Adult).	T(CMCPT)R 24(1)	494
8989+	Stopping vehicle on level crossing between boom gates (Child).	T(CMCPT)R 24(1)	99
3249+	Standing on level crossing between boom gates when gates closed (Adult).	T(CMCPT)R 24(2)(a)	494
8293+	Standing on level crossing between boom gates when gates closed (Child).	T(CMCPT)R 24(2)(a)	99
8990+	Stop in area between boom gates against authorised persons direction (Adult).	T(CMCPT)R 24(2)(b)	494
8991+	Stop in area between boom gates against authorised persons direction (Child).	T(CMCPT)R 24(2)(b)	99
8992+	Enter a place between platforms where there is a tramway track without reasonable excuse (Adult).	T(CMCPT)R 25(2)	296
8993+	Enter a place between platforms where there is a tramway track without reasonable excuse (Child).	T(CMCPT)R 25(2)	99

Transport Infringement Notices – General Conduct Affecting Safety (Equipment and Property)

Code	Offence	Reference	Penalty
3171+	Applying brake or emergency device on vehicle without reasonable excuse (Adult).	T(CM)A 221ZF(a)	790
8295+	Applying brake or emergency device on vehicle without reasonable excuse (Child).	T(CM)A 221ZF(a)	99
8157+	Using emergency device on premises without reasonable excuse (Adult).	T(CM)A 221ZF(b)	790
8296+	Using emergency device on premises without reasonable excuse (Child).	T(CM)A 221ZF(b)	99
3143+	Causing vehicle to be stopped without reasonable excuse (Adult).	T(CM)A 221ZG	494
8297+	Causing vehicle to be stopped without reasonable excuse (Child).	T(CM)A 221ZG	99
3180+	Moving, operating, interfering or tampering with equipment or vehicle without permission of an authorised person (Adult).	T(CM)A 221ZH(1) and (2)	494
8298+	Moving, operating, interfering or tampering with equipment or vehicle without permission of an authorised person (Child).	T(CM)A 221ZH(1) and (2)	99
8158+	Causing or permitting drainage or sewage to flow or empty onto land or premises of rail track.	T(CM)A 221ZI	790
8159+	Moving, interfering or tampering with equipment owned or operated by the PTDA (Adult).	T(CM)A 222B	988
8299+	Moving, interfering or tampering with equipment owned or operated by the PTDA (Child).	T(CM)A 222B	99
3141+	Unlocking lock or opening a locked door of vehicle without reasonable excuse (Adult).	T(CMCPT)R 16(a)	494
8300+	Unlocking lock or opening a locked door of vehicle without reasonable excuse (Child).	T(CMCPT)R 16(a)	99
3142+	Locking unlocked door of vehicle without reasonable excuse (Adult).	T(CMCPT)R 16(b)	494
8901+	Locking unlocked door of vehicle without reasonable excuse (Child).	T(CMCPT)R 16(b)	99
3150+	Interfering with gates or doors on premises without reasonable excuse (Adult).		494
	• 16(c) – open or interfere with any locked gate or door on rail premises (Adult).	T(CMCPY)R 16(c)	
	• 16(d) – close or interfere with any unlocked or open gate or door on rail premises (Adult).	T(CMCPT)R 16(d)	
8902+	Interfering with gates or doors on premises without reasonable excuse (Child).		99
	• 16(c) – open or interfere with any locked gate or door on rail premises (Child).	T(CMCPY)R 16(c)	
	• 16(d) – close or interfere with any unlocked or open gate or door on rail premises (Child).	T(CMCPT)R 16(d)	
8160+	Opening or holding open external access doors on public transport vehicles while vehicle in motion without reasonable excuse (Adult).	T(CMCPT)R 16(h)	494
8903+	Opening or holding open external access doors on public transport vehicles while vehicle in motion without reasonable excuse (Child).	T(CMCPT)R 16(h)	99
3179+	Interfering with automatic doors of public transport vehicle or premises without reasonable excuse (Adult).		494
	• 16(e) – prevent or attempt to prevent automatic door from opening or closing (Adult).	T(CMCPT)R 16(e)	
	• 16(f) – open or attempt to open the automatic door before the release mechanism is operated (Adult).	T(CMCPT)R 16(f)	
	• 16(g) – make use of the door in a manner likely to cause damage (Adult).	T(CMCPT)R 16(g)	
8904+	Interfering with automatic doors of public transport vehicle or premises without reasonable excuse (Child).		99
	• 16(e) – prevent or attempt to prevent automatic door from opening or closing (Child).	T(CMCPT)R 16(e)	
	• 16(f) – open or attempt to open the automatic door before the release mechanism is operated (Child).	T(CMCPT)R 16(f)	
	• 16(g) – make use of the door in a manner likely to cause damage (Child).	T(CMCPT)R 16(g)	
3201+	Destroying, damaging or defacing property (Adult).	T(CMCPT)R 20	395
8905+	Destroying, damaging or defacing property (Child).	T(CMCPT)R 20	99

**Transport Infringement Notices – General Conduct Affecting Safety
(Equipment and Property) (cont.)**

Code	Offence	Reference	Penalty
3202+	Lighting fire without authorisation.		593
	• 21(1) – Light fire in or on public transport vehicle (Adult).	T(CMCPT)R 21(1)	
	• 21(2) – Light fire in or on public transport premise (Adult).	T(CMCPT)R 21(2)	
8906+	Lighting fire without authorisation.		99
	• 21(1) – Light fire in or on public transport vehicle (Child).	T(CMCPT)R 21(1)	
	• 21(2) – Light fire in or on public transport premise (Child).	T(CMCPT)R 21(2)	
8161+	Leaving a fire until it is completely extinguished (Adult).	T(CMCPT)R 21(3)	593
8907+	Leaving a fire until it is completely extinguished (Child).	T(CMCPT)R 21(3)	99
3203+	Bring burning substance onto vehicle etc.		593
	• 21(4) – Bringing burning substance onto or into a public transport vehicle (Adult).	T(CMCPT)R 21(4)	
	• 21(5) – Bringing burning substance onto or into a public transport premises (Adult).	T(CMCPT)R 21(5)	
8908+	Bring burning substance onto vehicle etc.		99
	• 21(4) – Bringing burning substance onto or into a public transport vehicle (Child).	T(CMCPT)R 21(4)	
	• 21(5) – Bringing burning substance onto or into a public transport premises (Child).	T(CMCPT)R 21(5)	
3204+	Throw burning substance.		593
	• 21(6) – Throw or drop a burning substance onto or from a vehicle or premises (Adult).	T(CMCPT)R 21(6)	
	• 21(7) – Cause burning substance to be thrown or dropped onto or from a vehicle or premises (Adult).	T(CMCPT)R 21(7)	
8909+	Throw burning substance.		99
	• 21(6) – Throw or drop a burning substance onto or from a vehicle or premises (Child).	T(CMCPT)R 21(6)	
	• 21(7) – Cause burning substance to be thrown or dropped onto or from a vehicle or premises (Child).	T(CMCPT)R 21(7)	
8162+	Throwing burning substance at vehicle or premises (Adult).	T(CMCPT)R 21(8)	593
8910+	Throwing burning substance at vehicle or premises (Child).	T(CMCPT)R 21(8)	99

Transport Infringement Notices – Commercial Passenger Vehicles and Private Bus Services

Code	Offence	Reference	Penalty
2556	Providing a CPV service without a driver accreditation.	CPVIA 70	2371
2557+	Driving a vehicle being used for the operation of a private bus service without accreditation.	T(CM)A 165(1)(b)	2371
2558	Failing to comply with conditions on a driver accreditation.	CPVIA 82	1482
3260	Failing to notify the Regulator of the suspension or cancellation of a driver licence and return the certificate of accreditation.	CPVIA 224	247
2559	Failing to notify the Regulator of a changed residential address and return certificate within 5 business days.	CPVIA 88(1)	247
2560	Failing to notify, within 5 business days, the owner, BSP or person in whose name a CPV is registered of the suspension or cancellation of a driver accreditation.	CPVIA 89(1)	247
2561	Failing to notify the Regulator of any charges or findings of guilt of a disqualifying offence within 20 business days of the charge or finding.	CPVIA 90(1)	247
2562	Failing to notify the Regulator within 20 business days of becoming subject to reporting obligations or order.	CPVIA 90(2)	247
2563	Failing to return to the Regulator a driver accreditation certificate that has become illegible, defaced or altered, within 5 business days.	CPVIA 91(1)	247
2564	Failing to return to the Regulator a driver accreditation certificate within 20 business days of being notified of the suspension or cancellation of the driver accreditation.	CPVIA 92(1)	247
2565	Failing to carry a driver accreditation certificate while driving a CPV to provide a CPV service.	CPVIA 93(1)	247
2566+	Failing to produce certificate of accreditation, in circumstances in which the driver is required to carry it.	T(CM)A 169X	247
8473	Advertising services prohibited.	CPVIA 267A(1)	2371
8474	Making offers prohibited.	CPVIA 267B(1)	2371
8889	Fail to comply with accreditation condition.	T(CM)A 169B	494
8890	Fail to notify suspension/cancellation.	T(CM)A 169EC	247
8891	Fail to notify change of address.	T(CM)A 169R	247
8892	Fail to notify operator of licence suspension.	T(CM)A 169S(1)	247
8893	Fail to notify of charge or guilt.	T(CM)A 169T(1)	247
8894	Fail to notify of subject to reporting.	T(CM)A 169T(2)	247
8895	Retain illegible accreditation certificate.	T(CM)A 169U	247
8896	Retain suspended or cancelled certificate.	T(CM)A 169V	247
8897	Fail to carry certificate of accreditation.	T(CM)A 169W	247
9440	As accredited bus operator, failing to ensure that each bus used to provide bus services undergoes safety inspection.	BSA 19(1)	790
9442	As accredited bus operator, failing to arrange safety inspection when directed for bus service.	BSA 19(3)	790
9447	Accredited bus operator, failing to notify safety director of the recovery of, and to return the certificate of accreditation.	BSA 30(3)	790
9448	Accredited bus operator failing to return certificate of accreditation if accreditation cancelled or surrendered.	BSA 53F	2371
9449	Accredited bus operator, failing to notify safety director of prescribed incidents.	BSA 65	790
9480	Accredited bus operator of a bus service that is not a commercial bus service or a local bus service failing to ensure bus driver holds appropriate driver licence.	BSA 36B(1)	2371
9481	Accredited bus operator failing to notify safety director of a relevant change in circumstances regarding accreditation or accredited bus operator within 7 days of becoming aware of the change.	BSA 38(1)	790
9482	Specified exempt bus operator failing to ensure that each bus used to provide bus services undergoes safety inspection in accordance with section 19 of Bus Safety Act 2009 as if accredited bus operator.	BSR 36(1)	790

Transport Infringement Notices – Commercial Passenger Vehicles

Code	Offence	Reference	Penalty
8450	Drive unregistered CPV as Employee.	CPVIA 38(1)	2371
8451	Fail to comply with registration conditions.	CPVIA 47	2371
8452	Failing to display an indication that the CPV is being used to provide a CPV service.	CPVIA 51(1)	2371
8453	Failing to sign a paper driver accreditation certificate on receipt.	CPVIA 87(1)	247
8454	Refusing or failing to produce a driver accreditation certificate when asked by an Authorised Officer or police officer.	CPVIA 94(1)	247
8455	Displaying taxi livery on a vehicle used to provide an unbooked CPV service where the vehicle is non compliant.	CPVIR 9(1)	494
8456	Permitting another person to use a vehicle that has taxi livery displayed on it, knowing that while the vehicle is used to provide an unbooked CPV service, the vehicle is non compliant.	CPVIR 9(2)	494
8457	Driver using a non-compliant vehicle to provide an unbooked CPV service, which has taxi livery displayed on it.	CPVIR 9(3)	494
8458	Using a CPV to provide an unbooked CPV service in which a fare calculation device does not comply with specifications or is installed in a manner not complying with specifications.	CPVIR 12(1)	494
8459	Permitting the use of a CPV to provide an unbooked CPV service in which a fare calculation device does not comply with specifications or is installed in a manner not complying with specifications.	CPVIR 12(2)	494
8460	Using a CPV to provide CPV services to passengers in wheelchairs in non-compliance with specifications regarding wheelchair accessible CPVs.	CPVIR 13(1)	988
8461	Permitting the use of a CPV to provide CPV services to passengers in wheelchairs in non-compliance with specifications regarding wheelchair accessible CPVs.	CPVIR 13(2)	988
8462	Permitting the use of a CPV to provide an applicable unbooked CPV service in which a security camera does not comply with specifications or is installed in a manner not complying with specifications.	CPVIR 14(2)	988
8463	Using a CPV to provide an unbooked CPV service without fare information being displayed as required.	CPVIR 17(1)	494
8464	Permitting the use of a CPV to provide an unbooked CPV service without fare information being displayed as required.	CPVIR 17(2)	494
8465	Driver using a CPV to provide an unbooked CPV service without fare information being displayed as required.	CPVIR 17(3)	247
8466	Driver using a CPV to provide an unbooked CPV service without a functioning fare calculation device that meets the standard.	CPVIR 18(3)	494
8467	Failing to provide a hirer with an estimate of the fare or a fixed fare for a booked CPV service (where service not arranged or facilitated by a registered BSP).	CPVIR 21(2)	494
8468	Failing to provide a receipt on request, which contains the required information (where fare paid to the BSP that provided the booking service).	CPVIR 22(2)	494
8469	Using a CPV to provide a CPV service without a sign, symbol, notice or label displayed under reg 8(1) that is incapable of being removed by a person in the driver's seat.	CPVIR 8(2)	494
8470	Permitting another person to use the CPV to provide a CPV service without a sign, symbol, notice or label displayed under reg 8(1) that is incapable of being removed by a person seated in the driver's seat.	CPVIR 8(3)	494
8471	Driver using a CPV to provide a CPV service without a sign, symbol, notice or label displayed under reg 8(1) that is incapable of being removed by a person in the driver's seat.	CPVIR 8(4)	494
8472	Permitting the use of a CPV to provide an unbooked CPV service without a functioning fare calculation device that meets the standard.	CPVIR 18(2)	494
8449	Driving a motor vehicle to provide CPV services that is not registered.	CPVIA 37(1)	2371

Transport Infringement Notices – Taxi Cabs

Code	Offence	Reference	Penalty
2568	Failing to ensure that identification vehicle is visible at all times to a passenger in a CPV providing a CPV service.	CPVIR 10(1)	247
2623	Using a CPV to provide an applicable unbooked CPV service in which a security camera does not comply with specifications or is installed in a manner not complying with specifications.	CPVIR 14(1)	988
2624	Driver using a CPV to provide an applicable unbooked CPV service in which a security camera does not comply with specifications or is installed in a manner not complying with specifications.	CPVIR 14(3)	988
2406	Failing to take the route nominated by a hirer of a CPV that is providing a CPV service not on an agreed fixed fare, unless the driver has a reasonable excuse.	CPVIR 28(2)	494
2633	Failing to accept an assistance animal accompanied by a passenger of the CPV where the CPV is being used to provide a CPV service.	CPVIR (26)	494
2417	Failing to give reasonable help to passengers to get them into and out of a vehicle being used to provide a CPV service.	CPVIR 27	247
2427	Charge fare in excess of ESC's fare determination.	CPVIA 110G	2371
3266	Failing to provide a receipt on request which contains the required information.	CPVIR 22(1)	494
2434	Using a CPV to provide an unbooked CPV service without a functioning fare calculation device that meets the standard.	CPVIR 18(1)	494
2442	Failing to tell a hirer immediately if the fare calculation device changes to a different tariff (unbooked CPV services).	CPVIR 19(2)	494
2443	Failing to ensure that the fare calculation device is stopped immediately at the termination of a hiring (unbooked CPV service).	CPVIR 19(3)	494
2412	Smoking, holding or having control over a heated or ignited tobacco product, in a CPV being used to provide a CPV service.	CPVIR 25(1)	296

Transport Infringement Notices – Passenger Vehicles

Code	Offence	Reference	Penalty
8181+	Applying brake or using emergency device on a bus (Adult).	T(CMCPT)R 18	790
8923+	Applying brake or using emergency device on a bus (Child).	T(CMCPT)R 18	99
2470+	Interfering etc with bus or bus equipment (Adult).	T(CMCPT)R 17	494
8924+	Interfering etc with bus or bus equipment (Child).	T(CMCPT)R 17	99
8207+	Unauthorised entering and leaving public transport vehicle which has not stopped for that purpose (Adult).		395
	• 14(6) – Enter or attempt to enter (Adult).	T(CMCPT)R 14(6)	
	• 14(7) – Leave or attempt to leave (Adult).	T(CMCPT)R 14(7)	
8942+	Unauthorised entering and leaving public transport vehicle which has not stopped for that purpose (Child).		99
	• 14(6) – Enter or attempt to enter (Child).	T(CMCPT)R 14(6)	
	• 14(7) – Leave or attempt to leave (Child).	T(CMCPT)R 14(7)	
8210+	Mounting part of vehicle not intended to accommodate passengers (Adult).	T(CMCPT)R 15(3)	494
8946+	Mounting part of vehicle not intended to accommodate passengers (Child).	T(CMCPT)R 15(3)	99
8211+	Travelling or attempting to travel on part of vehicle not intended for purpose of travel (Adult).	T(CMCPT)R 15(2)	494
8947+	Travelling or attempting to travel on part of vehicle not intended for purpose of travel (Child).	T(CMCPT)R 15(2)	99
8212+	Attaching person or bicycle, etc. to vehicle if in or on wheeled recreational device, wheeled toy, or bicycle (Adult).	T(CMCPT)R 15(5)	494
8948+	Attaching person or bicycle, etc. to vehicle if in or on wheeled recreational device, wheeled toy, or bicycle (Child).	T(CMCPT)R 15(5)	99
8216+	Failing to remove animal (Adult).	T(CMCPT)R 39(5)	296
8951+	Failing to remove animal (Child).	T(CMCPT)R 39(5)	99

TOW TRUCKS – PART 9**Table of Abbreviations****ATSA** – Accident Towing Services Act 2007 (No. 30/2007)**ATSR** – Accident Towing Services Regulations 2019 (No. 40/2017)**Infringements – Tow Trucks**

Code	Offence	Reference	Penalty
4401	Failing to notify the Secretary of change of address or failing to return accreditation certificate to the Secretary for amendment.	ATSA 118	247
4402	Tow truck being driven or used without bound book of authorities to tow.	ATSR 43(3)	296
4404	Failing to give a copy of the authority to tow to the person who authorised the tow.	ATSA 144	296
4405	Tow truck not fitted with warning lights.	ATSR 23 (1)(F)	296
4406	Tow truck not equipped with broom, shovel or rubbish receptacle.	ATSR 23 (1)(D)	296
4407	Tow truck not equipped with fire extinguisher.	ATSR 23 (1)(E)	296
4412	As driver of tow truck operating under regular tow truck licence, attending accident scene in controlled area or towing accident damaged vehicle with GVM of less than 4 tonnes from accident scene in controlled area without authorisation.	ATSA 42(2)	1581
4414	At a road accident scene, tout or solicit for towing or storage business or offer or obtain or attempt to obtain agreement for towing or storage of vehicle.	ATSA 148(1)	2371
4415	Failing to make records available on demand.	ATSR 19(4)	247
4416	Driving a licensed tow truck without holding tow truck driver accreditation.	ATSA 98(1)	1581
4417	Failing to carry tow truck driver accreditation certificate when required.	ATSA 120(1)	296
4418	While being the holder of a tow truck driver accreditation, allowing another to drive the tow truck or to be a passenger in the tow truck when that other person is not accredited.	ATSA 98(2)	1581
4419	Driving a regular tow truck that is not licensed.	ATSA 8(1)	1976
4421	Failing to display name and address of licence holder on truck.	ATSR 25(1)	296
4422	Refusing to salvage or tow accident damaged motor vehicle.	ATSR 47(1)	790
4423	Failing to tow accident damaged motor vehicle to the place specified in the authority to tow.	ATSA 146	593
4424	Failing to ensure removal of debris and glass from road accident scene.	ATSR 45(1)	296
4427	Failing to prevent use of tow truck while subject to repair notice.	ATSR 27(3)	296
4429	Failing to keep records.	ATSR 19(1)	247
4430	Failing to keep records at specified depot for specified period.	ATSR 19(2)	247
4431	Failing to keep specified depot open for business.	ATSR 21(1)	296
4432	Specified depot not contactable during business hours.	ATSR 21(2)	296
4433	Fail to display necessary signage at specified depot.	ATSR 21(3)	296
4434	Tow truck not usually based at specified depot during the specified hours.	ATSR 21(5)	296
4435	Tow truck not fitted with adjustable lights.	ATSR 23(1)(g)	296
4436	Tow truck not fitted with light board.	ATSR 23(1)(h)	296
4437	Failing to display the word "depot" followed by the depot number on tow truck.	ATSR 25(2)	296
4438	Failing to activate warning lights when picking up or setting down accident damaged motor vehicle at a road accident scene.	ATSR 28(1)(b)	296
4439	Failing to correctly display light board.	ATSR 29	296
4440	Driver of rostered tow truck fails to ensure tow truck not used to tow more than one vehicle at the same time.	ATSR 37(10)	296
4441	Failing to ensure that forms for authorities to tow are used in order of serial number.	ATSR 43(5)	296
4442	Refusing to provide vehicle owner with opportunity to make payment.	ATSR 48(1)	790
4447	Failing to carry temporary permit.	ATSA 36	296
4448	Failing to produce temporary permit when requested.	ATSA 37	296
4449	Permitting or allowing a person to travel in an accident damaged motor vehicle that is being towed.	ATSA 40(1)	593

Infringements – Tow Trucks (cont.)

Code	Offence	Reference	Penalty
4450	Causing regular tow truck to attend accident scene in a controlled area without an allocation/used to tow accident damaged motor vehicle with GVM less than 4 tonnes without an allocation.	ATSA 42(1)	2371
7400	Without an authorisation, cause tow truck operating under regular tow truck licence to tow or attempt to tow accident damaged motor vehicle with GVM of less than 4 tonnes from a safe and convenient place.	ATSA 44(1)	2371
7401	Without an authorisation, as driver of tow truck operating under regular tow truck licence, towing or attempting to tow accident damaged motor vehicle with GVM of less than 4 tonnes from a safe and convenient place.	ATSA 44(2)	1581
7402	Causing more than one accident damaged motor vehicle to be towed under one job number.	ATSA 45(1)	1976
7403	Towing more than one accident damaged motor vehicle under a job number.	ATSA 45(2)	1581
7404	Causing regular tow truck to attend road accident scene or to tow or attempt to tow a damaged vehicle with a GVM of less than 4 tonnes from accident scene when that accident scene is in a self-management area and the specified depot for the tow truck is outside that area.	ATSA 51(1)	1581
7405	Causing regular tow truck, without authority, to attend accident scene or to tow or attempt to tow a damaged vehicle with a GVM of less than 4 tonnes from accident scene when the accident is outside self-management area and depot for tow truck is inside that area.	ATSA 51(2)	1581
7406	Carrying on an accident towing service business without accreditation.	ATSA 56(1)	1976
7407	Managing an accident towing service business from a depot without accreditation.	ATSA 56(2)	1976
7408	Failing to comply with conditions of a tow truck driver accreditation.	ATSA 115	296
7409	Failing to produce certificate of tow truck driver accreditation when requested.	ATSA 121(1)	296
7410	Towing an accident damaged motor vehicle from a road accident scene without an authority to tow.	ATSA 142(1)	988
7411	Towing an accident damaged motor vehicle from a safe and convenient place without an authority to tow.	ATSA 142(2)	988
7412	Failing to record the job number on an authority to tow.	ATSA 143	593
7413	Failing to carry an authority to tow while towing.	ATSA 145(1)	296
7414	Failing to produce an authority to tow when requested.	ATSA 145(2)(a)	296
7415	Failing to give job number to police officer or authorised officer upon request.	ATSA 145(4)	296
7416	Seeking repair work at a road accident scene or at any time from when vehicle is towed from a road accident scene to when it is first stored at the address specified in the authority to tow.	ATSA 147	2371
7418	Failing to store accident damaged motor vehicle in secure area.	ATSA 150(1A)	593
8301	Operate tow truck without required tow truck licence.	ATSA 6	1976
8302	Operate tow truck other than from specified depot, without accreditation, without registration, providing towing service for vehicle that tow truck is not capable of towing.	ATSA 7	1976
8303	Towing a vehicle under a regular towing licence that tow truck is not capable of towing.	ATSA 8(2)	1976
8304	Towing a vehicle with a GVM less than 4 tonnes under a heavy towing licence or a vehicle that tow truck is not capable of towing.	ATSA 8(3)	1976
8305	Attend accident scene without tow truck licence.	ATSA 9(1)	1976
8306	Failing to carry tow truck accreditation certificate when accompanying driver of tow truck in circumstances when he or she is required to hold a tow truck driver accreditation.	ATSA 120(2)	296
8307	Failing to produce tow truck driver accreditation certificate when accompanying driver of tow truck when required to be accredited under ATSA, if asked by authorised officer, police officer, owner/driver of accident damaged motor vehicle.	ATSA 121(2)	296
8308	Fail to provide a copy of salvage photograph.	ATSR 19(6)	247
8309	Driving for hire or reward a vehicle that is not a tow truck to tow an accident damaged vehicle or to clear an accident scene.	ATSA 9A	1976
8310	Driving a licensed tow truck with an expired tow truck driver accreditation.	ATSA 98(1b)	790
8311	Failing to provide a copy of the authority to tow to the owner.	ATSA 146A	247
8312	As holder of tow truck licence, failing to ensure that accident damaged vehicle is towed to the place specified in the authority to tow.	ATSA 150(1)	593

CROWD MANAGEMENT – PART 10

Table of Abbreviations

MEA – Major Events Act 2009 (No. 30/2009)

RA – Racing Act 1958 (No. 6353/1958)

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Crowd Management – Major Events Act

Code	Offence	Reference	Penalty
3521	Enter sporting competition space without lawful reason.	MEA 67 (1)	395
3651	Possess lit firework or distress signal.	MEA 63	1482
3652	Possess unlit firework or distress signal.	MEA 65	988
3653	Throw or kick objects without lawful reason.	MEA 68	395
3654	Damage or deface venue property.	MEA 69	395
3655	Damage venue flora.	MEA 70	395
3656	Re-enter a venue within 24 hours of being ejected.	MEA 85 (3)	395
3657	Enter / Attempt to enter venue in contravention of a direction made by an authorised officer.	MEA 85 (1)	395
3658	Fail to leave venue after being directed to do so by an authorised officer.	MEA 85 (2)	395
8533	Possess alcohol not purchased at venue.	MEA 66 (1)	395
8534	Damage sporting competition space.	MEA 67A (1)	395
8535	Damage a structure in competition space.	MEA 67A (2)	395
8536	Climb roof or parapet of building.	MEA 74	198
8537	Enter venue without ticket or authority.	MEA 74A	395
8538	Fail or refuse to give name and address.	MEA 89 (1)	198
8539	Give false name and address.	MEA 89 (2)	198
8576	Sale of 5 or less tickets at a premium.	MEA 166(A)	988
8577	Advertising for resale 5 or less tickets at a premium.	MEA 166(B)	988

Code 3521 - This offence only occurs within a sporting competition space within an event venue as defined in the Major Events Act 2009.

Codes 3651 to 3658 - only apply in an event venue or an event area as defined in the Major Events Act 2009.

major sporting event means -

- (a) the Australian Open Tennis Championships;
 - (b) any Australian Football League match held at the MCG, Docklands Stadium or Kardinia Park;
 - (c) any international or interstate cricket match held at the MCG, Docklands Stadium or Kardinia Park;
 - (d) any international, national or state league football match held at an event venue;
 - (da) any Melbourne Cup Carnival race meeting held at the Flemington Racecourse;
 - (db) any Caulfield Cup Day race meeting held at the Caulfield Racecourse;
 - (dc) any Caulfield Guineas Day race meeting held at the Caulfield Racecourse;
 - (dd) any Thousand Guineas Day race meeting held at the Caulfield Racecourse;
 - (de) any Cox Plate Day race meeting held at the Moonee Valley Racecourse;
 - (e) any event specified in a major sporting event order as a major sporting event —
- and includes any opening ceremony or closing ceremony, parade or similar activity or event connected with the major sporting event and specified in a major sporting event order applying to the major sporting event

event area means -

an area of land that is specified in a major sporting event order to be an event area for the purposes of a major sporting event;

event venue means -

- (a) the MCG;
- (b) Phillip Island Grand Prix circuit;
- (c) the Docklands Stadium, and, in accordance with section 61(3A), the Docklands Stadium concourse;
- (d) the Melbourne Sports and Aquatic Centre land;
- (e) the State Netball and Hockey Centre land;
- (f) National Tennis Centre land;
- (g) Olympic Park land;
- (h) the Lakeside Stadium;
- (ha) the Caulfield Racecourse on any of the following—
 - (i) Caulfield Cup Day
 - (i) Caulfield Guineas Day
 - (i) Thousand Guineas Day
- (hb) the Flemington Racecourse on a day that a race meeting of the Melbourne Cup Carnival takes place;
- (hc) the Moonee Valley Racecourse on Cox Plate Day;
- (hd) the Kardinia Park Trust Land
- (i) any venue specified as an event venue in a major sporting event order;
- (j) an area of land that is specified as an event venue in a major sporting event

Crowd Management – Racing Act

Code	Offence	Reference	Penalty
9106	Person must not enter or remain in a restricted racing area during a race-meeting or an official trial meeting unless he or she is permitted or authorised or has reasonable excuse.	RA 32A(1)	395
9107	Person must not throw or kick any projectile into or within a restricted racing area during a race-meeting or official trial meeting unless authorised or engaged in conduct/management of meeting or has reasonable excuse.	RA 32C(1)	395
9108	Person must not cause any object to fly into or land within a restricted racing area during a race-meeting or official trial meeting unless authorised or engaged in conduct/management of meeting or has reasonable excuse.	RA 32C(3)	395
9109	Person must not climb fence, barrier or barricade of a restricted racing area during a race-meeting or official trial meeting unless authorised or engaged in conduct/management of meeting or has reasonable excuse.	RA 32D(1)	395

Codes 9106, 9107 & 9109 cannot be issued at race-meetings that are Major Sporting Events within the meaning of the Major Events Act 2009.

Race-Meeting means -

A meeting for the purpose of horse racing, harness racing or greyhound racing.

Official Trial Meeting means -

A meeting for the purpose of trialling horses or greyhounds -

- (a) that is not a horse race, harness race or greyhound race; and
- (b) that is approved by the appropriate controlling body and supervised by a steward of that controlling body; and
- (c) at which entries are taken and results are recorded;

Restricted Racing Area means -

Any of the following areas of land within a race-course -

- (a) a track which is being used for racing or training horses or greyhounds;
- (b) a space which is being used for—
 - (i) keeping, saddling, mounting, parading or exercising horses; or
 - (ii) keeping, parading or exercising greyhounds;
- (c) a pathway which connects 2 or more restricted racing areas;
- (d) a prescribed area of land.

PREVENTION OF CRUELTY TO ANIMALS – PART 11

Table of Abbreviations

PCAA – Prevention of Cruelty to Animals Act 1986 (No. 46/1986)

PCAR – Prevention of Cruelty to Animals Regulations 2019 (133/2019)

Code	Offence	Reference	Penalty
3301	Drive a motor vehicle on a highway with unsecured dog on a tray or in a trailer.	PCAA 15A(2)	395
7419	Animal unattended in vehicle on a hot day - Leaving an animal unattended in a motor vehicle on a hot day for more than 10 minutes when the outside temperatures are at or above 28 degrees Celsius.	PCAR 6(2)	494
7420	Dog on metal-tray of vehicle on a hot day - Securing a dog on a metal tray of a motor vehicle or trailer when outside temperatures are at or above 28 degrees Celsius without providing access to an area of insulating material to protect the dog from contact with the metal surface.	PCAR 6(4)	494

Note: Highway, motor vehicle and trailer have the same meaning as in the Road Safety Act 1986. A tray is defined in the Prevention of Cruelty to Animals Act 1986 as meaning, "a part of a motor vehicle behind the cabin that is an open compartment and is principally constructed to carry a load"

15A. Prevention of Cruelty to Animals Act 1986

- 15A (2) Subject to sub-section (3), a person must not drive on a highway—
- (a) a motor vehicle with a tray; or
 - (b) a motor vehicle to which a trailer is attached –
- if a dog is in or on the tray or trailer (as the case requires) and the dog is not secured in such a way as to prevent it from—
- (c) falling off or out of, or from, or moving off, the tray or trailer (as the case requires); or
 - (d) being injured from the movement of the motor vehicle or trailer.
- 10 penalty units.

Livestock Management Regulations – Biosecurity

Table of Abbreviations

LSMR – Livestock Management Regulations 2021 (No.159/2021)

Code	Offence	Reference	Penalty
9130	Non-compliance with biosecurity measure - a person fails to comply with prescribed biosecurity measure that applies to the whole (or specified part) of a premises, if a biosecurity management applies and compliant biosecurity signage is in place.	LSMR 20	1383
9131	Non-compliance with biosecurity measure - a corporation fails to comply with prescribed biosecurity measure that applies to the whole (or specified part) of a premises, if a biosecurity management plan applies and compliant biosecurity signage is in place.	LSMR 20	8892
9132	Damage or removal of biosecurity sign - a person defaces, damages or removes a biosecurity sign that complies with section 50A(2).	LSMR 20	593
9133	False information to gain consent - a visitor provides false or misleading information when making a request for consent to a nominated person under regulation 10(1) or (2).	LSMR 17	593
9134	Failure to produce notice of consent - a visitor fails to make a notice of consent (in force under regulation 11) available for inspection by an inspector or police officer at any time that the visitor enters or remains on the whole (or specified part) of the premises.	LSMR 18	593

TOBACCO – PART 12**Table of Abbreviations**

TA – Tobacco Act (No. 81/1987)

Tobacco Offences

Code	Offence	Reference	Penalty
2785	Buying tobacco or e-cigarette product for under 18's.	TA 12(2)	395
5968	Smoke in an enclosed workplace (Smoker).	TA 5A(1)	198
5969	Smoke in an enclosed workplace (Occupier).	TA 5B(1)	395
8511	Smoking in a car with a person under 18 present.	TA 5S	395
8515	Smoke in an outdoor drinking area as described in 5C(1A).	TA 5C(1A)	198
8516	Smoke in outdoor dining area.	TA 5EA(1)	198
8517	Smoking in outdoor dining area (Occupier).	TA 5EB(1)	395
8518	Smoking in outdoor dining area (Body Corporate).	TA 5EB(1)	988
8580	Smoke in an outdoor drinking area with a roof, and walls as described in s.5C(1).	TA 5C(1)	198
8581	Smoking in outdoor drinking area (Occupier).	TA 5D(1)	395
8582	Smoking in outdoor drinking area (Body Corporate).	TA 5D(1)	988
8792	Person smoking at or within 4 metres of any part of a pedestrian access point to Victorian public premises.	TA 5RH(1)	198

PRIVATE SECURITY – PART 13

Table of Abbreviations

PSA – Private Security Act 2004 (33/2004)

PSR – Private Security Regulations 2016 SR No. 64/2016

Code	Offence	Reference	Penalty
3701	Failure to surrender a private security licence document that has been cancelled or suspended or an activity of the licence has been cancelled or suspended within 7 days of the cancellation or suspension taking effect.	PSA 59(1)	494
3702	Failure to surrender a licence document suspended or cancelled by the court within 7 days after the cancellation or suspension taking effect.	PSA 62(1)	494
3703	Failure to surrender a private security registration document that has been cancelled or suspended or an activity of the registration has been cancelled or suspended within 7 days of the cancellation or suspension taking effect.	PSA 114(1)	494
3704	Failure to surrender a registration document suspended or cancelled by the court within 7 days after the suspension or cancellation taking effect.	PSA 117(1)	494
3705	Failure to produce a licence, registration or permit document at the request of a member of the police force or an authorised person.	PSA 128(3)	494
3706	Holder of a business licence or registration failing to notify CCP of change of address within 7 days.	PSA 129(2)	494
3707	Holder of an individual licence or registration failing to notify CCP of change of address within 7 days.	PSA 129(4)	494
3709	Failure to display licence or registration document conspicuously at each premises of the business.	PSA 133	494
3710	Failure of the holder of a business licence or individual licence to keep records as prescribed by the regulations for at least 5 years.	PSA 134(1)	1976
3711	Failure of the holder of a business registration or individual registration to keep records as prescribed by the regulations for at least 5 years.	PSA 134(2)	1976
3712	Crowd controller not wearing ID in accordance with the regulation while acting as a crowd controller.	PSA 138	494
3713	Crowd controller failing to enter required details in the register.	PSA 141(1)	988
3714	Failure to notify the CCP that the holder of the licence, close associate of the holder of the licence or nominated person or officer of the body corporate is charged with a particular indictable offence or a disqualifying offence within 7 days of being charged.	PSA 176(1)	988
3715	Failure to notify the CCP that the holder of the registration, close associate of the holder of the registration or nominated person or officer of the body corporate is charged with an indictable offence within 7 days of being charged.	PSA 176(2)	988
3716	Failure to make records available for inspection by any member of the police force or an authorised person at any time during normal business hours.	PSR 48	494
3717	Failure to advise the Chief Commissioner in writing within 28 days of a change in the particulars in relation to that person i.e. Change of name or Business address.	PSR 58	494

FIREARMS – PART 14**Table of Abbreviations**

FA – Firearms Act 1996 (No. 66/1996)

Infringements – Firearms

Code	Offence	Reference	Penalty
1801	Failure by holder of licence which is a corporation to notify Chief Commissioner of change in nominated person.	FA 40(2)	395
1802	Failure by holder of dealers licence which is a corporation to notify Chief Commissioner of change in nominated person.	FA 75(3)	395
1803	Failure to ensure entry in register of transactions is kept for 5 years after entry is made.	FA 87(5)	395
1804	Failure to ensure label is fixed to firearm in dealer's possession showing a number which can identify the record of transaction or dealing with the firearm in the register of transactions.	FA 88	198
1805	Charging more than the prescribed amount for acting as an agent under section 95 or 96 of the Act.	FA 97	198
1806	Possession of ammunition without authority under the Act.	FA 124(1)	395
1807	Possession of ammunition which is not suitable for category of firearms which person (other than person who is holder of firearms ammunition collectors licence) is licensed to possess, carry or use.	FA 124(2)	198
1808	Possession of ammunition which is not suitable for category of firearms which person who is not required to have a licence under the Act is authorised to possess, carry or use without having to obtain a licence.	FA 124(3)	198
1809	Failure by holder of licence or permit to notify Chief Commissioner in writing of change of address on licence within 14 days after change occurs.	FA 139	395
1817	Dealer fail to record transaction.	FA 87(2)	395
1818	Fail to store Cat A or B longarm safely.	FA 121(1)	395
1819	Fail to store cartridge munition safely.	FA 121(1A)	395

LIQUOR CONTROL REFORM ACT – PART 15

Table of Abbreviations

LCRA – Liquor Control Reform Act 1998 (No. 94/1998) (In the Act/Reg No. box on the Infringement Notice Write "94/1998", then the relevant section number)

LCR(PS)R – Liquor Control Reform (Prohibited Supply) Regulations 2015 (No. 155/2015)

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Liquor Control Reform Act – Licensee/Permittee Offences

Code	Offence	Reference	Penalty
6007	Fail to display notice as required by the Commission.	LCRA 102(1)(2)	99
6008	Supply liquor other than in accordance with licence.	LCRA 108(1)(a)(i)	1186
6009	Permit supply of liquor not in accordance with licence.	LCRA 108(1)(a)(ii)	1186
6010	Permit consumption of liquor not in accordance with licence.	LCRA 108(1)(a)(iii)	1186
6011	Use place/premises other than licensed/authorised premises for supply of liquor.	LCRA 108(1)(b)	1186
6012	Take/receive liquor orders other than at licensed premises.	LCRA 109(1)	296
6013	Permit/cause agent/employee to take/receive liquor orders other than at licensed premises.	LCRA 109(1)	296
6014	Permit underage to supply liquor on licensed premises.	LCRA 122(1)	2371
6015	Fail to notify of cessation of associate.	LCRA 103A(2)(a)	198
6016	Fail to notify commencement of associate.	LCRA 103A(2)(b)	198
6017	Permit other person to carry on business.	LCRA 106(1)(a)	1186
6018	Person not employed carrying on business.	LCRA 106(1)(b)	1186
6019	Supply liquor milk product off premises.	LCR(PS)R 5(1)	593
6020	Supply liquor milk product on premises.	LCR(PS)R 5(2)	593
6021	Supply liquor that is a vapour.	LCR(PS)R 6	593
6120	Supply liquor to intoxicated person.	LCRA 108(4)(a)	2371
6121	Permit unlawful game on licensed premises.	LCRA 108(1)(d)	1186
6122	Permit drunken/disorderly person on licensed premises.	LCRA 108(4)(b)	2371
6123	Supply liquor to underage person.	LCRA 119(1)(a)	2371
6124	Permit liquor to be supplied to underage person.	LCRA 119(1)(b)	2371
6125	Liquor supplied to underage person on licensed premises.	LCRA 119(2)	2371
6127	Licensee when underage person found on licensed premises.	LCRA 120(1)	2371
6128	Permit betting on licensed premises.	LCRA 115(1)	395
6131	Fail to display licence at licensed premises.	LCRA 101	99
6132	Fail to keep a resident's register.	LCRA 100(a)	198
6133	Fail to enter particulars in resident's register.	LCRA 100(b)	198
6134	Fail to keep resident's register on licensed premises.	LCRA 100(c)	198
6136	Fail to notify the Commission of cessation of company director.	LCRA 103(1)	99
6137	Fail to have company director approved by the Commission.	LCRA 103(2)	99

Liquor Control Reform Act – Licensee/Permittee Offences (cont.)

Code	Offence	Reference	Penalty
6138	Fail to make refreshments available.	LCRA 99	99
6139	Fail to produce copy of the plan of licensed premises for inspection.	LCRA 101B(2)	198
6140	Let or sub-let part of licensed premises without the Commission's consent.	LCRA 105(1)	1186
6141	Assign the right to supply liquor without the Commission's consent.	LCRA 105(1)	1186
6144	Fail to give list of the names and addresses of its directors.	LCRA 108B (1)	198
6145	Fail to give list of the names and addresses of members of club's committee of management.	LCRA 108B (2)	198
6146	Fail to produce residents register for inspection.	LCRA 100(e)	198
6147	Owner/mortgagee fail to register their name and address with the Commission.	LCRA 98(a)	99
6148	Owner/mortgagee fail to notify the Commission of change of address.	LCRA 98(b)	99
6158	Fail to provide free drinking water.	LCRA 99A(1)	593
6159	Fail to notify of explicit entertainment.	LCRA 106B	198
6160	Failure to complete RSA (LICENSEE).	LCRA 108AA(2)	1186
6161	Failure to complete RSA (MANAGER).	LCRA 108AA(3)	1186
6162	Failure to ensure staff complete RSA.	LCRA 108AB(2)(a),(b)	1186
6163	Failure to ensure RSA refresher complete.	LCRA 108AC(2)	1186
6178	Supply liquor in flexible tube bearing "GO", "Vodka", "Wodka" or "Eikohol".	LCR(PS)R 7	593
6180	Failure to notify commission of person ceasing to be nominee.	LCRA 54(11)	99
6188	Fail to notify the commission within 3 months of supplying, or commencing to supply, only packaged liquor for consumption off the licensed premises as the whole of the licensee's ordinary business in the supply of liquor.	LCRA CLAUSE 26(3) OF SCH 3	198
6190	Failure of licensee to keep at the licensed premises RSA certificates demonstrating requirements under sections 26B, 108AA, 108AB, and 108AC have been satisfied.	LCRA 108AD(2)	99
6191	Fail to Produce RSA Certificate.	LCRA 108AE(2)	99
6192	Licensee fail to give name of licensee or responsible person, name and start date of each person who sells, offers for sale or serves liquor on premises, or prescribed information or document on request by a police officer or an inspector.	LCRA 108AE(3)	99

Liquor Control Reform Act – Employee of Licensee/Permittee

Code	Offence	Reference	Penalty
6126	Supply liquor to underage person.	LCRA 119(4)	395

Liquor Control Reform Act – Underage Persons

Code	Offence	Reference	Penalty
6110	Underage person purchase/receive liquor.	LCRA 123(1)(a)	99
6111+	Underage person possess/consume liquor.	LCRA 123(1)(b)	99
6112	Underage person enter/remain on licensed premises.	LCRA 123(1)(c)	99
6113	Underage person falsely represent himself/herself to be over 18 years.	LCRA 123(4)	99
6114	Deface/interfere with evidence of age document.	LCRA 124(2)	395
6115	Knowingly make false evidence of age document.	LCRA 124(3)(a)	395
6116	Knowingly give false evidence of age document to another.	LCRA 124(3)(b)	395
6117	Refuse to give particulars of name or address or age.	LCRA 126(4)(a)	296
6118	Give false particulars of name or address or age.	LCRA 126(4)(b)	296
6119	Supply false evidence of name or address or age.	LCRA 126(4)(c)	296

Liquor Control Reform Act – Other Persons (Excluding Underage)

Code	Offence	Reference	Penalty
6001	Fraudulently represent to be a resident to obtain liquor.	LCRA 114(1)(c)	395
6002	Falsely indicate that premises are licensed premises.	LCRA 116(a)	296
6003	False indication of being licensed to sell/dispose of liquor.	LCRA 116(b)	296
6022	Consume or supply liquor on unlicensed premises.	LCRA 113(1)	395
6023	Possess liquor not in sealed container on unlicensed premises.	LCRA 113(1A)	395
6024	Permit consumption or supply of liquor on unlicensed premises.	LCRA 113(1B)	395
6025	Permit possession of liquor not in sealed container on unlicensed premises.	LCRA 113(1C)	395
6026	Failure by person who is drunk, violent or quarrelsome to refuse or fail to leave licensed premises if requested to do so by: the licensee or permittee or; an employee or agent of the licensee or permittee or; a member of the police force.	LCRA 114(2)	988
6101+	Supply liquor to underage person.	LCRA 119(3)	2371
6102	Send underage person to obtain liquor.	LCRA 121	2371
6103	Give evidence of age document to another.	LCRA 124(1)	395
6105	Knowingly make false evidence of age document.	LCRA 124(3)(a)	395
6106	Knowingly give false evidence of age document to another.	LCRA 124(3)(b)	395
6107	Obtain/consume liquor on licensed premises other than in accordance with the Liquor Control Reform Act 1998.	LCRA 114(1)(a)	395
6108	Procure liquor for intoxicated person.	LCRA 114(1)(b)(i)	395
6109	Aid/abet intoxicated person to obtain liquor.	LCRA 114(1)(b)(ii)	395
6129	Give false information/document in support of application to obtain a proof of age card.	LCRA 125(1)	395
6130	Give false document/material to another to enable the other to obtain a proof of age card.	LCRA 125(2)	395
6149	Bring into/consume or have in his/her possession or under control liquor on premises outside trading hours.	LCRA 111(a)	494
6151	Refuse/fail to give name or address when on premises.	LCRA 130A(3)(a)	395
6152	Give false name or address when on premises.	LCRA 130A(3)(b)	395
6179	Supply liquor to a minor in a residence without consent of parent, guardian or spouse (if over the age of 18).	LCRA 119(3), 119(5)(e)	2371

Liquor Control Reform Act – Restrictions on Retail Supply of Alcohol-based Food Essences

Code	Offence	Reference	Penalty
6150	Supply alcohol-based vanilla essence by retail in container above 100 ml.	LCRA 118A(a)	593
6153	Supply alcohol-based food essence by retail in container above 50 ml.	LCRA 118A(b)	593

Liquor Control Reform Act – Prohibition of Retail Supply of Powdered Alcohol

Code	Offence	Reference	Penalty
6189	Supply by retail liquor that is a dry, soluble concentrated substance.	LCR(PS)R 8(1)	593

Liquor Control Reform Act – Banning Notices and Exclusion Orders

Code	Offence	Reference	Penalty
6154	Contravene a Banning Notice.	LCRA 148F(1)	395
6155	Fail to comply with police direction – Banning Notice.	LCRA 148F(2)	395
6156	Contravene an Exclusion Order.	LCRA 148J(1)	1186
6157	Fail to comply with police direction – Exclusion Order.	LCRA 148J(2)	1186

Liquor Control Reform Act – Party Bus Offences

Code	Offence	Reference	Penalty
6027	Operator of party bus permit or allow liquor consumption on party bus in prescribed circumstances – no licence or BYO permit in force.	LCRA 113A(1)	395

Liquor Control Reform Act – Fire Safety Offences

Code	Offence	Reference	Penalty
6166	Refuse or fail to comply with direction given by Fire safety Inspector or authorised person.	LCRA 148ZJ(2)	395

Liquor Control Reform Act – Barring Orders

Code	Offence	Reference	Penalty
6167	Failure or refusal by person to state name and address - barring order.	LCRA 106H(3)(a)	99
6168	Providing a name that is false in a material particular when requested to state name and address.	LCRA 106H(3)(b)	99
6169	Failure to comply with request without reasonable excuse to produce evidence of correctness of name and address where member of police force suspects on reasonable grounds that state name may be false - barring order.	LCRA 106H(7)	99
6170	Entering or remaining on licenced premises from which the person is barred without reasonable excuse.	LCRA 106J(2)	395
6171	Entering or remaining in vicinity of licenced premises from which the person is barred without reasonable excuse.	LCRA 106J(2)	395
6172	Failure by licensee or permittee to keep record of all barring orders including copy of any variation or revocation issued.	LCRA 106K(1)	99
6173	Failure by licensee or permittee to produce records of barring orders for inspection upon request by member of the police force or compliance inspector.	LCRA 106K(2)	99
6174	Disclosure of barring order records or information contained in barring order records to any person except for inspection by member of the police force or compliance inspector.	LCRA 106K(4)	99
6175	Failure by licensee or permittee to destroy barring order record 3 years after expiry or revocation of that order.	LCRA 106K(5)	99
6176	Remaining in vicinity of a licensed premises, without reasonable excuse, from which the person has been refused entry or requested to leave.	LCRA 114(3)	395
6177	Re-entering a licensed premises, without reasonable excuse, within 24 hours of being refused entry or requested to leave.	LCRA 114(4)	395

GRAFFITI – PART 16**Table of Abbreviations****GPA** – Graffiti Prevention Act 2007 (No. 59/2007)

The Graffiti Prevention Act 2007 introduced an offence of “Possessing a Prescribed Graffiti Implement” for which an infringement notice may be issued.

Refer to **VPM Searches of a person** for detailed instructions

The offence only occurs in the following locations:

- a) on property of a transport company (as defined in the Graffiti Prevention Act);
- b) in an adjacent public place (as defined in the Graffiti Prevention Act);
- c) in a place where the person is trespassing or has entered without invitation

Code	Offence	Reference	Penalty
7251+	Possession of a prescribed graffiti implement without a lawful excuse.	GPA 7(1)	988

“Prescribed Graffiti Implement” is defined in section 3 of the Graffiti Prevention Act 2007 as

- (a) an aerosol paint container, or
- (b) a graffiti implement, or an implement belonging to a class of graffiti implement, that is prescribed by the regulations.

An Infringement Notice is only appropriate if no other offence is being committed at the time. Where multiple offences have been committed a brief must be issued.

ENVIRONMENT PROTECTION – PART 17

Table of Abbreviations

EPA – Environment Protection Act 2017 (No. 51/2017)

Code	Offence	Reference	Penalty
0222	Emit or permit unreasonable noise from residential premises (involving use of a prescribed item during a prohibited time).	EPA 167(1)	395
0223	Emit or permit unreasonable noise from residential premises (involving use of a prescribed item during a prohibited time) (Body Corporate).	EPA 167(1)	1976
0224	Fail to comply with direction by a Police Officer regarding unreasonable noise from an entertainment venue.	EPA 169(3)	1186
0225	Fail to comply with direction by a Police Officer regarding unreasonable noise from an entertainment venue (Body Corporate).	EPA 169(3)	5928
0228	Fail to comply with direction by a Police Officer regarding unreasonable noise from residential premises.	EPA 175(4)	988
0229	Fail to comply with direction by a Police Officer regarding unreasonable noise from residential premises (Body Corporate).	EPA 175(4)	4940

CASINO CONTROL ACT – PART 18**Table of Abbreviations****CCA** – Casino Control Act 1991 (No. 47/1991)

Code	Offence	Reference	Penalty
3637	Being a person subject to an exclusion order under section 74 of the Casino Control Act 1991, enter or remain in casino.	CCA 77(2)	395
3638	Being a person subject to an interstate exclusion order, enter or remain in casino.	CCA 77(3)	395

For further advice contact the Sporting Integrity Intelligence Unit on 9906-0920

SECOND-HAND DEALERS AND PAWNBROKERS ACT – PART 19

Note: members should use the VP508G Infringement Notice Crime Book for offences listed under this Part

Table of Abbreviations

SHDA – Second-Hand Dealers and Pawnbrokers Act 1989 (No. 54/1989)

SHDR(GE&R) – Second-Hand Dealers and Pawnbrokers (General Exemption and Record-Keeping) Regulations 2018 (No. 64/2018)

Code	Offence	Reference	Penalty
1478	Fail to timely return registered certificate to BLA (cancellation of registration).	SHDA 11B(a)	395
1479	Fail to timely return registered certificate to BLA (cancellation of endorsement of registration).	SHDA 11B(b)	395
1480	Fail to timely return registered certificate to BLA (ceasing to carry on business as a SHD).	SHDA 11B(c)	395
1481	Fail to return surrendered registered certificate to vendor.	SHDA 11C(4)	198
1482	Fail to notify change of business premises.	SHDA 12(a)	198
1483	Fail to notify change of directors.	SHDA 12(b)	198
1484	Fail to notify change of associates.	SHDA 12(c)	198
1485	Fail to notify cessation of business.	SHDA 12(d)	198
1486	Fail to display registration certificate.	SHDA 17(1)	988
1487	Display registration certificate not in force.	SHDA 17(2)	988
1488	Fail to return suspended/cancelled registration certificate.	SHDA 18D	395
1489	Fail to issue duplicate pawn ticket.	SHDR(GE&R) 21	395
1490	Fail to fix loan period on security.	SHDR(GE&R) 22(1)	395
1491	Purchased unredeemed pawned goods.	SHDR(GE&R) 24(3)	395
1492	Operate Unregistered - S/Hand Dealer.	SHDA 5(1)	1976
1493	Operate as Pawnbroker without endorsement.	SHDA 5(1A)	1976
1494	Pay / receive cash for scrap metal.	SHDA 19A(1)	2371
1495	Buy / sell scrap metal via unlawful method.	SHDA 19A(2)	2371
1496	Buy unidentified vehicle for scrap.	SHDA 19B(1)	2371
1497	Sell unidentified vehicle without authority.	SHDA 19B(2)	2371
1498	Keep unidentified vehicle without authority.	SHDA 19B(3)	2371
1499	Fail to comply with S.26 notice.	SHDA 26(4)	395
1500	Remove I.D from second-hand goods.	SHDR(GE&R) 19	395
1501	Charge fee for pawn ticket.	SHDR(GE&R) 20(3)	395
7171	Fail to keep accurate and complete records of every transaction.	SHDA 20	395
7172	Fail to retain goods for seven days.	SHDA 21(1)	395
7173	Fail to keep accurate and complete records of storage location of each item.	SHDA 21A	395
7174	Fail to display notice of maximum amount(s) charged on pawn transactions.	SHDA 23(2)	395
7175	Fail to give pawn ticket, notice of rights of parties and notice of charge.	SHDA 23(3)	395
7176	Fail to notify owner that residual equity of goods is more than ten dollars.	SHDA 23A(3)	395
7177	Fail to publicly display stolen goods notice.	SHDA 24B	395

DRUGS, POISONS AND CONTROLLED SUBSTANCES ACT – PART 20**Table of Abbreviations**

DPCSA – Drugs, Poisons and Controlled Substances Act 1981 (No. 9719/1981)

Natural Person Offences

Code	Offence	Reference	Penalty
9650	Display cannabis water pipe (bong) in a retail outlet - natural person.	DPCSA 80U(1)	2371
9652	Display bong component in a retail outlet - natural person.	DPCSA 80U(2)	2371
9654	Display bong kit in a retail outlet - natural person.	DPCSA 80U(3)	2371
9656	Sell cannabis water pipe (bong) - natural person.	DPCSA 80V(1)	2371
9658	Sell bong component - natural person.	DPCSA 80V(2)	2371
9660	Sell bong kit - natural person.	DPCSA 80V(3)	2371
9662	Supply a cannabis water pipe (bong) in the course of carrying out a commercial activity - natural person.	DPCSA 80W(1)	2371
9664	Supply a bong component in the course of carrying out a commercial activity - natural person.	DPCSA 80W(2)	2371
9666	Supply a bong kit in the course of carrying out a commercial activity - natural person.	DPCSA 80W(3)	2371
9668	Display for the purposes of sale in a retail outlet: (a) more than 3 hookahs, or (b) if another number of hookahs is prescribed for the purposes of this section, more than the prescribed number of hookahs - natural person.	DPCSA 80X	395

Body Corporate Offences

Code	Offence	Reference	Penalty
9651	Display cannabis water pipe (bong) in a retail outlet - body corporate.	DPCSA 80U(1)	11855
9653	Display bong component in a retail outlet - body corporate.	DPCSA 80U(2)	11855
9655	Display bong kit in a retail outlet - body corporate.	DPCSA 80U(3)	11855
9657	Sell cannabis water pipe (bong) - body corporate.	DPCSA 80V(1)	11855
9659	Sell bong component - body corporate.	DPCSA 80V(2)	11855
9661	Sell bong kit - body corporate.	DPCSA 80V(3)	11855
9663	Supply a cannabis water pipe (bong) in the course of carrying out a commercial activity - body corporate.	DPCSA 80W(1)	11855
9665	Supply a bong component in the course of carrying out a commercial activity - body corporate.	DPCSA 80W(2)	11855
9667	Supply a bong kit in the course of carrying out a commercial activity - body corporate.	DPCSA 80W(3)	11855
9669	Display for the purposes of sale in a retail outlet: (a) more than 3 hookahs, or (b) if another number of hookahs is prescribed for the purposes of this section, more than the prescribed number of hookahs - body corporate.	DPCSA 80X	1976

CRIME – PART 21

Table of Abbreviations

SOA – Summary Offences Act (No. 7405/1966)

CWA – Control of Weapons Act 1990 (No. 24/1990)

Index

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Crime – Sex Work Offences	94
Crime – Weapons	95

IMPORTANT NOTE: Use the VP 508G Infringement Notice Crime form and VP 1333 Official Warning Crime form to issue notices for criminal offences listed here.

YOU MAY issue an Infringement Notice - Crime or Official Warning Notice - Crime if:

- charging the offender would previously have been justified
- there is enough admissible evidence gathered to prosecute the matter at court
- it is appropriate in the circumstances
- the identity of the offender has been verified and a prior history check has been conducted
- the victim (if applicable) has been consulted
- there are no aggravating circumstances such as an assault

DO NOT issue an Infringement Notice - Crime or Official Warning Notice - Crime:

- to an offender whilst they are intoxicated (you may issue at a later time)
- where the offensive behaviour or language is directed at a member of Victoria Police
- if the offence was committed in the course of a lawful assembly or other form of legitimate public protest
- if court ordered restitution is required.

DO NOT issue an official warning for any offence unless the offender admits the offence and consents to the official warning.

For additional information refer to **VPM Infringement Notices and official warnings.**

Crime - Crime Offences

YOU MAY issue an Infringement Notice - Crime or Official Warning Notice - Crime for the following offences if:

- the person is eighteen years of age or over

LIMITATION ON ISSUING an Infringement Notice - Crime or Official Warning Notice - Crime:

- the person has received no more than one Infringement Notice - Crime and one Official Warning Notice - Crime. Any subsequent offending must be dealt with by way of charge.

Code	Offence	Reference	Penalty
3578+	Using profane indecent or obscene language or threatening abusive or insulting words (Do not issue to person under 18 years of age).	SOA 17(1)(c)	395
3579+	Behaving in a riotous indecent offensive or insulting manner (Do not issue to person under 18 years of age).	SOA 17(1)(d)	790

Crime - Crime Extra

YOU MAY issue an Infringement Notice - Crime or Official Warning Notice - Crime Extra for the following offences if:

- the person is fourteen years of age or over

Where an infringement notice for any of the offences below is issued to a child (14 yrs but under 18 yrs.), a parent or guardian must be informed in writing of this fact (VP Form 508H Notice to Parent - Advice Regarding Your Child Receiving an Infringement Notice). This action must be recorded on the notes section of the Infringement Notice and, if sent by mail, record this correspondence in Station Books.

Code	Offence	Reference	Penalty
9101+	Contravention of a direction to move on (Do not issue to person under 14 years of age).	SOA 6(4)	395
9104+	Disorderly conduct in a public place (Do not issue to person under 14 years of age).	SOA 17A	790

Crime - Sex Work Offences

YOU MAY issue an Infringement Notice - Crime or Official Warning Notice - Crime for the following offences if:

- the person is fourteen years of age or over

LIMITATION ON ISSUING an Infringement Notice - Crime or Official Warning Notice - Crime:

- the person has received no more than one Infringement Notice - Crime and one Official Warning Notice - Crime. Any subsequent offending must be dealt with by way of charge. Where a person is aged between 14 and 17 years of age the investigating member should consider VPMP/G Protecting children and VPM Family violence and child information sharing (where applicable) before taking any criminal action.

Code	Offence	Reference	Penalty
1295	Sex Work at or near Certain Places - A person must not intentionally solicit or invite a person to engage in sex work between 6AM to 7PM near a school, education or care service or children's service.	SOA 38B(1)	395
1296	Loiter for Sex Work at/near a Certain Place - A person must not intentionally loiter to solicit or invite a person to engage in sex work between 6am to 7pm near a school, education or care service or children's service.	SOA 38B(2)	395
1297	Sex Work at or near Place of Worship - A person must not intentionally solicit or invite a person to engage in sex work near a place of worship between 6am to 7pm (any day) or at any time on a prescribed day.	SOA 38B(3)	395
1298	Loiter for Sex Work at/near Place Worship - A person must not intentionally loiter to solicit or invite a person to engage in sex work near a place of worship between 6am to 7pm (any day) or at any time on a prescribed day.	SOA.38B(4)	395

Crime - Weapons

YOU MAY issue an Infringement Notice - Crime or Official Warning Notice - Crime for the following offences if:

- the person is sixteen years of age or over

IF ISSUED TO CHILD (16 to 18 yrs)

- firstly consider if there is a more appropriate course of action with consideration to circumstances and prior history.
- Where an infringement notice is issued, a parent or guardian must be notified in writing [VP Form 508H].

Code	Offence	Reference	Penalty
9300+	Possess/carry/use controlled weapon without lawful excuse (May only be issued to person aged 16 and over).	CWA 6(1)	\$1,000
9301	Child purchase controlled weapon (May only be issued to person aged between 16 and under 18 years).	CWA 6(1AA)	395
9302	Possess/carry/use controlled weapon (in/within vicinity of) licensed premises without lawful excuse (May only be issued to person aged 16 and over).	CWA 6(1A)	\$2,000

Note: Infringements with + symbol can be issued by PSOs.

Please refer to section 9A of the Control of Weapons Act 1990 for provisions regarding the forfeiture of weapons seized where an infringement notice is issued.

Members are reminded that the powers to search for weapons are contained in the Control of Weapons Act 1990, at

Please also refer to VPM Designated areas - Conducting searches and issuing directions regarding the criteria for searches under section 10D and 10E.

28 DAY PENALTY NOTICE READY RECKONER - LEAP YEAR
EFFECTIVE 01-01-2024 to 31-12-2024

THIS CHART HAS BEEN DEVELOPED TO ASSIST MEMBERS IN ESTABLISHING THE CORRECT DATE TO INSERT INTO THE "SPECIFIED DUE DATE FOR PAYMENT" FIELD ON THE VP FORM 508 INFRINGEMENT NOTICE. THE CHART INCLUDES THE ISSUE DATE OF THE NOTICE ALONG WITH THE CORRESPONDING DUE DATE FOR PAYMENT.

ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE	ISSUE DATE	DUE DATE		
Jan-01	Jan-29	Feb-01	Feb-29	Mar-01	Mar-29	Apr-01	Apr-29	May-01	May-29	Jun-01	Jun-29	Jul-01	Jul-29	Aug-01	Aug-29	Sep-01	Sep-29	Oct-01	Oct-29	Nov-01	Nov-29	Dec-01	Dec-29
Jan-02	Jan-30	Feb-02	Mar-01	Mar-02	Mar-30	Apr-02	Apr-30	May-02	May-30	Jun-02	Jun-30	Jul-02	Jul-30	Aug-02	Aug-30	Sep-02	Sep-30	Oct-02	Oct-30	Nov-02	Nov-30	Dec-02	Dec-30
Jan-03	Jan-31	Feb-03	Mar-02	Mar-03	Mar-31	Apr-03	May-01	May-03	May-31	Jun-03	Jul-01	Jul-03	Jul-31	Aug-03	Aug-31	Sep-03	Oct-01	Oct-03	Oct-31	Nov-03	Dec-01	Dec-03	Dec-31
Jan-04	Feb-01	Feb-04	Mar-03	Mar-04	Apr-01	Apr-04	May-02	May-04	Jun-01	Jun-04	Jul-02	Jul-04	Aug-01	Aug-04	Sep-01	Sep-04	Oct-02	Oct-04	Nov-01	Nov-04	Dec-02	Dec-04	Jan-01
Jan-05	Feb-02	Feb-05	Mar-04	Mar-05	Apr-02	Apr-05	May-03	May-05	Jun-02	Jun-05	Jul-03	Jul-05	Aug-02	Aug-05	Sep-02	Sep-05	Oct-03	Oct-05	Nov-02	Nov-05	Dec-03	Dec-05	Jan-02
Jan-06	Feb-03	Feb-06	Mar-05	Mar-06	Apr-03	Apr-06	May-04	May-06	Jun-03	Jun-06	Jul-04	Jul-06	Aug-03	Aug-06	Sep-03	Sep-06	Oct-04	Oct-06	Nov-03	Nov-06	Dec-04	Dec-06	Jan-03
Jan-07	Feb-04	Feb-07	Mar-06	Mar-07	Apr-04	Apr-07	May-05	May-07	Jun-04	Jun-07	Jul-05	Jul-07	Aug-04	Aug-07	Sep-04	Sep-07	Oct-05	Oct-07	Nov-04	Nov-07	Dec-05	Dec-07	Jan-04
Jan-08	Feb-05	Feb-08	Mar-07	Mar-08	Apr-05	Apr-08	May-06	May-08	Jun-05	Jun-08	Jul-06	Jul-08	Aug-05	Aug-08	Sep-05	Sep-08	Oct-06	Oct-08	Nov-05	Nov-08	Dec-06	Dec-08	Jan-05
Jan-09	Feb-06	Feb-09	Mar-08	Mar-09	Apr-06	Apr-09	May-07	May-09	Jun-06	Jun-09	Jul-07	Jul-09	Aug-06	Aug-09	Sep-06	Sep-09	Oct-07	Oct-09	Nov-06	Nov-09	Dec-07	Dec-09	Jan-06
Jan-10	Feb-07	Feb-10	Mar-09	Mar-10	Apr-07	Apr-10	May-08	May-10	Jun-07	Jun-10	Jul-08	Jul-10	Aug-07	Aug-10	Sep-07	Sep-10	Oct-08	Oct-10	Nov-07	Nov-10	Dec-08	Dec-10	Jan-07
Jan-11	Feb-08	Feb-11	Mar-10	Mar-11	Apr-08	Apr-11	May-09	May-11	Jun-08	Jun-11	Jul-09	Jul-11	Aug-08	Aug-11	Sep-08	Sep-11	Oct-09	Oct-11	Nov-08	Nov-11	Dec-09	Dec-11	Jan-08
Jan-12	Feb-09	Feb-12	Mar-11	Mar-12	Apr-09	Apr-12	May-10	May-12	Jun-09	Jun-12	Jul-10	Jul-12	Aug-09	Aug-12	Sep-09	Sep-12	Oct-10	Oct-12	Nov-09	Nov-12	Dec-10	Dec-12	Jan-09
Jan-13	Feb-10	Feb-13	Mar-12	Mar-13	Apr-10	Apr-13	May-11	May-13	Jun-10	Jun-13	Jul-11	Jul-13	Aug-10	Aug-13	Sep-10	Sep-13	Oct-11	Oct-13	Nov-10	Nov-13	Dec-11	Dec-13	Jan-10
Jan-14	Feb-11	Feb-14	Mar-13	Mar-14	Apr-11	Apr-14	May-12	May-14	Jun-11	Jun-14	Jul-12	Jul-14	Aug-11	Aug-14	Sep-11	Sep-14	Oct-12	Oct-14	Nov-11	Nov-14	Dec-12	Dec-14	Jan-11
Jan-15	Feb-12	Feb-15	Mar-14	Mar-15	Apr-12	Apr-15	May-13	May-15	Jun-12	Jun-15	Jul-13	Jul-15	Aug-12	Aug-15	Sep-12	Sep-15	Oct-13	Oct-15	Nov-12	Nov-15	Dec-13	Dec-15	Jan-12
Jan-16	Feb-13	Feb-16	Mar-15	Mar-16	Apr-13	Apr-16	May-14	May-16	Jun-13	Jun-16	Jul-14	Jul-16	Aug-13	Aug-16	Sep-13	Sep-16	Oct-14	Oct-16	Nov-13	Nov-16	Dec-14	Dec-16	Jan-13
Jan-17	Feb-14	Feb-17	Mar-16	Mar-17	Apr-14	Apr-17	May-15	May-17	Jun-14	Jun-17	Jul-15	Jul-17	Aug-14	Aug-17	Sep-14	Sep-17	Oct-15	Oct-17	Nov-14	Nov-17	Dec-15	Dec-17	Jan-14
Jan-18	Feb-15	Feb-18	Mar-17	Mar-18	Apr-15	Apr-18	May-16	May-18	Jun-15	Jun-18	Jul-16	Jul-18	Aug-15	Aug-18	Sep-15	Sep-18	Oct-16	Oct-18	Nov-15	Nov-18	Dec-16	Dec-18	Jan-15
Jan-19	Feb-16	Feb-19	Mar-18	Mar-19	Apr-16	Apr-19	May-17	May-19	Jun-16	Jun-19	Jul-17	Jul-19	Aug-16	Aug-19	Sep-16	Sep-19	Oct-17	Oct-19	Nov-16	Nov-19	Dec-17	Dec-19	Jan-16
Jan-20	Feb-17	Feb-20	Mar-19	Mar-20	Apr-17	Apr-20	May-18	May-20	Jun-17	Jun-20	Jul-18	Jul-20	Aug-17	Aug-20	Sep-17	Sep-20	Oct-18	Oct-20	Nov-17	Nov-20	Dec-18	Dec-20	Jan-17
Jan-21	Feb-18	Feb-21	Mar-20	Mar-21	Apr-18	Apr-21	May-19	May-21	Jun-18	Jun-21	Jul-19	Jul-21	Aug-18	Aug-21	Sep-18	Sep-21	Oct-19	Oct-21	Nov-18	Nov-21	Dec-19	Dec-21	Jan-18
Jan-22	Feb-19	Feb-22	Mar-21	Mar-22	Apr-19	Apr-22	May-20	May-22	Jun-19	Jun-22	Jul-20	Jul-22	Aug-19	Aug-22	Sep-19	Sep-22	Oct-20	Oct-22	Nov-19	Nov-22	Dec-20	Dec-22	Jan-19
Jan-23	Feb-20	Feb-23	Mar-22	Mar-23	Apr-20	Apr-23	May-21	May-23	Jun-20	Jun-23	Jul-21	Jul-23	Aug-20	Aug-23	Sep-20	Sep-23	Oct-21	Oct-23	Nov-20	Nov-23	Dec-21	Dec-23	Jan-20
Jan-24	Feb-21	Feb-24	Mar-23	Mar-24	Apr-21	Apr-24	May-22	May-24	Jun-21	Jun-24	Jul-22	Jul-24	Aug-21	Aug-24	Sep-21	Sep-24	Oct-22	Oct-24	Nov-21	Nov-24	Dec-22	Dec-24	Jan-21
Jan-25	Feb-22	Feb-25	Mar-24	Mar-25	Apr-22	Apr-25	May-23	May-25	Jun-22	Jun-25	Jul-23	Jul-25	Aug-22	Aug-25	Sep-22	Sep-25	Oct-23	Oct-25	Nov-22	Nov-25	Dec-23	Dec-25	Jan-22
Jan-26	Feb-23	Feb-26	Mar-25	Mar-26	Apr-23	Apr-26	May-24	May-26	Jun-23	Jun-26	Jul-24	Jul-26	Aug-23	Aug-26	Sep-23	Sep-26	Oct-24	Oct-26	Nov-23	Nov-26	Dec-24	Dec-26	Jan-23
Jan-27	Feb-24	Feb-27	Mar-26	Mar-27	Apr-24	Apr-27	May-25	May-27	Jun-24	Jun-27	Jul-25	Jul-27	Aug-24	Aug-27	Sep-24	Sep-27	Oct-25	Oct-27	Nov-24	Nov-27	Dec-25	Dec-27	Jan-24
Jan-28	Feb-25	Feb-28	Mar-27	Mar-28	Apr-25	Apr-28	May-26	May-28	Jun-25	Jun-28	Jul-26	Jul-28	Aug-25	Aug-28	Sep-25	Sep-28	Oct-26	Oct-28	Nov-25	Nov-28	Dec-26	Dec-28	Jan-25
Jan-29	Feb-26	Feb-29	Mar-28	Mar-29	Apr-26	Apr-29	May-27	May-29	Jun-26	Jun-29	Jul-27	Jul-29	Aug-26	Aug-29	Sep-26	Sep-29	Oct-27	Oct-29	Nov-26	Nov-29	Dec-27	Dec-29	Jan-26
Jan-30	Feb-27			Mar-30	Apr-27	Apr-30	May-28	May-30	Jun-27	Jun-30	Jul-28	Jul-30	Aug-27	Aug-30	Sep-27	Sep-30	Oct-28	Oct-30	Nov-27	Nov-30	Dec-28	Dec-30	Jan-27
Jan-31	Feb-28			Mar-31	Apr-28			May-31	Jun-28			Jul-31	Aug-28	Aug-31	Sep-28			Oct-31	Nov-28			Dec-31	Jan-28